

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[932 NE2d 877, 906 NYS2d 521]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEZINE
MURRAY, Appellant.

Argued June 1, 2010; decided June 24, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 23, 2008. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Patricia DiMango, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the third degree, and sentenced him to two years imprisonment followed by three years of postrelease supervision.

People v Murray, 57 AD3d 921, affirmed.

HEADNOTES

Crimes — Sentence — Youthful Offender

1. In a prosecution for criminal possession of a weapon, the court did not abuse its discretion in sentencing defendant as an adult where defendant entered a guilty plea with the understanding that he would “probably” be treated as a youthful offender and sentenced to a shorter term if he satisfied certain conditions, including appearing for sentencing, but would be sentenced as an adult if these conditions were not met. The reason for the court’s decision not to treat defendant as a youthful offender—his nonappearance on the original sentencing date—was rooted in the terms of his plea and evident to all concerned. The court did not arbitrarily trifle with the legitimate expectations of defendant based on the plea.

Crimes — Appeal — Preservation of Issue for Review

2. In a prosecution for criminal possession of a weapon, defendant’s claim that the term of the postrelease supervision (PRS) component of his sentence, although of legal duration, did not conform to the shorter term indicated at his plea proceeding, was not preserved for appellate review. While preservation is unnecessary to the Court of Appeals’ address of a nonconforming PRS

sentence where the defendant has not been made aware of that part of the sentence before its imposition, defendant was advised of what the sentence would be, including its PRS term, at the outset of the sentencing proceeding. Because defendant could have sought relief from the sentencing court in advance of the sentence's imposition, the rationale for dispensing with the preservation requirement was not applicable.

APPEARANCES OF COUNSEL

Mark Diamond, New York City, for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Solomon Neubort* and *Leonard Joblove* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] Defendant entered a plea to criminal possession of a weapon in the third degree with the understanding that he would “probably” be treated as a youthful offender and sentenced to a term of nine months if he produced proof that he was in school, received a favorable probation report, and appeared as directed for sentencing. He was advised that if he did not meet these conditions, he would be sentenced as an adult to a term of two years in prison followed by two years of post-release supervision (PRS). Defendant did not appear on the appointed sentencing date. When he did appear, several months later and after issuance of a bench warrant, the court, citing defendant's nonappearance, announced at the outset of the proceeding that it would sentence him as an adult, and, after hearing argument from defendant's counsel, imposed an adult sentence. The reason for the court's decision not to treat defendant as a youthful offender—his nonappearance on the original sentencing date—was rooted in the terms of defendant's plea and evident to all concerned; this was not a situation in which the court arbitrarily trifled with the legitimate expectations of the defendant based on the plea (*see People v Selikoff*, 35 NY2d 227, 240 [1974]). Under the circumstances, the court did not abuse its discretion in sentencing defendant as an adult.

[2] Defendant's further claim that the term of the PRS component of his sentence (three years), although of legal duration, did not conform to the term indicated at the plea proceeding (two years), is not preserved. While preservation is unnecessary to our address of a nonconforming PRS sentence where the defendant has not been made aware of that part of the sentence

before its imposition (*see People v Louree*, 8 NY3d 541, 546 [2007]), here defendant was advised of what the sentence would be, including its PRS term, at the outset of the sentencing proceeding. Because defendant could have sought relief from the sentencing court in advance of the sentence's imposition, *Louree's* rationale for dispensing with the preservation requirement is not presently applicable.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[931 NE2d 1053, 905 NYS2d 797]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE JORDAN, Appellant.

Decided June 24, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 22, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Rena K. Uviller, J.), which had resentenced defendant to a term of seven years imprisonment with five years postrelease supervision.

People v Jordan, 66 AD3d 577, reversed.

HEADNOTE

Crimes — Sentence — Postrelease Supervision

Supreme Court improperly resentenced defendant following his release from prison by adding a five-year period of postrelease supervision (PRS). The Double Jeopardy Clause of the Federal Constitution precludes a court from adding PRS to a defendant's sentence once the defendant has been released from imprisonment. Although PRS was discussed during defendant's plea proceeding, Supreme Court did not inform defendant of the specific term of PRS it intended to impose. At sentencing, although Supreme Court mentioned PRS again, it did not pronounce a specific period of PRS.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Mark W. Zeno* and *Robert S. Dean* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Matthew C. Williams* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, the resentence vacated and the original sentence reinstated.

In February 2003, defendant pleaded guilty to attempted first-degree robbery and was promised a sentence of seven years imprisonment. Although postrelease supervision (PRS) was discussed during the plea proceeding, Supreme Court did not inform defendant of the specific term of PRS it intended to impose. At sentencing, although Supreme Court mentioned PRS again, it did not pronounce a specific period of PRS. In September 2008—more than one year after defendant was released from prison—defendant returned to court and Supreme Court, in error, resentedenced him, adding a five-year period of PRS. The Double Jeopardy Clause of the Federal Constitution precludes a court from adding PRS to a defendant's sentence once the defendant has been released from imprisonment (*see People v Williams*, 14 NY3d 198, 217 [2010]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[931 NE2d 1053, 905 NYS2d 797]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PARIS SIMMONS, Appellant.

Argued June 3, 2010; decided June 24, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 4, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edwin Torres, J.), which had convicted defendant, upon a jury verdict, of attempted assault in the first degree, criminal possession of a weapon in the second degree, and assault in the second degree.

In a prosecution arising out of an altercation between defendant and the victim, who was ultimately shot, the jury sent the

court a note during deliberations requesting clarification of the element of intent for the charge of attempted assault in the first degree. The court replied with a supplemental instruction which included a hypothetical example. Defense counsel excepted to the instruction, asserting that the example was too close to the factual scenario being considered by the jury.

People v Simmons, 66 AD3d 292, affirmed.

HEADNOTE

Crimes — Instructions

In a prosecution for attempted murder, attempted assault and related charges arising from an altercation in which the victim was shot, although certain phrases in the trial court's supplemental instruction were inartfully worded, the trial court's response to a jury note, which inquired about the element of intent, did not usurp the role of the jurors. Viewing the problematic language in the broader context of the supplemental instruction and the jury charge as a whole, the court conveyed the proper legal standards and repeatedly advised the jury that it was the exclusive arbiter of the facts.

APPEARANCES OF COUNSEL

Office of the Appellate Defender, New York City (Valerie A. Koffman, Richard M. Greenberg and Joseph M. Nursey of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Aaron Ginandes and Grace Vee of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Although certain phrases in the trial court's supplemental instruction were inartfully worded, we are unpersuaded that the trial court's response to a jury note, which inquired about the element of intent, usurped the role of the jurors. Viewing the problematic language in the broader context of the supplemental instruction and the jury charge as a whole, the court conveyed the proper legal standards and repeatedly advised the jury that it was the exclusive arbiter of the facts.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[932 NE2d 876, 906 NYS2d 520]

LEONARD EIDLISZ, Respondent, v NEW YORK UNIVERSITY et al.,
Appellants.

Argued June 1, 2010; decided June 24, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 14, 2009. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Michael D. Stallman, J.; op 20 Misc 3d 1131[A], 2008 NY Slip Op 51690[U]), which had denied a motion by plaintiff for summary judgment and granted a cross motion by defendants for summary judgment dismissing the complaint, (2) denied defendants' cross motion, (3) granted plaintiff's motion, and (4) directed defendants to award plaintiff a degree and diploma and any authorizations he may need to take the dental boards.

Plaintiff, who began his studies with defendant dental school in 1993, was granted readmission to the school as a part-time student for the academic year 2002-2003. Plaintiff was initially overcharged tuition due to an admitted billing error by the school. Because of the error, the school mailed delinquency notices to plaintiff, and, in January 2003, mailed him a letter "de-enrolling" him. Plaintiff asserted that he never received any of those letters. In any event, notwithstanding the de-enrollment, plaintiff continued to attend courses and take final exams, which he passed. Eventually, after paying a corrected bill, plaintiff met with the school's academic advisor and learned of his de-enrollment for nonpayment of tuition. The school's associate dean subsequently rejected plaintiff's request for re-enrollment, and plaintiff instituted the instant action for breach of contract 11 months later.

Eidlisz v New York Univ., 61 AD3d 473, modified.

HEADNOTE

Colleges and Universities — Degrees

In a breach of contract action in which plaintiff sought an order compelling defendants to award him a degree, an order of the Appellate Division, which granted plaintiff summary judgment directing defendants to award plaintiff a degree and any authorizations required to take a licensing examination, was modified by denying plaintiff's motion for summary judgment. Defendants did not establish that they were entitled to the benefit of a statute of limitations

defense applicable to an article 78 proceeding, and there were issues of fact as to whether defendants' decision to deny plaintiff a degree was based on purely financial considerations, or whether academic considerations were involved. More information was necessary to ascertain whether there was an implied contract between the parties and, if so, whether the parties satisfied their respective obligations thereunder. If, however, defendants' decision was based upon plaintiff's academic performance, the action should have been brought as an article 78 proceeding and would be untimely.

APPEARANCES OF COUNSEL

Office of General Counsel, New York University, New York City (Nancy Kilson of counsel), for appellants.

Orans Elsen Lupert & Brown LLP, New York City (Robert L. Plotz and Leslie A. Lupert of counsel), for respondent.

Hogan & Hartson, LLP, New York City (R. Brian Black and Martin Michaelson of counsel), Ada Meloy, Washington, D.C., and Jessie Brown for American Council on Education and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by denying plaintiff's motion for summary judgment and, as so modified, affirmed.

In this breach of contract action, plaintiff seeks an order compelling defendants to award him a degree. Defendants maintain that this action should have been brought as a CPLR article 78 proceeding and is therefore time-barred. Plaintiff moved for summary judgment granting him specific performance, and defendants cross-moved for summary judgment dismissing the complaint. Supreme Court denied plaintiff's motion, granted defendants' cross motion, and dismissed the complaint. The court concluded that the case should have been brought as an article 78 proceeding and was untimely. The Appellate Division reversed, denied defendants' cross motion, granted plaintiff's motion, and directed defendants to award plaintiff a degree, diploma and any authorizations necessary to allow him to take the dental boards. This Court granted defendants leave to appeal.

The lower courts erred in reaching their respective conclusions. On this record, defendants have not established that they are entitled to the benefit of the statute of limitations defense applicable to an article 78 proceeding. Further, contrary to the determination of the Appellate Division, there are issues of fact

as to whether defendants' decision to deny plaintiff a degree was based on purely financial considerations, or whether academic considerations were involved. More information is necessary in order to ascertain whether there was an implied contract between the parties and, if so, whether the parties satisfied their respective obligations under such implied agreement. If, however, defendants' decision was in fact based upon plaintiff's academic performance, the action should have been brought as a proceeding under article 78, subject to review solely for arbitrariness or irrationality (see *Matter of Olsson v Board of Higher Educ. of City of N.Y.*, 49 NY2d 408, 413-414 [1980]), and would be untimely.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order modified, etc.

YASMIN KABIR, Respondent, v COUNTY OF MONROE et al., Appellants.

Submitted June 7, 2010; decided June 24, 2010

Reported below, 68 AD3d 1628.

Motion by County of Suffolk for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

SIMON LORNE et al., Appellants, v 50 MADISON AVENUE LLC et al., Defendants, and BOARD OF MANAGERS et al., Respondents.

Submitted April 12, 2010; decided June 24, 2010

Reported below, 65 AD3d 879.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v REYNALDO CONCEPCION, Appellant.

Submitted June 14, 2010; decided June 24, 2010

Reported below, 69 AD3d 956.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL DUHS, Appellant.

Submitted June 14, 2010; decided June 24, 2010

Reported below, 65 AD3d 699.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRELL GILFORD, Appellant.

Submitted June 21, 2010; decided June 24, 2010

Reported below, 65 AD3d 840.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RAYMOND B. GRIMM, Respondent.

Submitted June 14, 2010; decided June 24, 2010

Reported below, 69 AD3d 1231.

Motion for assignment of counsel granted and Jan Perlin, Esq., PO Box 134, Oak Hill, New York 12460 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
M. HARNETT, Appellant.

Submitted June 7, 2010; decided June 24, 2010

Reported below, 72 AD3d 232.

Motion for assignment of counsel granted and Brian M. Callahan, Esq., 4886 Western Turnpike, PO Box 100, Duanesburg, New York 12056 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWIN
JORGE, Appellant.

Submitted June 7, 2010; decided June 24, 2010

Reported below, 71 AD3d 604.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RONALD
MACK, Appellant.

Submitted June 14, 2010; decided June 24, 2010

Reported below, 65 AD3d 558.

Motion to enlarge the record on appeal herein granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
SCOTT, Appellant.

Submitted June 14, 2010; decided June 24, 2010

Reported below, 67 AD3d 1052.

Motion for assignment of counsel granted and Paul J. Connolly, Esq., 2 Wedge Road, Delmar, New York 12207 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH
STEPTER, Appellant.

Submitted June 14, 2010; decided June 24, 2010

Reported below, 67 AD3d 497.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS VENTURA, Appellant.

Submitted June 14, 2010; decided June 24, 2010

Reported below, 2009 NY Slip Op 82726(U).

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

In the Matter of JAMES RICHES et al., Appellants, v NEW YORK CITY COUNCIL et al., Respondents.

Decided June 24, 2010

Reported below, 75 AD3d 33.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (CPLR 5601 [a]).

STONEBRIDGE CAPITAL, LLC, Appellant, v NOMURA INTERNATIONAL PLC, Respondent, et al., Defendants. NOMURA INTERNATIONAL PLC, Counterclaim Plaintiff-Respondent, v STONEBRIDGE CAPITAL, LLC, et al., Counterclaim Defendants, and J.R. 1042 INVESTOR, LLC, et al., Counterclaim Defendants-Appellants.

Submitted March 8, 2010; decided June 24, 2010

Reported below, 68 AD3d 546.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CLAUDE NELSON STUART, a Suspended Attorney.

Decided June 24, 2010

Reported below, 2010 NY Slip Op 66316(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of INJAH E. TAFARI, Appellant, v DONALD SELSKY,
as Director of Special Housing and Inmate Disciplinary
Programs, Respondent.

Submitted May 10, 2010; decided June 24, 2010

Reported below, 2010 NY Slip Op 68590(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[933 NE2d 200, 906 NYS2d 802]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRIAN
S. KING, Appellant.

Argued June 3, 2010; decided June 29, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Genesee County Court (Robert C. Noonan, J.), entered March 27, 2009. The County Court affirmed a judgment of the Town Court of the Town of Batavia (Michael L. Cleveland, J.), which had convicted defendant, upon his plea of guilty, of driving while intoxicated.

At a hearing on defendant's motion to suppress there was evidence that defendant and a friend were riding their motorcycles together when they passed a state trooper heading in the opposite direction. Spotting a burned out tail light on the bike of defendant's companion, the trooper turned around, caught up with the pair and activated his lights to pull the companion over. Defendant stopped first; the companion circled around a parking lot and then came back and stopped near him. The trooper asked defendant if he had identification, but focused his attention on his companion. Although the trooper had no basis to stop or detain defendant, he did not tell him he was free to go and defendant stood by his motorcycle while the trooper

administered field sobriety tests to the companion. A deputy sheriff arrived, conversed with defendant, and told the trooper that defendant might be intoxicated. The state trooper asked a second state trooper arriving at the scene for assistance. The second trooper took defendant's identification and, after engaging in conversation with defendant, noticed a strong odor of alcohol coming from defendant. The second trooper then administered sobriety tests, and arrested defendant for driving while intoxicated.

County Court concluded that the trial court's denial of defendant's suppression motion was proper.

HEADNOTE

Crimes — Unlawful Search and Seizure — Traffic Stop

In a prosecution for driving while intoxicated arising out of defendant's operation of a motorcycle, an order of the County Court affirming defendant's conviction was reversed. County Court's findings that "the police had no cause to initially stop" defendant when a state trooper pulled over a motorcyclist with whom defendant was riding after noticing an equipment violation, and that "it cannot be concluded that defendant stopped voluntarily" had support in the record and were therefore beyond further review in the Court of Appeals. Accordingly, any evidence flowing from the stop should have been suppressed.

APPEARANCES OF COUNSEL

Michael M. Mohun, Cowlesville, for appellant.

Lawrence Friedman, District Attorney, Batavia (*William G. Zickl* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of County Court should be reversed, defendant's motion to suppress granted and the case remitted to Batavia Town Court for further proceedings on the accusatory instruments.

County Court's findings that "the police had no cause to initially stop" defendant and that "it cannot be concluded that defendant stopped voluntarily" have support in the record and are therefore beyond this Court's further review. Accordingly, any evidence flowing from the stop must be suppressed.

SMITH, J. (dissenting). The majority's three-sentence memorandum makes it appear as though deference to findings below

that are “beyond this Court’s further review” requires us to reverse the lower courts’ rulings. But those findings are quoted out of context. I think the facts found below require us to affirm.

Defendant and a friend were traveling together on their motorcycles. A state police officer saw that the friend’s motorcycle had a burned out tail light, and flashed his emergency lights. Presumably neither driver could tell which motorcycle the officer was flashing his lights at, but when defendant’s friend turned onto another street, the officer followed him; defendant stopped where he was, apparently waiting to see what happened to his friend.

Both the officer and defendant’s friend returned to where defendant was waiting, and defendant remained in that area for some time, without being told either to stay or to leave. The police officer was joined by others, one of whom noticed that defendant appeared to be intoxicated. Defendant was asked to perform several sobriety tests, which confirmed his intoxication, and he was arrested.

As far as I can deduce from the majority memorandum, these facts are the basis for its conclusion that “any evidence flowing from the stop must be suppressed” (majority op at 737). The conclusion makes no sense to me. I see no indication in this record that any police officer did anything wrong—and indeed, County Court found that “the police officer committed nothing illegal or unreasonable” in stopping defendant’s friend’s motorcycle. County Court did, as the majority says, find that defendant did not stop “voluntarily,” but it clearly did not find that the officer intentionally detained him. At most, the stop was involuntary in the same way that it would be if defendant had been stopped by a flat tire—or, to use County Court’s own analogy, if he had been a passenger in a motor vehicle that was stopped because of a traffic infraction by the driver. No right of defendant’s was violated, and there is no reason to suppress the evidence against him.

Chief Judge LIPPMAN and Judges CIPARICK, PIGOTT and JONES concur in memorandum; Judge SMITH dissents and votes to affirm in a separate opinion in which Judges GRAFFEO and READ concur.

Order reversed, etc.

[934 NE2d 309, 907 NYS2d 740]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
RAHJEEM WILLIAMS, Appellant.

Argued June 3, 2010; decided June 29, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 14, 2009. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Raymond L. Bruce, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree.

People v Williams, 61 AD3d 470, affirmed.

HEADNOTE

Crimes — Right to be Present at Trial — Waiver

Defendant, who was convicted of a drug offense following a jury trial, waived his right to be present at conferences with potential jurors to explore issues of possible bias. Defense counsel stated that he had described defendant's *Antommarchi* right to be present (see *People v Antommarchi*, 80 NY2d 247 [1992]) to him, and the trial judge repeatedly indicated that defendant had a right to be present at various stages of the proceedings. Defendant was aware when prospective jurors were being questioned in the deliberation room about possible bias and never objected or requested to participate. While the better practice would be to note that *Antommarchi* rights relate to the right to be present at conferences with potential jurors regarding issues of bias, the statements of the judge and surrounding circumstances supported the inference that defendant understood and waived his right to be present at such conferences.

APPEARANCES OF COUNSEL

Office of the Appellate Defender, New York City (Rosemary Herbert and Richard M. Greenberg of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (Noah J. Chamoy and Joseph N. Ferdenzi of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

In this buy-and-bust case, defendant Rahjeem Williams was arrested and charged with various drug-related offenses. A jury subsequently convicted him of third-degree criminal possession of a controlled substance (Penal Law § 220.16), and hung on the second count submitted to it, third-degree criminal sale of a

controlled substance (Penal Law § 220.39). Defendant, who was sentenced to a term of 4½ to 9 years of imprisonment, argues that he did not waive his *Antommarchi* right to be present at conferences with potential jurors to explore issues of possible bias (see *People v Antommarchi*, 80 NY2d 247 [1992]; see also *People v Vargas*, 88 NY2d 363, 375-376 [1996] [“(T)he right to be present at sidebars . . . may be waived by a voluntary, knowing and intelligent choice” (citations omitted)]).

During the pretrial suppression hearing, defense counsel stated that he had described defendant’s *Antommarchi* rights to him. The trial judge immediately followed up by telling defendant that “[i]f we ever have any sidebars or if at any time I’m talking to both of the attorneys[,] you have an absolute right to be present at that time[.] I’m sure that your counsel has explained that to you.” Further, defendant was in the courtroom when the trial judge outlined the procedures that he intended to use during jury selection, and watched on the several occasions when the judge and both counsel retired to the jury deliberation room with prospective jurors. Thus, defendant was certainly aware when prospective jurors were being questioned in the deliberation room about possible bias, and never objected or requested to participate. Moreover, the judge reminded defendant of his right to be present at such conferences. At one juncture, he advised defendant, as a “continuing point of information,” that if “[a]t any time” he discussed any topic with counsel, defendant was “more than welcome[] to be present,” adding that he was “sure that [was] . . . something” that defendant had discussed with his attorney. Defendant responded “Correct.” As the Appellate Division remarked, “[w]hile the [trial] court articulated a right to be present that was broader than the law requires, its statement necessarily included the rights guaranteed by *Antommarchi*, and the surrounding circumstances support the inference that defendant understood and waived those rights” (61 AD3d 470, 471 [1st Dept 2009]). The better practice, of course, is to note that *Antommarchi* rights relate to the right to be present at conferences with potential jurors regarding issues of bias; however, we agree with the Appellate Division that, on this record, defendant waived his right to be present at such conferences.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

ANDREWS, PUSATERI, BRANDT, SHOEMAKER & ROBERSON, P.C., et al., Appellants, v NIAGARA COUNTY SEWER DISTRICT NO. 1 et al., Respondents.

Submitted May 10, 2010; decided June 29, 2010

Reported below, 71 AD3d 1374.

Motion, insofar as it seeks leave to appeal against defendant Niagara County, dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal against defendant Niagara County Sewer District No. 1, denied.

In the Matter of SOHEIL DARVISH, Respondent, v HASLACHA, INC., et al., Respondents, and DAVID LAVIAN, Appellant.

Submitted May 10, 2010; decided June 29, 2010

Reported below, 2009 NY Slip Op 85595(U); 2010 NY Slip Op 65273(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

MAHMOUD DIARASSOUBA, Respondent, v WILLIAM P. URBAN et al., Defendants, and SPENCER LUBIN et al., Appellants.

Submitted May 24, 2010; decided June 29, 2010

Reported below, 71 AD3d 51.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANDRE DOLBERRY, Also Known as ANDRE DUBERRY, Appellant, v STATE OF NEW YORK, Respondent.

Decided June 29, 2010

Reported below, 71 AD3d 948.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of NATHANIEL DOVE, JR., Respondent, v KATRICE M. ROSE, Appellant, et al., Respondent.

Submitted May 10, 2010; decided June 29, 2010

Reported below, 71 AD3d 1411, 1413.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed Family Court's order settling the record on appeal, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of JOHNNY DOWNS, Appellant, v NEW YORK STATE EXECUTIVE DEPARTMENT et al., Respondents.

Submitted May 17, 2010; decided June 29, 2010

Reported below, 2010 NY Slip Op 69819(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

STEPHEN DOWNS, Appellant, v TOWN OF GUILDERLAND et al., Respondents.

Decided June 29, 2010

Reported below, 70 AD3d 1228.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

HAMLET ON OLDE OYSTER BAY HOME OWNERS ASSOCIATION, INC., et al., Appellants, v HOLIDAY ORGANIZATION, INC., et al., Respondents, et al., Defendants.

Submitted April 19, 2010; decided June 29, 2010

Reported below, 65 AD3d 1284.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the

order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PATRICIA HORST, Respondent, v OWEN LLOYD BROWN, Appellant.

Decided June 29, 2010

Reported below, 72 AD3d 434.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

CONSTANTINEE L. JACKSON, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 17, 2010; decided June 29, 2010

Reported below, 2010 NY Slip Op 60312(U).

Motion for reconsideration of this Court's April 6, 2010 dismissal order denied [*see* 14 NY3d 825 (2010)].

LT PROPCO, LLC, Appellant, v CAROUSEL CENTER COMPANY, L.P., et al., Respondents. (And Other Actions.)

Submitted May 10, 2010; decided June 29, 2010

Reported below, 68 AD3d 1695, 1696, 1697.

Motion, insofar as it seeks leave to appeal as against defendant Carousel Center Company, L.P., dismissed as untimely; motion, insofar as it seeks leave to appeal as against defendant City of Syracuse Industrial Development Agency, denied.

Judge PIGOTT taking no part.

LT PROPCO, LLC, Appellant, v CAROUSEL CENTER COMPANY, L.P., et al., Respondents. (And Other Actions.)

Submitted May 17, 2010; decided June 29, 2010

Reported below, 68 AD3d 1695, 1696, 1697.

Motion for leave to appeal dismissed upon the ground that appellant has moved in the Court of Appeals for leave to appeal

from the same Appellate Division orders (*see* 15 NY3d 743 [2010] [decided herewith]).

Judge PIGOTT taking no part.

JENNIFER MOORE et al., Appellants, v CITY OF NEW YORK et al.,
Respondents.

Decided June 29, 2010

Reported below, 68 AD3d 946.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of LEON NEWMAN et al., Appellants, et al.,
Petitioner, v ERIC R. DINALLO, Superintendent, Insurance
Department of the State of New York, Respondent.

Submitted May 24, 2010; decided June 29, 2010

Reported below, 69 AD3d 636.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 14 NY3d 708 (2010)].

PENGUIN GROUP (USA) INC., Appellant, v AMERICAN BUDDHA,
Respondent.

Decided June 29, 2010

See 609 F3d 30.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* CHAYMARL CORMIER, Appellant, *v* JAMES T. CONWAY, Superintendent, Attica Correctional Facility, Respondent.

Submitted May 17, 2010; decided June 29, 2010

Motion for leave to appeal dismissed upon the ground that this motion for leave to appeal does not lie from the order of the individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* JOHNATHAN JOHNSON, Appellant, *v* BRIAN FISCHER, as Commissioner of Correctional Services, et al., Respondents.

Submitted May 17, 2010; decided June 29, 2010

Reported below, 69 AD3d 1100.

Motion for reargument of motion for leave to appeal denied [*see* 14 NY3d 707 (2010)].

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* SCOTT MEBANE, Appellant, *v* DARWIN E. LACLAIR, as Superintendent of Franklin Correctional Facility, Respondent.

Submitted May 17, 2010; decided June 29, 2010

Reported below, 70 AD3d 1075.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion for leave to appeal denied.

RANDY RATAJCZAK, as Administrator of the Estate of MARY RATAJCZAK, Respondent, *v* MAHMOOD YOONESSI, M.D., et al., Appellants. (And a Third-Party Action.)

Submitted May 17, 2010; decided June 29, 2010

Reported below, 2009 NY Slip Op 90199(U).

Motion for reargument etc. denied [*see* 14 NY3d 795 (2010)]. Motion, insofar as it seeks disqualification of Chief Judge Lippman, dismissed upon the ground that the Court of Appeals has

no authority to entertain the motion made on nonstatutory grounds. The application seeking recusal is referred to the Chief Judge for his individual consideration and determination. Chief Judge Lippman denies the referred motion for recusal.

WESTERN NEW YORK LAND CONSERVANCY, INC., Respondent, v
JOHN S. CULLEN et al., Appellants.

Submitted May 3, 2010; decided June 29, 2010

Reported below, 66 AD3d 1461.

Motion for reargument of motion for leave to appeal denied
[see 14 NY3d 705 (2010)].

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(June 1, 2010 through June 30, 2010)

Nyenekor, Matter of, v Tarig 2d Dept: 65 AD3d 1049 6/10/10

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2010 through June 30, 2010)

People v Abdus-Samad	1st Dept: 69 AD3d 516 (NY)	denied 6/8/10 (Grafteo, J.)
People v Abrams	3d Dept: 73 AD3d 1225 (Ulster)	granted 6/29/10 (Ciparick, J.)
People v Abreu	1st Dept: 71 AD3d 534 (Bronx)	denied 6/7/10 (Lippman, Ch. J.)
People v Albergotti	1st Dept: 72 AD3d 401 (NY)	granted 6/10/10 (Pigott, J.)
People v Alexander	1st Dept: 72 AD3d 559 (NY)	denied 6/29/10 (Grafteo, J.)
People v Allen	2d Dept: 71 AD3d 778 (Suffolk)	denied 6/15/10 (Jones, J.)
People v Alonso (Emilia)	2d Dept: 70 AD3d 957 (Westchester)	granted 6/10/10 (Smith, J.)
People v Alonso (Robert)	2d Dept: 70 AD3d 957 (Westchester)	granted 6/10/10 (Smith, J.)
People v Amaker	2d Dept: 70 AD3d 846 (Kings)	denied 6/15/10 (Jones, J.)
People v “Animal”	4th Dept: 72 AD3d 1615 (Erie)	denied 6/23/10 (Pigott, J.)

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People v B	3d Dept: 72 AD3d 1280 (Columbia)	denied 6/29/10 (Grafteo, J.)
People v Barnes (Theodore)	1st Dept: 72 AD3d 516 (NY)	denied 6/16/10 (Pigott, J.)
People v Barnes (Thomas)	App Term, 1st Dept, 4/15/10 (NY)	denied 6/30/10 (Lippman, Ch. J.)
People v Barnes (Tommy)	App Term, 1st Dept, 4/15/10 (NY)	denied 6/30/10 (Lippman, Ch. J.)
People v Beck	App Term, 1st Dept: 26 Misc 3d 42 (NY)	denied 6/9/10 (Read, J.)
People v Becker (Lee)	3d Dept: 72 AD3d 1290 (Schenectady)	denied 6/29/10 (Ciparick, J.)
People v Becker (Leslie)	3d Dept: 72 AD3d 1290 (Schenectady)	denied 6/29/10 (Ciparick, J.)
People v Benston	1st Dept: 70 AD3d 479 (Bronx)	granted 6/9/10 (Lippman, Ch. J.)
People v Bezjak	App Term, 1st Dept: 26 Misc 3d 130(A) (NY)	denied 6/9/10 (Read, J.)
People v Big Homie	3d Dept: 71 AD3d 1228 (Albany)	denied 6/8/10 (Grafteo, J.)
People v Black	3d Dept: 71 AD3d 1340 (Albany)	denied 6/11/10 (Smith, J.)
People v Bolarinwa	App Div, 3d Dept: 2010 NY Slip Op 65353(U) (Albany)	dismissed ¹ 6/8/10 (Lippman, Ch. J.)
People v Booker (Lance)	App Div, 3d Dept: 2010 NY Slip Op 63749(U) (Rensselaer)	denied 6/30/10 (Lippman, Ch. J.)
People v Booker (Ollie)	App Term, 2d Dept: 27 Misc 3d 135(A) (Suffolk)	denied 6/11/10 (Grafteo, J.)
People v Boyde	4th Dept: 71 AD3d 1442 (Monroe)	denied 6/24/10 (Pigott, J.)
People v Brannon	1st Dept: 60 AD3d 498 (NY)	granted 6/15/10 (Read, J.)
People v Bravo	2d Dept: 72 AD3d 697 (Rockland)	denied 6/18/10 (Lippman, Ch. J.)
People v Brewster	2d Dept: 69 AD3d 750 (Queens)	denied 6/9/10 (Read, J.)
People v Brink	4th Dept: 68 AD3d 1824 (Monroe)	denied 6/29/10 (Lippman, Ch. J.)
People v Brown (D'Andre)	2d Dept: 70 AD3d 960 (Queens)	denied 6/30/10 (Lippman, Ch. J.)
People v Brown (James)	2d Dept: 73 AD3d 940 (Queens)	denied 6/29/10 (Grafteo, J.)
People v Brown (Jeremiah)	2d Dept: 67 AD3d 819 (Kings)	denied 6/29/10 (Lippman, Ch. J.)
People v Brown (Torrell)	2d Dept: 71 AD3d 1043 (Kings)	denied 6/16/10 (Pigott, J.)

1. Dismissed upon the ground that an application for the same relief has already been made to a Justice of the Appellate Division (CPL 460.20; *People v McCarthy*, 250 NY 358, 361 [1929]).

People v Brun (Raymond)	2d Dept: 58 AD3d 862 (Nassau)	denied ² 6/18/10 (Jones, J.)
People v Brun (Raymond)	2d Dept: 64 AD3d 611 (Nassau)	granted 6/18/10 (Jones, J.)
People v Brunson	3d Dept: 68 AD3d 1551 (Franklin)	denied 6/9/10 (Read, J.)
People v Burgos	2d Dept: 71 AD3d 1157 (Kings)	denied 6/16/10 (Pigott, J.)
People v Bush	App Div, 3d Dept: 2009 NY Slip Op 92813(U) (Tompkins)	denied reconsideration 6/23/10 (Smith, J.)
People v Calloway	4th Dept: 71 AD3d 1493 (Monroe)	denied 6/23/10 (Pigott, J.)
People v Campbell (Michael)	2d Dept: 69 AD3d 645 (Dutchess)	denied 6/9/10 (Read, J.)
People v Campbell (Rohan)	1st Dept: 71 AD3d 404 (Bronx)	denied 6/8/10 (Smith, J.)
People v Campbell (Ronald)	App Div, 3d Dept: 2009 NY Slip Op 91810(U) (Madison)	dismissed 6/23/10 (Pigott, J.)
People v Carfora	2d Dept: 69 AD3d 751 (Suffolk)	denied reconsideration 6/8/10 (Grafteo, J.)
People v Caroselli	App Div, 2d Dept: 2010 NY Slip Op 68138(U) (Kings)	dismissed 6/4/10 (Ciparick, J.)
People v Carta	App Term, 1st Dept: 26 Misc 3d 130(A) (NY)	denied 6/9/10 (Read, J.)
People v Champagne	1st Dept: 72 AD3d 557 (NY)	denied 6/8/10 (Grafteo, J.)
People v Chance	1st Dept: 71 AD3d 563 (NY)	denied 6/29/10 (Grafteo, J.)
People v Chaney	3d Dept: 70 AD3d 1251 (Schenectady)	denied 6/29/10 (Grafteo, J.)
People v Charlotten	County Ct, 4/27/10 (Albany)	denied 6/29/10 (Grafteo, J.)
People v Cintron	2d Dept: 72 AD3d 699 (Kings)	denied 6/29/10 (Ciparick, J.)
People v Cobb	2d Dept: 71 AD3d 781 (Queens)	denied 6/17/10 (Lippman, Ch. J.)
People v Coleman	1st Dept: 69 AD3d 430 (NY)	denied 6/16/10 (Lippman, Ch. J.)
People v Collin D.O.	4th Dept: 71 AD3d 1476 (Monroe)	denied 6/30/10 (Lippman, Ch. J.)
People v Collins	App Div, 2d Dept: 2010 NY Slip Op 68140(U) (Kings)	dismissed 6/23/10 (Lippman, Ch. J.)
People v Conklin	2d Dept: 71 AD3d 690 (Orange)	denied 6/15/10 (Jones, J.)
People v Crampe	App Term, 2d Dept: 26 Misc 3d 144(A) (Suffolk)	granted 6/15/10 (Pigott, J.)

². Denied with leave to renew within 30 days after the Court of Appeals decides the appeal from the Appellate Division order dated July 7, 2009 (64 AD3d 611 [2009]).

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People v Curtis	2d Dept: 71 AD3d 1044 (Dutchess)	denied 6/8/10 (Smith, J.)
People v Dale	4th Dept: 71 AD3d 1517 (Livingston)	denied 6/8/10 (Grafteo, J.)
People v Darby (Leroy)	3d Dept: 72 AD3d 1280 (Columbia)	denied 6/29/10 (Grafteo, J.)
People v Darby (William)	3d Dept: 72 AD3d 1280 (Columbia)	denied 6/29/10 (Grafteo, J.)
People v Dawson	4th Dept: 71 AD3d 1490 (Genesee)	denied 6/8/10 (Smith, J.)
People v Dismel	2d Dept: 70 AD3d 962 (Kings)	denied 6/9/10 (Read, J.)
People v Drayton	1st Dept: 70 AD3d 595 (NY)	denied 6/18/10 (Lippman, Ch. J.)
People v Duquin	4th Dept: 71 AD3d 1462 (Erie)	denied 6/8/10 (Lippman, Ch. J.)
People v Duvall	4th Dept: 70 AD3d 1351 (Monroe)	denied 6/15/10 (Jones, J.)
People v E	3d Dept: 72 AD3d 1279 (Albany)	denied 6/17/10 (Ciparick, J.)
People v Edwards (Keith)	2d Dept: 69 AD3d 755 (Queens)	denied 6/8/10 (Lippman, Ch. J.)
People v Edwards (Raheem)	2d Dept: 70 AD3d 849 (Kings)	denied 6/9/10 (Read, J.)
People v English	1st Dept: 72 AD3d 488 (NY)	denied 6/16/10 (Pigott, J.)
People v Evanson	2d Dept: 71 AD3d 782 (Kings)	denied 6/16/10 (Ciparick, J.)
People v Facen (Dorian)	4th Dept: 67 AD3d 1478 (Erie)	denied reconsideration 6/9/10 (Grafteo, J.)
People v Facen (Dorian)	4th Dept: 67 AD3d 1479 (Erie)	denied ³ 6/9/10 (Grafteo, J.)
People v Facen (Dorian)	4th Dept: 67 AD3d 1480 (Erie)	denied reconsideration 6/9/10 (Grafteo, J.)
People v Facen (Dorian)	4th Dept: 71 AD3d 1410 (Erie)	denied 6/9/10 (Grafteo, J.)
People v Facen (Dorian)	4th Dept: 71 AD3d 1411 (Erie)	denied 6/9/10 (Grafteo, J.)
People v Felix	App Term, 1st Dept: 26 Misc 3d 146(A) (NY)	denied 6/8/10 (Smith, J.)
People v Fernandez	1st Dept: 60 AD3d 549 (NY)	granted 6/15/10 (Read, J.)
People v Fitzpatrick	App Term, 1st Dept: 26 Misc 3d 130(A) (NY)	denied 6/9/10 (Read, J.)

3. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Jordan* (65 AD3d 428 [2009], *lv granted* 13 NY3d 908 [2009]).

People v Forte	2d Dept: 70 AD3d 963 (Westchester)	denied 6/9/10 (Read, J.)
People v Fortune	App Div, 2d Dept: 2009 NY Slip Op 91122(U) (Kings)	denied 6/9/10 (Read, J.)
People v Foster	4th Dept: 72 AD3d 1652 (Jefferson)	dismissed 6/8/10 (Lippman, Ch. J.)
People v Friedman	App Div, 2d Dept: 2010 NY Slip Op 69064(U) (Queens)	dismissed 6/15/10 (Read, J.)
People v Garcia (Edwin)	App Div, 1st Dept: 2009 NY Slip Op 88960(U) (Bronx)	denied 6/9/10 (Read, J.)
People v Garcia (Rodriguece)	1st Dept: 71 AD3d 555 (Bronx)	granted 6/30/10 (Lippman, Ch. J.)
People v Garson (Gerald)	2d Dept: 69 AD3d 650 (Kings)	denied 6/9/10 (Pigott, J.)
People v Garson (Gerald)	2d Dept: 69 AD3d 650 (Kings)	dismissed 6/9/10 (Pigott, J.)
People v Giarletta	2d Dept: 72 AD3d 838 (Richmond)	denied 6/17/10 (Smith, J.)
People v Gilkeson	4th Dept: 70 AD3d 1518 (Onondaga)	denied reconsideration 6/29/10 (Grafteo, J.)
People v Gilleo	2d Dept: 70 AD3d 1049 (Dutchess)	denied 6/23/10 (Pigott, J.)
People v Gillespie	App Div, 1st Dept: 2010 NY Slip Op 64555(U) (NY)	dismissed 6/11/10 (Grafteo, J.)
People v Gillums	2d Dept: 71 AD3d 784 (Queens)	denied 6/15/10 (Jones, J.)
People v Goddard	2d Dept: 72 AD3d 839 (Kings)	denied 6/22/10 (Lippman, Ch. J.)
People v Gonzalez	1st Dept: 71 AD3d 472 (NY)	denied 6/30/10 (Lippman, Ch. J.)
People v Goodwine	2d Dept: 71 AD3d 1159 (Westchester)	denied 6/29/10 (Grafteo, J.)
People v Greene	3d Dept: 72 AD3d 1279 (Albany)	denied 6/17/10 (Ciparick, J.)
People v Griffin	2d Dept: 70 AD3d 1051 (Kings)	denied 6/9/10 (Read, J.)
People v Guay	3d Dept: 72 AD3d 1201 (Clinton)	granted 6/16/10 (Ciparick, J.)
People v Hall	App Div, 1st Dept: 2010 NY Slip Op 72920(U) (NY)	dismissed 6/30/10 (Jones, J.)
People v Hamer	1st Dept: 69 AD3d 484 (NY)	denied 6/30/10 (Lippman, Ch. J.)
People v Haque	2d Dept: 70 AD3d 967 (Queens)	denied 6/9/10 (Read, J.)
People v Hartz	App Term, 1st Dept: 26 Misc 3d 130(A) (NY)	denied 6/9/10 (Read, J.)
People v Harvey	4th Dept: 70 AD3d 1454 (Monroe)	denied 6/30/10 (Lippman, Ch. J.)

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People v Hawkins	3d Dept: 72 AD3d 1209 (Sullivan)	denied 6/8/10 (Grafteo, J.)
People v Hayes (Kenneth)	1st Dept: 72 AD3d 441 (NY)	granted 6/17/10 (Ciparick, J.)
People v Hayes (Robert)	4th Dept: 71 AD3d 1477 (Onondaga)	denied 6/8/10 (Pigott, J.)
People v Haynes	2d Dept: 70 AD3d 718 (Suffolk)	denied 6/23/10 (Pigott, J.)
People v Heath	2d Dept: 70 AD3d 857 (Kings)	denied 6/29/10 (Lippman, Ch. J.)
People v Heinegg	App Term, 1st Dept: 26 Misc 3d 42 (NY)	denied 6/9/10 (Read, J.)
People v Henderson	2d Dept: 71 AD3d 785 (Kings)	denied 6/30/10 (Lippman, Ch. J.)
People v Hernandez (Alexander)	4th Dept: 71 AD3d 1501 (Monroe)	denied 6/9/10 (Smith, J.)
People v Hernandez (Carlos)	1st Dept: 72 AD3d 496 (NY)	denied 6/8/10 (Grafteo, J.)
People v Hernandez (Octavio)	App Div, 3d Dept: 2010 NY Slip Op 64875(U) (Sullivan)	dismissed 6/23/10 (Smith, J.)
People v Hill	2d Dept: 72 AD3d 702 (Westchester)	denied 6/29/10 (Grafteo, J.)
People v Holifield	4th Dept: 66 AD3d 1498 (Onondaga)	denied 6/16/10 (Ciparick, J.)
People v Hooker	2d Dept: 71 AD3d 1160 (Kings)	denied 6/17/10 (Grafteo, J.)
People v Horan	App Div, 2d Dept: 2010 NY Slip Op 68138(U) (Kings)	dismissed 6/4/10 (Ciparick, J.)
People v Hospedales	2d Dept: 71 AD3d 916 (Kings)	denied 6/18/10 (Ciparick, J.)
People v Howard	4th Dept: 71 AD3d 1443 (Monroe)	denied 6/30/10 (Lippman, Ch. J.)
People v Hunter	4th Dept: 70 AD3d 1388 (Onondaga)	denied 6/16/10 (Lippman, Ch. J.)
People v Ingram	2d Dept: 71 AD3d 786 (Kings)	denied 6/30/10 (Lippman, Ch. J.)
People v Innocente	App Term, 2d Dept: 25 Misc 3d 141(A) (Suffolk)	denied 6/30/10 (Lippman, Ch. J.)
People v Jackson (Skyler)	2d Dept: 70 AD3d 858 (Dutchess)	denied reconsideration 6/29/10 (Grafteo, J.)
People v Jackson (Tyrone)	App Div, 1st Dept: 2009 NY Slip Op 60044(U) (NY)	leave denied upon reconsideration 6/17/10 (Pigott, J.)
People v Jacob	1st Dept: 70 AD3d 486 (Bronx)	denied 6/8/10 (Grafteo, J.)
People v Jalil	County Ct, 4/2/10 (Monroe)	denied 6/29/10 (Grafteo, J.)

People v James	2d Dept: 72 AD3d 844 (Queens)	denied 6/29/10 (Ciparick, J.)
People v Jiminez	1st Dept: 71 AD3d 483 (Bronx)	denied 6/30/10 (Ciparick, J.)
People v Johnson (Emmanuel)	4th Dept: 67 AD3d 1457 (Onondaga)	denied reconsideration 6/29/10 (Ciparick, J.)
People v Johnson (William)	2d Dept: 71 AD3d 1048 (Richmond)	denied 6/8/10 (Smith, J.)
People v Johnston	4th Dept: 71 AD3d 1507 (Monroe)	denied 6/16/10 (Pigott, J.)
People v Jones (David)	4th Dept: 70 AD3d 1511 (Onondaga)	denied 6/9/10 (Read, J.)
People v Jones (Davon)	4th Dept: 72 AD3d 1615 (Erie)	denied 6/23/10 (Pigott, J.)
People v Jones (Kyle)	App Term, 1st Dept: 26 Misc 3d 130(A) (NY)	denied 6/9/10 (Read, J.)
People v Joshua	1st Dept: 70 AD3d 515 (NY)	denied 6/30/10 (Lippman, Ch. J.)
People v Josue St. J.	2d Dept: 71 AD3d 924 (Rockland)	denied 6/15/10 (Jones, J.)
People v Jung Hwan Cha	2d Dept: 71 AD3d 1162 (Queens)	denied 6/10/10 (Pigott, J.)
People v Kelley	2d Dept: 73 AD3d 809 (Suffolk)	denied 6/29/10 (Smith, J.)
People v Kelly	2d Dept: 69 AD3d 881 (Orange)	denied 6/30/10 (Lippman, Ch. J.)
People v Kennedy	2d Dept: 69 AD3d 881 (Suffolk)	denied 6/17/10 (Ciparick, J.)
People v Kent	2d Dept: 71 AD3d 1162 (Nassau)	denied 6/8/10 (Pigott, J.)
People v Koziol	County Ct, 3/3/10 (Delaware)	denied 6/18/10 (Ciparick, J.)
People v Krause	4th Dept: 71 AD3d 1506 (Monroe)	denied 6/16/10 (Pigott, J.)
People v Laigo	2d Dept: 70 AD3d 970 (Nassau)	denied 6/9/10 (Read, J.)
People v Largue	2d Dept: 71 AD3d 1049 (Nassau)	denied 6/17/10 (Grafteo, J.)
People v Lee	App Div, 4th Dept, 4/27/10 (Erie)	dismissed 6/29/10 (Grafteo, J.)
People v Leibert	1st Dept: 71 AD3d 513 (NY)	denied 6/9/10 (Smith, J.)
People v Leno-March	4th Dept: 70 AD3d 1315 (Ontario)	denied 6/8/10 (Lippman, Ch. J.)
People v Lewis (Leo)	2d Dept: 72 AD3d 705 (Rockland)	denied 6/9/10 (Smith, J.)
People v Lewis (Morris)	3d Dept: 70 AD3d 1068 (Saratoga)	denied 6/9/10 (Read, J.)
People v Lewis (Travis)	4th Dept: 71 AD3d 1441 (Monroe)	denied 6/11/10 (Smith, J.)

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People v Llanos	App Term, 1st Dept: 26 Misc 3d 131(A) (NY)	denied 6/18/10 (Lippman, Ch. J.)
People v Lopez	4th Dept: 71 AD3d 1518 (Monroe)	denied 6/11/10 (Smith, J.)
People v Loret	4th Dept: 71 AD3d 1547 (Monroe)	denied 6/9/10 (Smith, J.)
People v "Luck"	4th Dept: 71 AD3d 1574 (Erie)	denied 6/18/10 (Ciparick, J.)
People v Madison	4th Dept: 71 AD3d 1422 (Onondaga)	denied 6/15/10 (Jones, J.)
People v Marston	2d Dept: 71 AD3d 789 (Kings)	denied 6/29/10 (Smith, J.)
People v Martin (Reality)	2d Dept: 71 AD3d 917 (Kings)	granted 6/15/10 (Grafteo, J.)
People v Martin (Roy)	2d Dept: 71 AD3d 917 (Kings)	granted 6/15/10 (Grafteo, J.)
People v Martinez	2d Dept: 69 AD3d 758 (Westchester)	denied 6/9/10 (Read, J.)
People v Mason	3d Dept: 66 AD3d 1225 (Albany)	denied 6/16/10 (Lippman, Ch. J.)
People v Mastowski	App Div, 4th Dept, 4/14/10 (Ontario)	dismissed 6/15/10 (Pigott, J.)
People v Mateo	4th Dept: 70 AD3d 1331 (Monroe)	denied 6/29/10 (Lippman, Ch. J.)
People v Mathsen	2d Dept: 70 AD3d 724 (Rockland)	denied 6/30/10 (Lippman, Ch. J.)
People v McKnight	2d Dept: 72 AD3d 846 (Kings)	granted 6/25/10 (Lippman, Ch. J.)
People v McLaughlin (Jonah)	1st Dept: 71 AD3d 576 (NY)	denied 6/16/10 (Pigott, J.)
People v McLaughlin (Samuel)	4th Dept: 72 AD3d 1602 (Niagara)	denied 6/30/10 (Lippman, Ch. J.)
People v Mebane	2d Dept: 70 AD3d 724 (Nassau)	denied 6/15/10 (Jones, J.)
People v Melchor	App Term, 1st Dept, 26 Misc 3d 42 (NY)	denied 6/9/10 (Read, J.)
People v Melendez (Jason)	2d Dept: 71 AD3d 1166 (Orange)	denied 6/17/10 (Ciparick, J.)
People v Melendez (Pedro)	1st Dept: 71 AD3d 530 (Bronx)	granted 6/10/10 (Pigott, J.)
People v Mena	1st Dept: 71 AD3d 475 (NY)	denied 6/10/10 (Pigott, J.)
People v Mendez (Pedrito)	1st Dept: 69 AD3d 445 (NY)	denied 6/29/10 (Lippman, Ch. J.)
People v Mendez (Ricardo)	2d Dept: 71 AD3d 696 (Kings)	denied 6/18/10 (Ciparick, J.) (Case No. 67)
People v Mendez (Ricardo)	2d Dept: 71 AD3d 696 (Kings)	denied 6/18/10 (Ciparick, J.) (Case No. 68)

People v Milczakowskyj	4th Dept: 73 AD3d 1453 (Cayuga)	denied 6/29/10 (Grafteo, J.)
People v Miller	2d Dept: 68 AD3d 1134 (Nassau)	denied 6/23/10 (Pigott, J.)
People v Mills (Richard)	4th Dept: 68 AD3d 1823 (Genesee)	denied reconsideration 6/23/10 (Smith, J.)
People v Mills (Richard)	4th Dept: 70 AD3d 1518 (Genesee)	denied reconsideration 6/23/10 (Smith, J.) (Case No. 246)
People v Mills (Richard)	4th Dept: 70 AD3d 1518 (Genesee)	denied reconsideration 6/23/10 (Smith, J.) (Case No. 247)
People v Minter	3d Dept: 71 AD3d 1335 (Albany)	denied 6/10/10 (Pigott, J.)
People v Mitchell	2d Dept: 71 AD3d 919 (Queens)	denied 6/10/10 (Pigott, J.)
People v Montero	2d Dept: 70 AD3d 971 (Kings)	denied 6/15/10 (Jones, J.)
People v Morrison	3d Dept: 71 AD3d 1228 (Albany)	denied 6/8/10 (Grafteo, J.)
People v Moss	2d Dept: 67 AD3d 1027 (Nassau)	denied 6/11/10 (Smith, J.)
People v Muriello	2d Dept: 71 AD3d 1050 (Queens)	denied 6/29/10 (Grafteo, J.)
People v Murphy	4th Dept: 71 AD3d 1466 (Erie)	denied 6/8/10 (Grafteo, J.)
People v Nash (Lester)	3d Dept: 69 AD3d 1113 (Broome)	denied 6/9/10 (Read, J.)
People v Nash (Reeseie)	4th Dept: 72 AD3d 1578 (Erie)	denied 6/29/10 (Grafteo, J.)
People v Neal	3d Dept: 72 AD3d 1280 (Columbia)	denied 6/29/10 (Grafteo, J.)
People v Neason	4th Dept: 72 AD3d 1615 (Erie)	denied 6/23/10 (Pigott, J.)
People v Newbern (Jamaica)	4th Dept: 72 AD3d 1590 (Erie)	denied 6/17/10 (Smith, J.) (Appeal No. 1)
People v Newbern (Jamaica)	4th Dept: 72 AD3d 1590 (Erie)	denied 6/17/10 (Smith, J.) (Appeal No. 2)
People v Newman	4th Dept: 71 AD3d 1509 (Monroe)	denied 6/18/10 (Ciparick, J.)
People v Ninja	App Div, 3d Dept: 2010 NY Slip Op 63749(U) (Rensselaer)	denied 6/30/10 (Lippman, Ch. J.)
People v Nix	4th Dept: 71 AD3d 1505 (Erie)	denied 6/15/10 (Pigott, J.)

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People v Oakley	4th Dept: 71 AD3d 1479 (Monroe)	denied 6/30/10 (Lippman, Ch. J.)
People v Odum	4th Dept: 67 AD3d 1465 (Onondaga)	leave denied upon reconsideration 6/30/10 (Jones, J.)
People v Oquendo	2d Dept: 71 AD3d 1052 (Suffolk)	denied 6/18/10 (Lippman, Ch. J.)
People v Oram	App Term, 1st Dept: 26 Misc 3d 130(A) (NY)	denied 6/9/10 (Read, J.)
People v Orta	1st Dept: 73 AD3d 452 (Bronx)	denied 6/29/10 (Ciparick, J.)
People v Otway	2d Dept: 71 AD3d 1052 (Kings)	denied 6/30/10 (Ciparick, J.)
People v Parker	4th Dept: 67 AD3d 1405 (Monroe)	denied 6/8/10 (Lippman, Ch. J.)
People v Payne	4th Dept: 68 AD3d 1800 (Erie)	denied reconsideration 6/30/10 (Lippman, Ch. J.)
People v Pearson (Kayson)	2d Dept: 69 AD3d 962 (Kings)	denied 6/9/10 (Read, J.)
People v Pearson (Torvin)	3d Dept: 69 AD3d 1226 (Clinton)	denied 6/30/10 (Lippman, Ch. J.)
People v Pecchio	2d Dept: 72 AD3d 708 (Queens)	denied 6/17/10 (Ciparick, J.)
People v Perdomo	App Div, 1st Dept: 2010 NY Slip Op 62380(U) (NY)	denied reconsideration 6/8/10 (Lippman, Ch. J.)
People v Perfetto	App Term, 1st Dept: 26 Misc 3d 130(A) (NY)	denied 6/9/10 (Read, J.)
People v Phillips (Bucky)	3d Dept: 71 AD3d 1181 (Chemung)	denied 6/11/10 (Smith, J.)
People v Phillips (Hoyt)	1st Dept: 70 AD3d 562 (Bronx)	denied ⁴ 6/8/10 (Grafteo, J.)
People v Phillips (Ralph)	3d Dept: 71 AD3d 1181 (Chemung)	denied 6/11/10 (Smith, J.)
People v Pocesta	2d Dept: 71 AD3d 920 (Richmond)	denied 6/8/10 (Grafteo, J.)
People v Poole	1st Dept: 72 AD3d 460 (NY)	denied 6/29/10 (Ciparick, J.)
People v Porter	4th Dept: 71 AD3d 1485 (Erie)	denied 6/17/10 (Ciparick, J.)
People v Pottinger	4th Dept: 71 AD3d 1492 (Monroe)	denied 6/8/10 (Grafteo, J.)
People v Prince	2d Dept: 69 AD3d 884 (Kings)	denied 6/15/10 (Jones, J.)

4. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Bell* (68 AD3d 545 [2009], *lv granted* 14 NY3d 838 [2010]).

People v Quezada	2d Dept: 71 AD3d 794 (Rockland)	denied 6/29/10 (Lippman, Ch. J.)
People v Ramales	1st Dept: 70 AD3d 518 (NY)	denied 6/30/10 (Lippman, Ch. J.)
People v Raven	County Ct, 1/11/10 (Chemung)	denied 6/10/10 (Pigott, J.)
People v Reese	County Ct, 3/9/10 (Ulster)	denied 6/29/10 (Grafteo, J.)
People v Reid	2d Dept: 71 AD3d 699 (Kings)	denied 6/18/10 (Ciparick, J.)
People v Restivo	1st Dept: 69 AD3d 478 (NY)	denied 6/29/10 (Lippman, Ch. J.)
People v Richardson	4th Dept: 70 AD3d 1327 (Erie)	denied 6/9/10 (Read, J.)
People v Richman	County Ct, 4/14/10 (Ontario)	denied 6/17/10 (Grafteo, J.)
People v Rivera (Carlos)	4th Dept: 70 AD3d 1484 (Jefferson)	denied 6/9/10 (Read, J.)
People v Rivera (Peter)	2d Dept: 71 AD3d 700 (Westchester)	granted 6/23/10 (Grafteo, J.)
People v Robinson	3d Dept: 69 AD3d 973 (Columbia)	granted 6/23/10 (Smith, J.)
People v Rodriguez (Carlos)	1st Dept: 71 AD3d 555 (Bronx)	granted 6/30/10 (Lippman, Ch. J.)
People v Rodriguez (Francisco)	1st Dept: 71 AD3d 436 (NY)	denied 6/8/10 (Pigott, J.)
People v Rollins	App Term, 1st Dept: 26 Misc 3d 130(A) (NY)	denied 6/9/10 (Read, J.)
People v Roman	App Div, 4th Dept, 4/27/10 (Monroe)	dismissed 6/15/10 (Ciparick, J.)
People v Romero (Julio)	App Term, 2d Dept, 3/29/10 (Suffolk)	dismissed 6/17/10 (Smith, J.)
People v Romero (William)	1st Dept: 68 AD3d 612 (Bronx)	denied 6/16/10 (Lippman, Ch. J.)
People v Rusiniak	County Ct, 2/24/10 (Erie)	denied 6/9/10 (Read, J.)
People v Russell (Brent)	4th Dept: 71 AD3d 1589 (Wyoming)	denied 6/23/10 (Pigott, J.)
People v Russell (Harold)	1st Dept: 71 AD3d 591 (NY)	denied 6/8/10 (Grafteo, J.)
People v Ryan	App Term, 1st Dept: 26 Misc 3d 42 (NY)	denied 6/9/10 (Read, J.)
People v St. Laurent	4th Dept: 70 AD3d 1417 (Oswego)	denied 6/1/10 (Grafteo, J.)
People v Samponaro	App Term, 1st Dept: 26 Misc 3d 42 (NY)	denied 6/9/10 (Read, J.)
People v Sanabria	1st Dept: 72 AD3d 552 (NY)	denied 6/17/10 (Smith, J.)

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People v Santiago	1st Dept: 72 AD3d 492 (NY)	denied 6/29/10 (Grafteo, J.)
People v Santos	App Div, 2d Dept: 2010 NY Slip Op 62502(U) (Westchester)	dismissed 6/9/10 (Read, J.)
People v Sanusi	2d Dept: 71 AD3d 1174 (Richmond)	denied 6/17/10 (Smith, J.)
People v Saunders	2d Dept: 71 AD3d 1058 (Westchester)	denied 6/15/10 (Jones, J.)
People v Scerbo	4th Dept: 74 AD3d 1730 (Onondaga)	denied 6/29/10 (Grafteo, J.)
People v Scott	2d Dept: 70 AD3d 977 (Kings)	denied 6/8/10 (Smith, J.)
People v Simon	4th Dept: 71 AD3d 1574 (Erie)	denied 6/18/10 (Ciparick, J.)
People v Smalls	3d Dept: 71 AD3d 1340 (Albany)	denied 6/11/10 (Smith, J.)
People v Smith	App Div, 4th Dept, 4/28/10 (Onondaga)	dismissed 6/3/10 (Jones, J.)
People v Soto	2d Dept: 70 AD3d 981 (Queens)	denied 6/9/10 (Read, J.)
People v Starks	1st Dept: 70 AD3d 585 (NY)	denied 6/16/10 (Ciparick, J.)
People v Steele	4th Dept: 71 AD3d 1456 (Ontario)	denied 6/15/10 (Jones, J.)
People v Stewart (Dale)	4th Dept: 72 AD3d 1560 (Niagara)	denied 6/29/10 (Ciparick, J.)
People v Stewart (Lennox)	2d Dept: 71 AD3d 797 (Kings)	denied 6/11/10 (Smith, J.)
People v Stoney	2d Dept: 72 AD3d 708 (Kings)	denied 6/8/10 (Grafteo, J.)
People v Sweeper	1st Dept: 71 AD3d 439 (NY)	granted 6/15/10 (Pigott, J.)
People v Tamburrino (James)	4th Dept: 68 AD3d 1764 (Oneida)	denied 6/9/10 (Read, J.) (Appeal No. 1)
People v Tamburrino (James)	4th Dept: 68 AD3d 1764 (Oneida)	denied 6/15/10 (Read, J.) (Appeal No. 2)
People v Tandle	2d Dept: 71 AD3d 1176 (Orange)	denied 6/16/10 (Pigott, J.)
People v Taylor	4th Dept: 71 AD3d 1467 (Monroe)	denied 6/15/10 (Jones, J.)
People v Thomas	2d Dept: 71 AD3d 1061 (Kings)	denied 6/11/10 (Smith, J.)
People v Thompson (Michael)	App Div, 4th Dept, 4/27/10 (Erie)	dismissed 6/18/10 (Jones, J.)
People v Thompson (Wayne)	2d Dept: 70 AD3d 866 (Queens)	denied 6/9/10 (Smith, J.)
People v Tinch	2d Dept: 72 AD3d 992 (Suffolk)	denied 6/23/10 (Pigott, J.)

People v Tompkins	4th Dept: 66 AD3d 1373 (Monroe)	denied 6/8/10 (Lippman, Ch. J.)
People v Torres	2d Dept: 71 AD3d 1063 (Kings)	denied 6/11/10 (Smith, J.)
People v Trunzo	4th Dept: 73 AD3d 1450 (Ontario)	denied 6/29/10 (Smith, J.)
People v Turner	4th Dept: 70 AD3d 1517 (Monroe)	denied 6/29/10 (Lippman, Ch. J.)
People v Valentin	App Term, 2d Dept: 27 Misc 3d 19 (Queens)	denied 6/25/10 (Smith, J.)
People v Valerio	2d Dept: 70 AD3d 869 (Queens)	denied 6/29/10 (Lippman, Ch. J.)
People v Valle	4th Dept: 70 AD3d 1386 (Monroe)	denied 6/9/10 (Read, J.)
People v Van Sertima	App Div, 2d Dept: 2010 NY Slip Op 64184(U) (Queens)	dismissed 6/11/10 (Grafteo, J.)
People v Vargas	3d Dept: 72 AD3d 1114 (Broome)	denied 6/29/10 (Ciparick, J.)
People v Vaughns	3d Dept: 70 AD3d 1123 (St. Lawrence)	denied 6/3/10 (Jones, J.)
People v Vega	2d Dept: 70 AD3d 1057 (Queens)	denied 6/18/10 (Lippman, Ch. J.)
People v Villalobos	2d Dept: 71 AD3d 924 (Nassau)	denied 6/11/10 (Smith, J.)
People v Werner	4th Dept: 71 AD3d 1456 (Monroe)	denied 6/18/10 (Ciparick, J.)
People v West	1st Dept: 71 AD3d 435 (NY)	denied 6/7/10 (Lippman, Ch. J.)
People v White	2d Dept: 75 AD3d 109 (Suffolk)	denied 6/29/10 (Grafteo, J.)
People v Whitted	2d Dept: 71 AD3d 1066 (Orange)	denied 6/29/10 (Ciparick, J.)
People v Wilkins	4th Dept: 71 AD3d 1464 (Monroe)	denied 6/15/10 (Jones, J.)
People v Williams	App Div, 2d Dept: 2010 NY Slip Op 62161(U) (Queens)	dismissed 6/11/10 (Smith, J.)
People v Wilson	2d Dept: 68 AD3d 1026 (Kings)	denied reconsideration 6/10/10 (Pigott, J.)
People v Zafuto	4th Dept: 72 AD3d 1623 (Erie)	denied 6/29/10 (Smith, J.)
People v Zakrzewski	3d Dept: 69 AD3d 1055 (Albany)	denied 6/15/10 (Jones, J.)
People v Zertuche	County Ct, 1/7/10 (St. Lawrence)	denied 6/9/10 (Read, J.)
People v Zokari	1st Dept: 68 AD3d 578 (NY)	denied 6/9/10 (Read, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(June 1, 2010 through June 30, 2010)

People v Clyde (Raymond)	4th Dept: 72 AD3d 1538 (Cayuga)	granted 6/3/10 (Scudder, J.)
People v Clyde (Raymond)	4th Dept: 72 AD3d 1543 (Cayuga)	granted 6/3/10 (Scudder, J.)

[933 NE2d 207, 906 NYS2d 808]

In the Matter of CAPITAL NEWSPAPERS DIVISION OF THE HEARST CORPORATION et al., Appellants, v CITY OF ALBANY et al., Respondents.

Argued June 1, 2010; decided July 1, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 11, 2009. The Appellate Division modified, on the law, a judgment of the Supreme Court, Albany County (Roger D. McDonough, J.), entered in a proceeding pursuant to CPLR article 78, which had (1) granted an application by petitioners to annul two determinations of respondent City of Albany denying petitioners' Freedom of Information Law requests seeking documents pertaining to the purchase of certain guns by the Police Department of the City of Albany, with the exception of any documents protected from disclosure under Civil Rights Law § 50-a, (2) directed respondent to turn over the documents, redacted pursuant to the court's decision, within seven days, and (3) denied petitioners' request for attorneys' fees. The modification consisted of reversing so much of the judgment as denied petitioners access to certain gun tags, and granting the petition to that extent, with the names of any current or former employees of the Albany Police Department redacted. The Appellate Division affirmed the judgment as modified.

In January 2006, the individual petitioner, a senior writer for petitioner newspaper, filed two requests under the Freedom of Information Law with respondent City of Albany, seeking documents pertaining to the alleged use of official Albany Police Department channels to purchase military-style assault rifles

* Includes only applications that were granted.

for personal, nonofficial use by a number of individual police officers in the 1990s. The city denied the requests, based upon an exemption for inter-agency or intra-agency materials. On administrative appeal by petitioners, the city's records appeals officer released one document but upheld denial as to the remaining documents based upon the exemption for inter-agency or intra-agency materials, and as to records which could endanger a person's life or safety. The records at issue included gun tags, i.e., identification tags put on the guns returned to the police department by individuals who had the guns in their personal possession. Those tags each contained an individual's name, a serial number and some sort of identification number.

The Appellate Division concluded that the gun tags that included the names of current or former police officers were personnel records since they might be used to implicate officers in misconduct; that while the tags were personnel records, redacting the names of any current or former police department employees would adequately protect the individual officers; and that Supreme Court did not abuse its discretion in denying petitioners' request for counsel fees.

Matter of Capital Newspapers Div. of Hearst Corp. v City of Albany, 63 AD3d 1336, modified.

HEADNOTE

Records — Freedom of Information Law — Police Department Personnel Records

In a proceeding to review determinations denying a newspaper reporter's request pursuant to the Freedom of Information Law for certain police department documents including gun tags, i.e., identification tags put on guns returned to the police department by individuals who had the guns in their personal possession, respondent municipality failed to meet its burden of demonstrating that the gun tags were "personnel records" under Civil Rights Law § 50-a. The police chief's conclusory affidavit did not establish that the documents were "used to evaluate performance toward continued employment or promotion," as required by that statute (Civil Rights Law § 50-a [1]). Consequently, the unredacted gun tags did not fall squarely within a statutory exemption and were subject to disclosure under the Freedom of Information Law (*see* Public Officers Law § 87 [2]).

APPEARANCES OF COUNSEL

Office of General Counsel, Hearst Corporation, New York City (*Jonathan R. Donnellan, Eve B. Burton and Eva M. Saketkoo*), for appellants.

John J. Reilly, Corporation Counsel, Albany (*Jeffery V. Jamison* of counsel), for City of Albany, respondent.

Office of General Counsel, New York State Law Enforcement Officers Union, District Council 82, AFSCME, AFL-CIO, Albany

(*Matthew P. Ryan* and *Ennio J. Corsi* of counsel), for Albany Police Officers Union, Local 2841 of New York State Law Enforcement Officers Union, District Council 82, AFSCME, AFL-CIO, respondent.

David E. McCraw, New York City, *Jacob P. Goldstein*, *Sabin, Bermant & Gould LLP* (*Patricia A. Clark* of counsel), *Karen Kaiser*, *Assistant General Counsel*, *Associated Press*, *Anne B. Carroll*, *Deputy General Counsel*, *Dailey News, L.P.*, *Barbara W. Wall*, *Associate General Counsel*, *Gannett Co., Inc.*, *McLean*, Virginia, *Beth R. Lobel*, New York City, *Michael G. Cameron*, *Assistant General Counsel*, *News America Incorporated*, for Advance Publications, Inc., and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, in accordance with this memorandum and, as so modified, affirmed.

Respondent City of Albany failed to meet its burden of demonstrating that the gun tags are “personnel records” under Civil Rights Law § 50-a. The Police Chief’s conclusory affidavit did not establish that the documents were “used to evaluate performance toward continued employment or promotion,” as required by that statute (Civil Rights Law § 50-a [1]). Consequently, the unredacted gun tags do not fall squarely within a statutory exemption and are subject to disclosure under the Freedom of Information Law (FOIL) (*see* Public Officers Law § 87 [2]). Petitioners’ claim that Supreme Court abused its discretion in denying counsel fees is without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order modified, etc.

[933 NE2d 207, 906 NYS2d 809]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES McRAE, Appellant.

Decided July 1, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from

an order of that Court, entered September 29, 2009. The Appellate Division modified, on the law, a judgment of the Orange County Court (Jeffrey G. Berry, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts), robbery in the second degree, criminal possession of a weapon in the fourth degree and menacing in the second degree. The modification consisted of vacating the conviction of robbery in the first degree under count one of the indictment, vacating the sentence imposed thereon, and remitting the matter to County Court for a new trial on that count of the indictment. The Appellate Division affirmed the judgment as modified.

People v McRae, 65 AD3d 1382, affirmed.

HEADNOTE

Crimes — Corroboration of Accomplice Testimony

The evidence was legally sufficient to support defendant's convictions for robbery and related charges because the testimony of one of defendant's accomplices was corroborated with independent evidence as well as evidence that "harmonized" with that testimony. Also, the trial judge did not abuse his discretion when denying defendant's eve-of-trial application to relieve his second court-appointed attorney and to appoint substitute counsel.

APPEARANCES OF COUNSEL

James McRae, appellant pro se.

Francis D. Phillips, II, District Attorney, Goshen (*Elizabeth L. Guinup* and *Andrew R. Kass* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Because the accomplice testimony was corroborated with independent evidence as well as evidence that "harmonized" with the accomplice testimony, the evidence was legally sufficient to support defendant's convictions (*see People v Reome*, 15 NY3d 188, 194 [2010]). Next, the trial judge did not abuse his discretion when denying defendant's eve-of-trial application to relieve his second court-appointed attorney and to appoint substitute counsel. Finally, defendant argues that the trial judge's failure to properly instruct the jury on the affirmative defense to Penal Law § 160.15 (4) affected the entire verdict. This claim is unpreserved for our review.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

[933 NE2d 208, 906 NYS2d 809]

KRISTOPHER KOHL, Appellant, v AMERICAN TRANSIT INSURANCE COMPANY, Respondent.

Argued June 3, 2010; decided July 1, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 24, 2009. The Appellate Division (1) affirmed so much of an order of the Supreme Court, Kings County (Lawrence S. Knipel, J.), as had granted a cross motion by defendant for summary judgment dismissing the action, and (2) remitted the matter to Supreme Court, Kings County, for entry of a judgment declaring that defendant was not obligated to defend and indemnify plaintiff in an underlying personal injury action pending in Supreme Court, New York County.

Kohl v American Tr. Ins. Co., 59 AD3d 681, affirmed.

HEADNOTE

Insurance — Duty to Defend and Indemnify — Automobile Accident

A passenger in a taxicab, who was sued by a bicyclist who claimed that he was injured when the passenger opened the taxi's door, was not insured under the taxi owner's policy of automobile liability insurance. The policy said that it "shall inure to the benefit of any person legally operating" the insured vehicle in the business of the insured, and the word "operating" cannot be stretched to include a passenger's riding in the car or opening the door.

APPEARANCES OF COUNSEL

David Katz & Associates, LLP, New York City (*Salvatore J. Sciangula* of counsel), for appellant.

Marjorie E. Bornes, New York City, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs.

Kristopher Kohl, a passenger in a taxicab, was sued by a bicyclist who claimed that he was injured when Kohl opened the taxi's door. The Appellate Division correctly held that Kohl was not insured under the taxi owner's policy of automobile liability insurance. The policy says that it "shall inure to the benefit of any person legally operating" the insured vehicle in the business of the insured. The word "operating" cannot be stretched to include a passenger's riding in the car or opening the door.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

[933 NE2d 751, 907 NYS2d 152]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID DIAZ, Appellant.

Decided July 1, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 29, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Lewis Bart Stone, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the second degree.

Testimony at the suppression hearing established that a police officer spotted a double-parked minivan, with its engine running, in a known drug-prone area. The officer approached defendant, and when asked why he was double-parked, defendant replied that he was waiting for a friend who was inside the grocery store across the street. Defendant reportedly had a calm demeanor. When the friend failed to return, the officer became suspicious, and believing that drug activity was taking place, asked defendant to show him paperwork for the vehicle. As defendant was retrieving the paperwork the officer observed two \$100 bills near the center console of the vehicle and also a small one-inch bag. Although the bag was empty, there appeared to be green particles in the bag which the officer believed to be marijuana. After confirming that the small bag had contained marijuana, the officer searched the glove compartment and recovered nine new crack pipes, prescription drugs and

registration papers. The prescription drugs were not in defendant's name. Moreover, the minivan was registered to a person of a different name but it had not been reported stolen. At that point, the officer searched the vehicle, and by tugging on the right passenger air bag compartment, he noticed velcro material and determined there was a possibility of concealed items. Upon further searching, the officer discovered 253 bags of crack cocaine hidden in the compartment, whereupon he arrested defendant. After the arrest, defendant changed his story and told the officer that he had borrowed the minivan to buy "weed" and that he had nothing else to say. The officer further testified that he established that defendant lived just two blocks away from where he had double-parked the minivan.

People v Diaz, 68 AD3d 642, affirmed.

HEADNOTE

Crimes — Controlled Substances — Constructive Possession

Viewed in the light most favorable to the People, the trial evidence was sufficient to allow a jury to infer both that defendant exercised dominion and control over a van from which police recovered over four ounces of crack cocaine, and that defendant had knowledge that the drugs were secreted in a hidden compartment beneath the van's air bag cover. Defendant's knowledge could be inferred from his sole possession of the van at the time the contraband was seized, his possession of nine unused crack pipes in the van's glove compartment, and his inconsistent and implausible accounts of his relationship to the van.

APPEARANCES OF COUNSEL

David Segal, New York City, for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Malancha Chanda* and *Eleanor Ostrow* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Viewed in the light most favorable to the People (*People v Contes*, 60 NY2d 620, 621 [1983]), the trial evidence was sufficient to allow a jury to infer both that defendant exercised dominion and control over the van from which police recovered over four ounces of crack cocaine, and that defendant had knowledge that the drugs were secreted in a hidden compartment beneath the van's air bag cover (Penal Law § 220.18 [1]). Defendant's knowledge could be inferred from his sole possession of the van at the time the contraband was seized, his

possession of nine unused crack pipes in the van's glove compartment, and his inconsistent and implausible accounts of his relationship to the van (*People v Reisman*, 29 NY2d 278, 285 [1971] ["Knowledge (of the presence of illegal drugs) may be shown circumstantially by conduct or directly by admission, or indirectly by contradictory statements from which guilt may be inferred"]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

In the Matter of AMIRAH NICOLE A. and Others, Children Alleged to be Permanently Neglected. TAMIKA R., Appellant; SABRE A., Respondent, et al., Respondents.

Submitted June 1, 2010; decided July 1, 2010

Reported below, 73 AD3d 428.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ASTORIA FEDERAL SAVINGS & LOAN ASSOCIATION/FIDELITY NEW YORK FSB, Respondent, v MARILYN LANE, Appellant, and FRANCES TURNER et al., Intervenors-Respondents.

Submitted June 1, 2010; decided July 1, 2010

Reported below, 2010 NY Slip Op 63939(U).

Motion for reargument of motion for leave to appeal denied [*see* 14 NY3d 880 (2010)]. Cross motions for the imposition of sanctions denied.

AURORA LOAN SERVICES, Respondent, v PHILIP GRANT, Appellant, et al., Defendants.

Submitted May 24, 2010; decided July 1, 2010

Reported below, 70 AD3d 986.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of SYNTHIA CHINA BLAST, Appellant.

Submitted June 1, 2010; decided July 1, 2010

Reported below, 2010 NY Slip Op 69889(U).

Motion, insofar as it seeks leave to appeal from the January 2010 Supreme Court order, dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]); motion, insofar as it seeks leave to appeal from the April 2010 Appellate Division order, dismissed upon the ground that it does not finally determine the proceeding within the meaning of the Constitution.

JULIETTE DEJOIE CADICHON et al., Appellants, v THOMAS FACELLE, M.D., et al., Respondents.

Decided July 1, 2010

Reported below, 71 AD3d 520.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

JOAN COCCIA, Respondent, v THOMAS F. LIOTTI, Appellant.

Submitted May 24, 2010; decided July 1, 2010

Reported below, 70 AD3d 747 (Case No. 9).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted June 21, 2010; decided July 1, 2010

Reported below, 61 AD3d 460.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 14 NY3d 576 (2010)].

In the Matter of the ESTATE OF LOUISE WRIGHT, Appellant, v
CITY OF ROCHESTER et al., Respondents, et al., Defendants.

Submitted June 7, 2010; decided July 1, 2010

Reported below, 2010 NY Slip Op 69837(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine an action or proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

SHAWN GREEN, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 24, 2010; decided July 1, 2010

Reported below, 2009 NY Slip Op 92299(U); 2009 NY Slip Op 86819(U).

Motion for reargument of motion for leave to appeal denied [*see* 14 NY3d 793 (2010)].

GEORGE HEATH, Appellant, v JOHN S. WOJTOWICZ et al., Respondents.

Submitted May 24, 2010; decided July 1, 2010

Reported below, 72 AD3d 402.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

In the Matter of MICHAEL HOFFLER, Appellant, v ROBERT M. JACON, as Judge of the County Court of Rensselaer County, et al., Respondents.

Decided July 1, 2010

Reported below, 72 AD3d 1183.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

LIFE RECEIVABLES TRUST, Plaintiff, v GOSHAWK SYNDICATE 102
AT LLOYD'S, Respondent, and LIFE SETTLEMENT CORPORATION,
Doing Business as PEACH TREE LIFE SETTLEMENTS,
Appellant.

Submitted June 14, 2010; decided July 1, 2010

Reported below, 66 AD3d 495.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 14 NY3d 850 (2010)]. Motion for a stay dismissed as academic.

In the Matter of the Claim of DAVID S. MALONE, Appellant, v
VRD DECORATING et al., Respondents. WORKERS' COMPENSA-
TION BOARD, Respondent.

Submitted June 7, 2010; decided July 1, 2010

Reported below, 68 AD3d 1570.

Motion for reargument of motion for leave to appeal denied [*see* 14 NY3d 825 (2010)].

NEW YORK STATE PSYCHIATRIC ASSOCIATION, INC., et al.,
Respondents, v NEW YORK STATE DEPARTMENT OF HEALTH,
Appellant.

Decided July 1, 2010

Reported below, 71 AD3d 852.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine an action or proceeding within the meaning of the Constitution.

SANTORINI EQUITIES, INC., Appellant, v FRANCISCO PICARRA et
al., Respondents.

Submitted June 7, 2010; decided July 1, 2010

Reported below, 72 AD3d 73.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division where the appeal to the Appellate Division was from an order entered on an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

IQBAL SINGH, Appellant, v CITY OF NEW YORK DIVISION OF HOUSING PRESERVATION AND DEVELOPMENT, Respondent.

Submitted June 1, 2010; decided July 1, 2010

Reported below, 60 AD3d 503.

Motion for reargument denied [*see* 14 NY3d 858 (2010)].

In the Matter of the Estate of PAULA M. VENEZIA, Deceased.
JOANNE ZACCARIA, Respondent; EDWARD HAYES PENNINGTON III, Appellant.

Submitted June 7, 2010; decided July 1, 2010

Reported below, 71 AD3d 905.

Motion for a stay dismissed as academic.

In the Matter of EVERETT WILLIAMS, Appellant, v NEW YORK STATE DIVISION OF PAROLE, Respondent.

Decided July 1, 2010

Reported below, 71 AD3d 524.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Claim of ENNI YARLEQUE, Appellant, v SALLY LOU, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted June 7, 2010; decided July 1, 2010

Reported below, 73 AD3d 1294.

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Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(July 1, 2010 through July 31, 2010)

People v Sirico	2d Dept: 66 AD3d 1047	7/15/10
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APPEALS WITHDRAWN AND DISCONTINUED

(July 1, 2010 through July 31, 2010)

People v Brown	1st Dept: 69 AD3d 466	7/9/10
State of New York v LVF Realty Co., Inc.	2d Dept: 59 AD3d 519	7/13/10

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2010 through July 31, 2010)

People v Abraham	1st Dept: 73 AD3d 503 (NY)	denied 7/20/10 (Read, J.)
People v Agront	App Div, 2d Dept: 2010 NY Slip Op 72082(U) (Kings)	dismissed 7/19/10 (Smith, J.)
People v Aiken	4th Dept: 73 AD3d 1450 (Erie)	denied 7/19/10 (Smith, J.)
People v Albritton	2d Dept: 69 AD3d 866 (Kings)	denied 7/21/10 (Lippman, Ch. J.)
People v Alejandro	1st Dept: 71 AD3d 597 (NY)	denied 7/14/10 (Lippman, Ch. J.)
People v Ali	4th Dept: 73 AD3d 1471 (Erie)	denied 7/8/10 (Ciparick, J.)
People v Almonte	1st Dept: 73 AD3d 531 (NY)	denied 7/29/10 (Grafteo, J.)
People v Anthony	4th Dept: 71 AD3d 1468 (Erie)	denied reconsideration 7/29/10 (Grafteo, J.)
People v Astwood	1st Dept: 71 AD3d 412 (NY)	denied 7/6/10 (Read, J.)
People v Austin	4th Dept: 73 AD3d 1471 (Erie)	denied 7/8/10 (Ciparick, J.)
People v Babcock	2d Dept: 72 AD3d 984 (Orange)	denied 7/8/10 (Ciparick, J.)

People v Barber	App Div, 1st Dept: 2010 NY Slip Op 69194(U) (NY)	denied 7/29/10 (Ciparick, J.)
People v Barreto	1st Dept: 70 AD3d 574 (Bronx)	denied 7/20/10 (Lippman, Ch. J.)
People v Battle	2d Dept: 73 AD3d 939 (Kings)	denied 7/22/10 (Smith, J.)
People v Big	3d Dept: 74 AD3d 1375 (Albany)	denied 7/22/10 (Smith, J.)
People v Big Man	3d Dept: 74 AD3d 1375 (Albany)	denied 7/22/10 (Smith, J.)
People v Boo	App Div, 3d Dept, 1/29/10 (Schenectady)	denied 7/1/10 (Lippman, Ch. J.)
People v Bradley	4th Dept: 72 AD3d 1628 (Monroe)	denied 7/29/10 (Grafteo, J.)
People v Brown (Arthur)	2d Dept: 73 AD3d 1078 (Kings)	denied 7/8/10 (Ciparick, J.)
People v Brown (Robert)	1st Dept: 72 AD3d 445 (Bronx)	denied 7/30/10 (Read, J.)
People v Brunson	1st Dept: 73 AD3d 432 (NY)	denied 7/28/10 (Ciparick, J.)
People v Bueno	2d Dept: 71 AD3d 908 (Kings)	granted 7/21/10 (Smith, J.)
People v Byrd	App Div, 1st Dept: 2009 NY Slip Op 87031(U) (NY)	denied 7/6/10 (Read, J.)
People v Cabrera	1st Dept: 73 AD3d 437 (NY)	denied 7/19/10 (Smith, J.)
People v Cadle	2d Dept: 71 AD3d 689 (Kings)	denied 7/12/10 (Lippman, Ch. J.)
People v Caldwell	4th Dept: 71 AD3d 1515 (Niagara)	denied 7/20/10 (Read, J.)
People v Carr	4th Dept: 71 AD3d 1442 (Oneida)	denied 7/20/10 (Read, J.)
People v Carter (Anderson)	1st Dept: 73 AD3d 440 (NY)	denied 7/8/10 (Ciparick, J.)
People v Carter (Benjamin)	1st Dept: 67 AD3d 603 (NY)	denied reconsideration 7/29/10 (Ciparick, J.)
People v Carter (Jerry)	3d Dept: 74 AD3d 1375 (Albany)	denied 7/22/10 (Smith, J.)
People v Carter (Mark)	2d Dept: 71 AD3d 780 (Kings)	denied 7/6/10 (Read, J.)
People v Cartwright	2d Dept: 61 AD3d 695 (Westchester)	denied 7/7/10 (Lippman, Ch. J.)
People v Chin	2d Dept: 69 AD3d 752 (Nassau)	denied 7/21/10 (Lippman, Ch. J.)
People v Coakley	1st Dept: 73 AD3d 565 (Bronx)	denied 7/8/10 (Ciparick, J.)
People v Colletti	2d Dept: 73 AD3d 1203 (Queens)	denied 7/29/10 (Grafteo, J.)

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People v Collier	2d Dept: 71 AD3d 909 (Suffolk)	denied 7/6/10 (Read, J.)
People v Correa	1st Dept: 72 AD3d 513 (Bronx)	denied 7/20/10 (Read, J.)
People v Crouch	4th Dept: 70 AD3d 1369 (Erie)	denied 7/13/10 (Jones, J.)
People v Curto	County Ct, 3/1/10 (Erie)	denied reconsideration 7/30/10 (Read, J.)
People v Delossantos	1st Dept: 72 AD3d 462 (NY)	denied 7/20/10 (Read, J.)
People v Diaz	3d Dept: 72 AD3d 1349 (Sullivan)	denied 7/19/10 (Smith, J.)
People v Dreyden	App Term, 2d Dept: 28 Misc 3d 5 (Kings)	denied 7/14/10 (Ciparick, J.)
People v Ehikhamenor	2d Dept: 72 AD3d 700 (Queens)	denied 7/21/10 (Lippman, Ch. J.)
People v Elliott	4th Dept: 73 AD3d 1444 (Livingston)	denied 7/22/10 (Ciparick, J.)
People v Espinal	2d Dept: 72 AD3d 701 (Queens)	denied 7/29/10 (Grafteo, J.)
People v Felder	2d Dept: 71 AD3d 1045 (Nassau)	denied 7/6/10 (Read, J.)
People v Ferguson	1st Dept: 72 AD3d 541 (NY)	denied 7/28/10 (Ciparick, J.)
People v Forbes	4th Dept: 71 AD3d 1519 (Monroe)	denied 7/6/10 (Read, J.)
People v Gamlen	4th Dept: 72 AD3d 1617 (Cayuga)	denied 7/29/10 (Grafteo, J.)
People v Garner	2d Dept: 70 AD3d 854 (Suffolk)	denied 7/7/10 (Lippman, Ch. J.) (Case No. 73)
People v Glanton (Romaris)	4th Dept: 72 AD3d 1536 (Wayne)	withdrawn 7/16/10 (Read, J.)
People v Glanton (Romaris)	4th Dept: 72 AD3d 1538 (Wayne)	withdrawn 7/16/10 (Read, J.)
People v Gleen	4th Dept: 73 AD3d 1443 (Erie)	denied 7/8/10 (Ciparick, J.)
People v Glynn	3d Dept: 72 AD3d 1351 (Albany)	denied 7/14/10 (Lippman, Ch. J.)
People v Goldsmith	2d Dept: 71 AD3d 1046 (Orange)	denied 7/6/10 (Read, J.)
People v Goodrum	4th Dept: 72 AD3d 1639 (Erie)	denied 7/29/10 (Grafteo, J.)
People v Gorham	2d Dept: 72 AD3d 1108 (Suffolk)	denied 7/19/10 (Smith, J.)
People v Gousse	2d Dept: 71 AD3d 1159 (Nassau)	denied 7/6/10 (Read, J.)

People v Green	2d Dept: 73 AD3d 805 (Orange)	denied 7/20/10 (Lippman, Ch. J.)
People v Gross	4th Dept: 71 AD3d 1526 (Monroe)	denied 7/12/10 (Lippman, Ch. J.)
People v Hamilton	1st Dept: 73 AD3d 408 (Bronx)	denied 7/19/10 (Smith, J.)
People v Hancock (Alvin)	4th Dept: 72 AD3d 1563 (Monroe)	denied 7/22/10 (Smith, J.)
People v Hancock (Alvin)	4th Dept: 72 AD3d 1568 (Monroe)	denied 7/22/10 (Smith, J.)
People v Harris (Antwain)	4th Dept: 72 AD3d 1492 (Erie)	denied 7/12/10 (Lippman, Ch. J.)
People v Harris (Antwain)	4th Dept: 72 AD3d 1493 (Erie)	denied 7/12/10 (Lippman, Ch. J.)
People v Harris (Antwain)	4th Dept: 72 AD3d 1494 (Erie)	denied 7/12/10 (Lippman, Ch. J.)
People v Harris (Varner)	4th Dept: 72 AD3d 1624 (Erie)	denied 7/8/10 (Ciparick, J.)
People v Harrison	3d Dept: 70 AD3d 1257 (Rensselaer)	denied 7/27/10 (Lippman, Ch. J.)
People v Hatcher	2d Dept: 71 AD3d 785 (Nassau)	denied 7/6/10 (Read, J.)
People v Hawkins	3d Dept: 72 AD3d 1209 (Sullivan)	denied 7/29/10 (Grafteo, J.)
People v Henry	2d Dept: 71 AD3d 1159 (Kings)	denied 7/6/10 (Read, J.)
People v Hill	4th Dept: 70 AD3d 1487 (Erie)	granted 7/21/10 (Lippman, Ch. J.)
People v Hines	1st Dept: 72 AD3d 533 (NY)	denied 7/21/10 (Lippman, Ch. J.)
People v Holcomb	County Ct, 4/27/10 (Washington)	denied 7/22/10 (Ciparick, J.)
People v Holguin	1st Dept: 71 AD3d 504 (NY)	denied 7/6/10 (Read, J.)
People v Holloway	4th Dept: 71 AD3d 1486 (Monroe)	denied 7/20/10 (Read, J.)
People v Hunter	4th Dept: 70 AD3d 1343 (Monroe)	granted 7/15/10 (Smith, J.)
People v Hurdle	2d Dept: 70 AD3d 1051 (Nassau)	denied 7/29/10 (Grafteo, J.)
People v Hymes	4th Dept: 70 AD3d 1371 (Oneida)	denied 7/7/10 (Lippman, Ch. J.)
People v Ifill	App Term, 2d Dept: 28 Misc 3d 12 (Richmond)	denied 7/29/10 (Grafteo, J.)
People v Jefferson	2d Dept: 71 AD3d 694 (Suffolk)	denied 7/20/10 (Read, J.)
People v Jenkins	1st Dept: 72 AD3d 591 (NY)	denied 7/22/10 (Ciparick, J.)
People v Johnson (Kazmel)	1st Dept: 72 AD3d 589 (NY)	denied 7/29/10 (Grafteo, J.)

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People v Johnson (Kelvin)	4th Dept: 71 AD3d 1521 (Niagara)	denied 7/27/10 (Lippman, Ch. J.)
People v Johnson (Rahsaan)	1st Dept: 70 AD3d 599 (NY)	denied 7/7/10 (Read, J.)
People v Jones (Antonio)	App Div, 4th Dept, 3/31/10 (Erie)	dismissed 7/6/10 (Read, J.)
People v Jones (Pierre)	4th Dept: 71 AD3d 1573 (Onondaga)	denied 7/20/10 (Read, J.)
People v Joseph (Roger)	App Div, 2d Dept: 2010 NY Slip Op 73788(U) (Kings)	dismissed 7/23/10 (Lippman, Ch. J.)
People v Joseph (Roger)	App Div, 2d Dept: 2010 NY Slip Op 73789(U) (Kings)	dismissed 7/23/10 (Lippman, Ch. J.)
People v Kelly (John)	1st Dept: 65 AD3d 886 (NY)	denied reconsideration 7/28/10 (Smith, J.)
People v Kelly (Thomas)	4th Dept: 71 AD3d 1520 (Monroe)	denied 7/20/10 (Read, J.)
People v Knauber	4th Dept: 72 AD3d 1615 (Genesee)	denied 7/20/10 (Read, J.)
People v Kulakov	3d Dept: 72 AD3d 1271 (Clinton)	denied 7/22/10 (Ciparick, J.)
People v Kurney	2d Dept: 69 AD3d 957 (Kings)	denied 7/7/10 (Lippman, Ch. J.)
People v Lane	4th Dept: 71 AD3d 1484 (Erie)	denied 7/20/10 (Read, J.)
People v Lard	4th Dept: 71 AD3d 1468 (Erie)	denied reconsideration 7/29/10 (Grafteo, J.)
People v Leigh	3d Dept: 71 AD3d 1288 (Albany)	denied 7/12/10 (Lippman, Ch. J.)
People v Letterio	1st Dept: 72 AD3d 574 (NY)	denied 7/20/10 (Read, J.)
People v Lewis (Melvin)	App Div, 3d Dept: 2010 NY Slip Op 68586(U) (Broome)	denied 7/30/10 (Read, J.)
People v Lewis (Travis)	4th Dept: 72 AD3d 1608 (Monroe)	denied 7/23/10 (Smith, J.)
People v Lott	4th Dept: 67 AD3d 1458 (Erie)	denied 7/6/10 (Read, J.)
People v Lucas	1st Dept: 74 AD3d 416 (NY)	denied 7/28/10 (Ciparick, J.)
People v MacLean	4th Dept: 66 AD3d 1499 (Livingston)	denied reconsideration 7/7/10 (Lippman, Ch. J.)
People v Mais	2d Dept: 71 AD3d 1163 (Rockland)	denied 7/14/10 (Lippman, Ch. J.)
People v Majors	3d Dept: 73 AD3d 1382 (Broome)	denied 7/14/10 (Ciparick, J.)

People v Malaj	1st Dept: 69 AD3d 487 (NY)	denied 7/12/10 (Lippman, Ch. J.)
People v McFall	3d Dept: 72 AD3d 1128 (Albany)	denied 7/6/10 (Read, J.)
People v McMaster	4th Dept: 70 AD3d 1414 (Wyoming)	denied 7/1/10 (Lippman, Ch. J.)
People v Medina	1st Dept: 67 AD3d 548 (Bronx)	granted 7/7/10 (Lippman, Ch. J.)
People v Molano	3d Dept: 70 AD3d 1172 (Schenectady)	denied 7/12/10 (Lippman, Ch. J.)
People v Monette	3d Dept: 70 AD3d 1186 (Franklin)	denied 7/23/10 (Lippman, Ch. J.)
People v Monteleone	2d Dept: 71 AD3d 790 (Queens)	denied 7/6/10 (Read, J.)
People v Moore	2d Dept: 67 AD3d 930 (Kings)	denied 7/1/10 (Lippman, Ch. J.)
People v Moran	2d Dept: 68 AD3d 786 (Orange)	denied 7/1/10 (Lippman, Ch. J.)
People v Mosley (Charnell)	4th Dept: 72 AD3d 1657 (Monroe)	denied 7/29/10 (Grafteo, J.) (Appeal No. 1)
People v Mosley (Charnell)	4th Dept: 72 AD3d 1657 (Monroe)	denied 7/29/10 (Grafteo, J.) (Appeal No. 2)
People v Mosley (Manuel)	3d Dept: 70 AD3d 1126 (Warren)	denied reconsideration 7/28/10 (Ciparick, J.)
People v Muller	3d Dept: 72 AD3d 1329 (Columbia)	denied 7/20/10 (Read, J.)
People v Neblett	1st Dept: 73 AD3d 491 (Bronx)	denied 7/20/10 (Lippman, Ch. J.)
People v Nelson	2d Dept: 70 AD3d 1053 (Queens)	denied 7/6/10 (Read, J.)
People v Norwood	App Div, 4th Dept, 3/29/10 (Monroe)	dismissed 7/30/10 (Read, J.)
People v O'Diah (Aror)	2d Dept: 68 AD3d 787 (Queens)	denied reconsideration 7/16/10 (Lippman, Ch. J.)
People v O'Diah (Aror)	2d Dept: 68 AD3d 788 (Queens)	denied reconsideration 7/16/10 (Lippman, Ch. J.)
People v Pacifico	County Ct, 3/19/10 (Saratoga)	denied 7/19/10 (Smith, J.)
People v Parisi	2d Dept: 72 AD3d 989 (Suffolk)	granted 7/27/10 (Read, J.)
People v Parra	1st Dept: 70 AD3d 409 (NY)	denied 7/7/10 (Lippman, Ch. J.)
People v Patterson	2d Dept: 73 AD3d 1215 (Dutchess)	denied 7/28/10 (Ciparick, J.)

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People v Paul	App Div, 3d Dept: 2010 NY Slip Op 68073(U) (Broome)	dismissed 7/7/10 (Lippman, Ch. J.)
People v Payne	3d Dept: 71 AD3d 1289 (Schenectady)	denied 7/20/10 (Read, J.)
People v Pena	App Div, 1st Dept: 2010 NY Slip Op 71250(U) (Bronx)	denied 7/28/10 (Ciparick, J.)
People v Pointer	4th Dept: 71 AD3d 1492 (Erie)	denied 7/6/10 (Read, J.)
People v Pook	2d Dept: 73 AD3d 952 (Queens)	denied 7/23/10 (Smith, J.)
People v Poux	2d Dept: 69 AD3d 766 (Queens)	denied 7/7/10 (Lippman, Ch. J.)
People v Pringle	4th Dept: 71 AD3d 1450 (Erie)	denied 7/14/10 (Lippman, Ch. J.)
People v Qoshja	1st Dept: 72 AD3d 527 (NY)	granted 7/23/10 (Lippman, Ch. J.)
People v Quiroz-Santos	1st Dept: 71 AD3d 568 (NY)	denied 7/6/10 (Read, J.)
People v Rios (Elvin)	4th Dept: 72 AD3d 1489 (Erie)	denied 7/29/10 (Grafteo, J.)
People v Rios (Elvin)	4th Dept: 72 AD3d 1491 (Erie)	denied 7/29/10 (Grafteo, J.)
People v Robinson (Christopher)	2d Dept: 73 AD3d 1091 (Suffolk)	denied 7/22/10 (Ciparick, J.)
People v Robinson (Ludlow)	App Term, 2d Dept: 27 Misc 3d 134(A) (Nassau)	denied 7/6/10 (Read, J.)
People v Robles	4th Dept: 72 AD3d 1520 (Monroe)	denied 7/23/10 (Smith, J.)
People v Rodriguez (Anthony)	2d Dept: 73 AD3d 815 (Nassau)	denied 7/29/10 (Grafteo, J.)
People v Rodriguez (Isidro)	1st Dept: 71 AD3d 450 (NY)	granted 7/23/10 (Lippman, Ch. J.)
People v Rogers	2d Dept: 70 AD3d 863 (Queens)	denied reconsideration 7/28/10 (Ciparick, J.)
People v Rollins	App Div, 3d Dept, 1/29/10 (Schenectady)	denied 7/1/10 (Lippman, Ch. J.)
People v Romero	2d Dept: 71 AD3d 795 (Kings)	denied 7/6/10 (Read, J.)
People v Rouse	4th Dept: 71 AD3d 1441 (Niagara)	denied 7/12/10 (Lippman, Ch. J.)
People v Rutledge	4th Dept: 70 AD3d 1368 (Monroe)	denied 7/7/10 (Lippman, Ch. J.)
People v Sanabria	App Div, 2d Dept: 2010 NY Slip Op 73290(U) (Dutchess)	dismissed 7/15/10 (Ciparick, J.)
People v Sanchez	4th Dept: 74 AD3d 1791 (Wayne)	denied 7/29/10 (Grafteo, J.)
People v Schindler (Richard)	App Term, 2d Dept: 27 Misc 3d 127(A) (Suffolk)	denied 7/6/10 (Read, J.)

People v Schindler (Richard)	App Term, 2d Dept: 27 Misc 3d 127(A) (Suffolk)	denied reconsideration 7/30/10 (Read, J.)
People v Scott	2d Dept: 70 AD3d 978 (Queens)	denied 7/7/10 (Lippman, Ch. J.)
People v Scrimo	2d Dept: 67 AD3d 825 (Nassau)	denied reconsideration 7/30/10 (Read, J.)
People v Sexton	2d Dept: 73 AD3d 953 (Queens)	denied 7/19/10 (Smith, J.)
People v Shepard	App Div, 1st Dept: 2010 NY Slip Op 69194(U) (NY)	denied 7/29/10 (Ciparick, J.)
People v Sidberry	1st Dept: 73 AD3d 414 (NY)	denied 7/8/10 (Ciparick, J.)
People v Simcoe	4th Dept: 74 AD3d 1858 (Onondaga)	denied 7/8/10 (Ciparick, J.)
People v Simmons	1st Dept: 72 AD3d 536 (NY)	denied 7/15/10 (Lippman, Ch. J.)
People v Singleton (Wayne)	App Div, 2d Dept: 2010 NY Slip Op 74405(U) (Queens)	dismissed 7/14/10 (Jones, J.)
People v Singleton (Wayne)	2d Dept: 70 AD3d 1055 (Queens)	dismissed 7/14/10 (Jones, J.)
People v Smalls	4th Dept: 70 AD3d 1328 (Erie)	denied reconsideration 7/29/10 (Grafteo, J.)
People v Smith (James)	4th Dept: 73 AD3d 1469 (Erie)	denied 7/7/10 (Lippman, Ch. J.)
People v Smith (Paul)	2d Dept: 71 AD3d 1174 (Queens)	denied 7/20/10 (Read, J.)
People v Soto (Albert)	App Div, 1st Dept: 2010 NY Slip Op 72368(U) (Bronx)	dismissed 7/27/10 (Read, J.)
People v Soto (Albert)	App Div, 1st Dept: 2010 NY Slip Op 72376(U) (Bronx)	dismissed 7/27/10 (Read, J.)
People v Stanton	4th Dept: 71 AD3d 1476 (Onondaga)	denied 7/12/10 (Lippman, Ch. J.)
People v Stearns	3d Dept: 72 AD3d 1214 (Warren)	denied 7/20/10 (Read, J.)
People v Stoddard	4th Dept: 72 AD3d 1608 (Genesee)	denied 7/14/10 (Ciparick, J.)
People v Sullivan	App Term, 2d Dept: 27 Misc 3d 134(A) (Orange)	denied 7/19/10 (Smith, J.)
People v Sutton	4th Dept: 71 AD3d 1396 (Erie)	denied 7/21/10 (Lippman, Ch. J.)
People v Swindell	3d Dept: 72 AD3d 1340 (Albany)	denied 7/22/10 (Ciparick, J.)
People v Syrell	4th Dept: 72 AD3d 1609 (Cayuga)	denied 7/28/10 (Ciparick, J.)

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People v Taylor	1st Dept: 72 AD3d 448 (NY)	denied 7/15/10 (Lippman, Ch. J.)
People v Thomas	3d Dept: 73 AD3d 1223 (Ulster)	dismissed* 7/30/10 (Read, J.)
People v Torres	2d Dept: 72 AD3d 709 (Queens)	denied 7/7/10 (Read, J.)
People v Umoja	2d Dept: 70 AD3d 867 (Kings)	denied 7/1/10 (Lippman, Ch. J.)
People v Usen	County Ct, 4/20/10 (Ulster)	denied 7/14/10 (Ciparick, J.)
People v Vaquero	2d Dept: 73 AD3d 819 (Westchester)	denied 7/28/10 (Ciparick, J.)
People v Vasquez (Anthony)	4th Dept: 70 AD3d 1518 (Ontario)	denied reconsideration 7/29/10 (Grafteo, J.)
People v Vasquez (Joel)	1st Dept: 72 AD3d 616 (Bronx)	denied 7/19/10 (Smith, J.)
People v Velazquez	1st Dept: 73 AD3d 453 (NY)	denied 7/28/10 (Ciparick, J.)
People v Verdugo	1st Dept: 72 AD3d 515 (NY)	denied 7/19/10 (Smith, J.)
People v Wagner	3d Dept: 72 AD3d 1196 (Washington)	denied 7/20/10 (Read, J.)
People v Walker	App Div, 2d Dept: 2010 NY Slip Op 73292(U) (Kings)	dismissed 7/7/10 (Ciparick, J.)
People v Watkins	2d Dept: 71 AD3d 799 (Suffolk)	denied 7/30/10 (Read, J.)
People v Weekes	2d Dept: 71 AD3d 1065 (Nassau)	denied 7/6/10 (Read, J.)
People v White	2d Dept: 73 AD3d 820 (Nassau)	denied 7/8/10 (Ciparick, J.)
People v Whitehead	3d Dept: 73 AD3d 1340 (Albany)	denied 7/30/10 (Read, J.)
People v Whitehurst	2d Dept: 70 AD3d 1057 (Kings)	denied 7/15/10 (Lippman, Ch. J.)
People v Wiggins	1st Dept: 73 AD3d 414 (NY)	denied 7/8/10 (Ciparick, J.)
People v Williams (Benjamin)	App Div, 1st Dept: 2010 NY Slip Op 69179(U) (NY)	denied 7/20/10 (Read, J.)
People v Williams (Brandon)	2d Dept: 73 AD3d 1097 (Kings)	dismissed 7/21/10 (Smith, J.)
People v Williams (David)	4th Dept: 71 AD3d 1547 (Monroe)	denied 7/20/10 (Lippman, Ch. J.)
People v Williamson	3d Dept: 72 AD3d 1339 (Rensselaer)	denied 7/12/10 (Lippman, Ch. J.)
People v Wilson (Joseph)	2d Dept: 71 AD3d 799 (Kings)	denied 7/6/10 (Read, J.)

* Dismissed upon the ground that application for the same relief has already been made to a Justice of the Appellate Division (CPL 460.20; *People v McCarthy*, 250 NY 358, 361 [1929]).

People v Wilson (Michael)	4th Dept: 70 AD3d 1518 (Erie)	denied 7/12/10 (Lippman, Ch. J.)
People v Wingate	2d Dept: 70 AD3d 734 (Queens)	granted 7/15/10 (Smith, J.)
People v Yagudaev	2d Dept: 70 AD3d 984 (Queens)	denied 7/14/10 (Ciparick, J.)
People v Young	4th Dept: 68 AD3d 1761 (Wayne)	denied 7/6/10 (Read, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(July 1, 2010 through July 31, 2010)

People v Fernandez	3d Dept: 74 AD3d 1379 (Ulster)	granted 7/8/10 (McCarthy, J.)
People v Gibson	4th Dept: 74 AD3d 1700 (Erie)	granted 7/30/10 (Green, J.)

In the Matter of OSCAR CINTRON, Appellant, v JUDITH A. CALOGERO, as Commissioner of the Division of Housing and Community Renewal of the State of New York, Respondent.

Submitted August 2, 2010; decided August 26, 2010

Reported below, 59 AD3d 345.

Motion by Met Council, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

GRIFFITH OIL COMPANY, INC., et al., Respondents, v NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA., Appellant, et al., Defendants.

Submitted August 9, 2010; decided August 26, 2010

Reported below, 68 AD3d 1622.

* Includes only applications that were granted.

Motion by Complex Insurance Claims Litigation Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of SYLVIE GRIMM, Respondent, v STATE OF NEW YORK DIVISION OF HOUSING AND COMMUNITY RENEWAL OFFICE OF RENT ADMINISTRATION, Appellant, and 151 OWNERS CORP., Intervenor-Appellant.

Submitted July 26, 2010; decided August 26, 2010

Reported below, 68 AD3d 29.

Motion by Rent Stabilization Association of New York City, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of SYLVIE GRIMM, Respondent, v STATE OF NEW YORK DIVISION OF HOUSING AND COMMUNITY RENEWAL OFFICE OF RENT ADMINISTRATION, Appellant, and 151 OWNERS CORP., Intervenor-Appellant.

Submitted August 2, 2010; decided August 26, 2010

Reported below, 68 AD3d 29.

Motion by Community Housing Improvement Program of New York, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of KATHLEEN K., a Child Alleged to be Permanently Neglected. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; STEVEN K., Appellant. (Proceeding No. 1.)

In the Matter of RACHEL K., a Child Alleged to be Permanently Neglected. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; STEVEN K., Appellant. (Proceeding No. 2.)

Submitted July 19, 2010; decided August 26, 2010

Reported below, 71 AD3d 1146.

Motion for poor person relief granted.

MARC S. KIRSCHNER, as Trustee of the REFCO LITIGATION TRUST, Appellant, v KPMG LLP et al., Respondents, et al., Defendants.

Submitted August 2, 2010; decided August 26, 2010

See 590 F3d 186.

Motion by Professor William Wilson Bratton et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

MARC S. KIRSCHNER, as Trustee of the REFCO LITIGATION TRUST, Appellant, v KPMG LLP et al., Respondents, et al., Defendants.

Submitted August 9, 2010; decided August 26, 2010

See 590 F3d 186.

Motion by Anthony Paduano for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

MARC S. KIRSCHNER, as Trustee of the REFCO LITIGATION TRUST,
Appellant, v KPMG LLP et al., Respondents, et al., Defendants.

Submitted August 2, 2010; decided August 26, 2010

See 590 F3d 186.

Motion by DRI-The Voice of the Defense Bar for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

MARC S. KIRSCHNER, as Trustee of the REFCO LITIGATION TRUST,
Appellant, v KPMG LLP et al., Respondents, et al., Defendants.

Submitted August 2, 2010; decided August 26, 2010

See 590 F3d 186.

Motion by Professor M. Todd Henderson for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

MARC S. KIRSCHNER, as Trustee of the REFCO LITIGATION TRUST,
Appellant, v KPMG LLP et al., Respondents, et al., Defendants.

Submitted August 2, 2010; decided August 26, 2010

See 590 F3d 186.

Motion by Securities Industry and Financial Markets Association for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

MARC S. KIRSCHNER, as Trustee of the REFCO LITIGATION TRUST,
Appellant, v KPMG LLP et al., Respondents, et al., Defendants.

Submitted August 2, 2010; decided August 26, 2010

See 590 F3d 186.

Motion by National Association of Bankruptcy Trustees for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of ROBERT P. MEEGAN, JR., Individually and as President of Buffalo Police Benevolent Association, et al., Respondents, v BYRON W. BROWN, Mayor of City of Buffalo, et al., Appellants. (Proceeding No. 1.)

In the Matter of JOSEPH E. FOLEY, Individually and as President of Buffalo Professional Firefighters Association, Inc., Local 282, IAFF, AFL-CIO-CLC, et al., Respondents, v BYRON W. BROWN, Mayor of City of Buffalo, et al., Appellants. (Proceeding No. 2.)

BUFFALO TEACHERS FEDERATION, INC., NYSUT, et al., Respondents, v BUFFALO BOARD OF EDUCATION FOR CITY SCHOOL DISTRICT OF CITY OF BUFFALO et al., Appellants. (Action No. 1.)

Submitted August 9, 2010; decided August 26, 2010

Reported below, 63 AD3d 1673.

Motion by New York State School Boards Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of NEW YORK CHARTER SCHOOL ASSOCIATION et al., Respondents, v M. PATRICIA SMITH, as Commissioner of Labor, Appellant. (Proceeding No. 1.)

In the Matter of FOUNDATION FOR A GREATER OPPORTUNITY et al., Respondents, v M. PATRICIA SMITH, as Commissioner of Labor, et al., Appellants. (Proceeding No. 2.)

Submitted August 2, 2010; decided August 26, 2010

Reported below, 61 AD3d 1091.

Motion by New York State United Teachers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief

must be served and an original and 24 copies filed within seven days.

IN the Matter of NEW YORK CHARTER SCHOOL ASSOCIATION et al., Respondents, v M. PATRICIA SMITH, as Commissioner of Labor, Appellant. (Proceeding No. 1.)

IN the Matter of FOUNDATION FOR A GREATER OPPORTUNITY et al., Respondents, v M. PATRICIA SMITH, as Commissioner of Labor, et al., Appellants. (Proceeding No. 2.)

Submitted August 2, 2010; decided August 26, 2010

Reported below, 61 AD3d 1091.

Motion by New York City Charter School Center for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EMAR ABRAMS, Appellant.

Submitted July 19, 2010; decided August 26, 2010

Reported below, 73 AD3d 1225.

Motion for assignment of counsel granted and Mitchell S. Kessler, Esq., 63 Pike Creek Drive, Cohoes, New York 12047 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALLEN ALBERGOTTI, Appellant.

Submitted June 28, 2010; decided August 26, 2010

Reported below, 72 AD3d 401.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREMAINE ALEXANDER, Appellant.

Submitted July 6, 2010; decided August 26, 2010

Reported below, 56 AD3d 793.

Motion for an extension of the time within which to apply for

permission to appeal pursuant to CPL 460.20 denied as unnecessary and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LAMONT BEASLEY, Appellant.

Submitted July 19, 2010; decided August 26, 2010

Reported below, 69 AD3d 741.

Motion for assignment of counsel granted only to the extent that Jeremy Gutman, Esq., 233 Broadway, Suite 2707, New York, NY 10279 is assigned without fee to represent appellant on the appeal herein. Counsel may, however, apply for reimbursement of necessary disbursements incurred in connection with the assignment.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAURICE BENSTON, Appellant.

Submitted June 28, 2010; decided August 26, 2010

Reported below, 70 AD3d 479.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERNEST BRANNON, Appellant.

Submitted July 6, 2010; decided August 26, 2010

Reported below, 60 AD3d 498.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAYMOND BRUN, Appellant.

Submitted July 26, 2010; decided August 26, 2010

Reported below, 64 AD3d 611.

Motion for assignment of counsel granted and Norman Trabulus, Esq., 345 7th Avenue, 21st Floor, New York, NY 10001 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTIAN BUENO, Appellant.

Submitted August 16, 2010; decided August 26, 2010

Reported below, 71 AD3d 908.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RAYMOND CLYDE, Respondent.

Submitted June 28, 2010; decided August 26, 2010

Reported below, 72 AD3d 1538, 1543.

Motion for assignment of counsel granted and David P. Elkovitch, Esq., 199 Genesee Street, Auburn, New York 13021 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEXANDER G. CRAMPE, Appellant.

Submitted August 9, 2010; decided August 26, 2010

Reported below, 26 Misc 3d 144(A).

Motion for assignment of counsel granted and Robert C. Mitchell, Esq., Legal Aid Society of Suffolk County, Inc., Arthur M. Cromarty Court Complex, 300 Center Drive, PO Box 1697, Riverhead, New York 11901 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE FERNANDEZ, Appellant.

Submitted July 12, 2010; decided August 26, 2010

Reported below, 60 AD3d 549.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RODRIGUEZ GARCIA, Also Known as CARLOS RODRIGUEZ, Appellant.

Submitted July 26, 2010; decided August 26, 2010

Reported below, 71 AD3d 555.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEFFREY D. GIBSON, Appellant.

Submitted August 23, 2010; decided August 26, 2010

Reported below, 74 AD3d 1700.

Motion for assignment of counsel granted and David C. Schopp, Esq., the Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH HAYES, Appellant.

Submitted July 12, 2010; decided August 26, 2010

Reported below, 72 AD3d 441.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GREGORY HILL, Appellant.

Submitted August 23, 2010; decided August 26, 2010

Reported below, 70 AD3d 1487.

Motion for assignment of counsel granted and David C. Schopp, Esq., the Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALICIA LEWIE, Appellant.

Submitted July 12, 2010; decided August 26, 2010

Reported below, 67 AD3d 1056.

Motion for assignment of counsel granted and Matthew C. Hug, Esq., Rensselaer Technology Park, 105 Jordan Road, Troy, New York 12180 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROY MARTIN, Also Known as REALITY MARTIN, Appellant.

Submitted July 12, 2010; decided August 26, 2010

Reported below, 71 AD3d 917.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN MEDINA, Appellant.

Submitted August 9, 2010; decided August 26, 2010

Reported below, 67 AD3d 548.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PEDRO MELENDEZ, Appellant.

Submitted July 6, 2010; decided August 26, 2010

Reported below, 71 AD3d 530.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEAN
PACQUETTE, Appellant.

Submitted August 23, 2010; decided August 26, 2010

Reported below, 73 AD3d 1088.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN
PARISI, Appellant.

Submitted August 16, 2010; decided August 26, 2010

Reported below, 72 AD3d 989.

Motion for assignment of counsel granted and Robert C. Mitchell, Esq., Legal Aid Society of Suffolk County, Inc., Arthur M. Cromarty Court Complex, 300 Center Drive, PO Box 1697, Riverhead, New York 11901 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERMAL
QOSHJA, Appellant.

Submitted August 16, 2010; decided August 26, 2010

Reported below, 72 AD3d 527.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
FLETCHER B. QUILLER, Appellant.

Submitted June 28, 2010; decided August 26, 2010

Reported below, 27 Misc 3d 79.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CARLOS REYES, Respondent.

Submitted August 2, 2010; decided August 26, 2010

Reported below, 69 AD3d 523.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE RIVERA, Appellant.

Submitted July 19, 2010; decided August 26, 2010

Reported below, 72 AD3d 576.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARRYL ROBINSON, Appellant.

Submitted July 6, 2010; decided August 26, 2010

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRANCE D. ROBINSON, Appellant.

Submitted July 26, 2010; decided August 26, 2010

Reported below, 69 AD3d 973.

Motion for assignment of counsel granted and Bruce E. Knoll, Esq., PO Box 2072, Empire State Plaza Station, Albany, New York 12220 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISIDRO RODRIGUEZ, Appellant.

Submitted August 23, 2010; decided August 26, 2010

Reported below, 71 AD3d 450.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH STEPTER, Appellant.

Submitted July 12, 2010; decided August 26, 2010

Reported below, 67 AD3d 497.

Motion for an order pursuant to CPLR 1012 (b) (2) permitting movant City of New York to file a brief and participate in the appeal granted in each respect.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRUCE SWEEPER, Appellant.

Submitted July 12, 2010; decided August 26, 2010

Reported below, 71 AD3d 439.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL THOMAS, Appellant.

Submitted July 19, 2010; decided August 26, 2010

Reported below, 68 AD3d 685.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL D. WESLEY, Appellant.

Submitted July 12, 2010; decided August 26, 2010

Reported below, 68 AD3d 902.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BLAKE WINGATE, Appellant.

Submitted August 2, 2010; decided August 26, 2010

Reported below, 70 AD3d 734.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

KIM RAGLAND, Appellant, v J.F. BELLNIER, as Superintendent of Upstate Correctional Facility, Respondent.

Submitted June 14, 2010; decided August 26, 2010

Motion to vacate this Court's May 7, 2010 dismissal order granted [*see* 14 NY3d 884 (2010)]. On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

TEACHERS' RETIREMENT SYSTEM OF LOUISIANA et al., Appellants,
v PRICEWATERHOUSECOOPERS LLP, Respondent.

MARC S. KIRSCHNER, as Trustee of the REFCO LITIGATION TRUST,
Appellant, v KPMG LLP et al., Respondents, et al., Defendants.

Submitted August 2, 2010; decided August 26, 2010

See 998 A2d 280.

Motion by American Institute of Certified Public Accountants et al. for leave to file a brief amici curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

TEACHERS' RETIREMENT SYSTEM OF LOUISIANA et al., Appellants,
v PRICEWATERHOUSECOOPERS LLP, Respondent.

MARC S. KIRSCHNER, as Trustee of the REFCO LITIGATION TRUST,
Appellant, v KPMG LLP et al., Respondents, et al., Defendants.

Submitted August 2, 2010; decided August 26, 2010

See 998 A2d 280.

Motion by the Center for Audit Quality for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

[934 NE2d 876, 908 NYS2d 143]

THOMAS P. CASH, Plaintiff, v FRANCINE CASH, Defendant.

THOMAS P. CASH, Appellant, v FRANCINE CASH et al., Defendants, and MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC., et al., Respondents. (And Another Action.)

Decided August 31, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second

Judicial Department, entered September 22, 2009. The Appellate Division order, insofar as appealed from, modified, on the law, so much of an order of the Supreme Court, Suffolk County (Andrew A. Crecca, J.), which had denied that branch of a motion by Mortgage Electronic Registration Systems, Inc. and Fremont Investment & Loan for summary judgment dismissing the first cause of action in an action to set aside a deed insofar as asserted against them. The modification consisted of deleting the provision of the order denying that branch of the motion which was for summary judgment dismissing the first cause of action in the action to set aside a deed insofar as asserted against movants, and substituting therefor a provision granting that branch of the motion.

The first above-entitled action was for a divorce and ancillary relief. The remaining two related actions sought to set aside a deed on the basis of fraud, and to foreclose a mortgage given on the deeded property. In November 2001, the individual plaintiff acquired title to certain property in Ronkonkoma, New York. In June 2002 a deed was executed transferring title to the property to plaintiff's wife. The same day, plaintiff's wife executed a mortgage on the property in favor of Flagstar Bank and turned over most of the proceeds from the mortgage to her husband, who claimed that in June 2004, while preparing to file for divorce, he discovered that his wife had forged his name on a deed which transferred title to the Ronkonkoma property from him to her. He filed a notice of pendency on the property in August 2004. Shortly thereafter, plaintiff's wife executed a mortgage on the Ronkonkoma property in favor of Fremont Investment & Loan. The mortgagees sought relief alleging, in part, that plaintiff, by accepting the proceeds from the Flagstar Bank loan, had ratified the forgery.

Cashel v Cashel, 65 AD3d 1182, reversed.

HEADNOTE

Deeds — Setting Aside Deed — Ratification

In an action to set aside a deed, issues of fact existed with respect to whether plaintiff possessed the requisite "knowledge of material facts" concerning the allegedly binding deed so as to have ratified its purported forgery by his wife. Although plaintiff admitted to receiving certain monies from his wife, he alleged that she "advis[ed] him that she had received these funds from the proceeds of the mortgage loan," which he had authorized her to obtain as his agent. Moreover, plaintiff's receipt of those monies did not prove that he had any prior knowledge of his wife's alleged forgery of the deed, especially considering that he authorized her to obtain a mortgage on the property. In addition, plaintiff claimed that he had not learned of the alleged forgery until

June 2004 and that he filed a notice of pendency on the property in August 2004—several months before defendant mortgagee issued its loan to plaintiff's wife. Thus, it could not be concluded, as a matter of law, that plaintiff ratified the deed.

APPEARANCES OF COUNSEL

Saltzman Chetkof & Rosenberg, LLP, Garden City (*Michael Chetkof* of counsel), for appellant.

Solomon & Siris, P.C., Uniondale (*Michael J. Siris* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, and the motion by defendants Fremont Investment & Loan and Mortgage Electronic Registration Systems, Inc. for summary judgment dismissing the first cause of action against them denied.

Issues of fact exist with respect to whether plaintiff Thomas P. Cashel possessed the requisite “knowledge of material facts” concerning the allegedly binding deed (*Matter of New York State Med. Transporters Assn. v Perales*, 77 NY2d 126, 131 [1990]). Although plaintiff admitted to receiving certain monies from Francine Cashel, he alleged that she “advis[ed] him that she had received these funds from the proceeds of the mortgage loan,” which he had authorized her to obtain as his agent. Moreover, as argued by plaintiff, his receipt of these monies does not prove that he had any prior knowledge of Francine’s alleged forgery of the deed, especially considering that he authorized her to obtain a mortgage on the property. In addition, plaintiff claimed that he had not learned of the alleged forgery until June 2004 and that he filed a notice of pendency on the property in August 2004—several months before defendant Fremont Investment & Loan issued its loan to Francine. Thus, the Court cannot conclude, as a matter of law, that plaintiff ratified the deed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, etc.

[934 NE2d 877, 908 NYS2d 144]

SAPPHIRE SIMMONS, an Infant, by Her Mother and Natural Guardian, ROSEMARY SIMMONS, et al., Appellants, v VITO SACCHETTI et al., Respondents, et al., Defendant.

Decided August 31, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 25, 2009. The Appellate Division (1) reversed, on the law, orders of the Supreme Court, Bronx County (Dominic R. Massaro, J.), which had denied motions by defendants building owner and management company, and by defendant boiler service contractor, for summary judgment dismissing the complaint and all cross claims against them, (2) granted the motions, and (3) dismissed the complaint and all cross claims against those defendants.

This action arose from an accident in which plaintiff, then 17 months old, was injured when she fell into a bathtub containing scalding hot water. The building complex was owned by defendant Vito Sacchetti, and managed by his son, an employee of defendant TMS Management Company. Defendant Ambassador Fuel and Oil Burner Corp. had an oral contract with Sacchetti, who claimed that Ambassador's obligations included maintaining and repairing the building's hot water system. Ambassador asserted that its only responsibilities were to supply fuel oil and conduct annual inspections of the boiler sufficient to satisfy New York City Building Department requirements. The complaint alleged that plaintiff's injuries were caused by defendants' negligence in failing to properly maintain the water system in the building.

The Appellate Division, noting that other tenants of the building testified that they previously had complained about the water temperature, stated that it was undisputed that the accident occurred when the unattended child was scalded after getting or falling into the bathtub after her brother had turned on hot water only, and while her mother was in another room.

Simmons v Sacchetti, 65 AD3d 495, modified.

HEADNOTE**Negligence — Maintenance of Premises**

In a personal injury action arising out of a 17-month-old infant being scalded after she fell into a bathtub, triable issues of fact existed as to whether the

landlord and building management company negligently failed to maintain the apartment building's boiler and domestic hot water system in a reasonably safe condition, and whether the negligence of those defendants proximately caused plaintiff's injuries. Issues of fact also existed as to whether the conduct of the infant plaintiff's mother and brother constituted a superseding cause of her injuries. However, the record established as a matter of law that the boiler service contractor did not violate any duty owed to plaintiffs.

APPEARANCES OF COUNSEL

Law Offices of Arnold E. DiJoseph, P.C., New York City (*Arnold E. DiJoseph, III*, of counsel), for appellants.

Law Office of Max W. Gershweir, New York City (*Max W. Gershweir* of counsel), for Vito Sacchetti and another, respondents.

Molod Spitz & DeSantis, P.C., New York City (*Marcy Sonneborn* of counsel), for Ambassador Fuel and Oil Burner Corp., respondent.

Wilson, Elser, Moskowitz, Edelman & Dicker LLP, White Plains (*Debra A. Adler* of counsel), for F&B Fuel Oil Co., Inc., respondent.

Stuart W. Lawrence, New York City, for Met Council, Inc. and another, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by denying the motion of defendants Vito Sacchetti and TMS Management Company for summary judgment in the entirety and the motion of defendant Ambassador Fuel and Oil Burner Corp. insofar as it sought to dismiss the cross claims against it and, as so modified, affirmed.

Triable issues of fact exist as to whether defendants Sacchetti and TMS negligently failed to maintain the apartment building's boiler and domestic hot water system in a reasonably safe condition and whether the negligence of those defendants proximately caused the infant plaintiff's injuries. Issues of fact also exist as to whether the conduct of the infant plaintiff's mother and brother constituted a superseding cause of her injuries. However, the record establishes as a matter of law that defendant Ambassador did not violate any duty owed to plaintiffs.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, etc.

CITY OF NEW YORK, Respondent, v GOLDEN FEATHER SMOKE SHOP, INC., et al., Defendants, and MONIQUE'S SMOKE SHOP et al., Appellants.

Decided August 31, 2010

See 597 F3d 115.

Pursuant to the August 20, 2010 order of the United States Court of Appeals for the Second Circuit withdrawing its certification of questions accepted by the Court of Appeals on May 11, 2010 [*see* 14 NY3d 880 (2010)], certified questions marked withdrawn.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

FIDELITY NATIONAL TITLE INSURANCE COMPANY et al., Respondents, and SHEILA FERRARI et al., Intervenors-Appellants, v REGENT ABSTRACT SERVICES, LTD., et al., Respondents. NEW YORK LIFE INSURANCE COMPANY, Third-Party Defendant-Respondent.

Submitted June 1, 2010; decided August 31, 2010

Reported below, 70 AD3d 447.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Matter of Haverstraw Park v Runcible Props. Corp.*, 33 NY2d 637 [1973]).

LEXJAC, LLC, et al., Respondents, v JULIANNE W. BECKERMAN et al., Appellants.

Submitted June 1, 2010; decided August 31, 2010

Reported below, 72 AD3d 748.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

ANTHONY MARRACCINI, Appellant, v JOHN RYAN et al., Respondents, et al., Defendants.

Submitted June 1, 2010; decided August 31, 2010

Reported below, 71 AD3d 1100.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that denied appellant's motion for leave to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise granted.

In the Matter of MARVIN POLLACK, Appellant. STATE OF NEW YORK et al., Respondents.

Submitted June 14, 2010; decided August 31, 2010

Reported below, 2010 NY Slip Op 69456(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of GAIL PRICE, Appellant, v SOUTHWEST AIRLINES, INC., Respondent.

Submitted June 14, 2010; decided August 31, 2010

Reported below, 66 AD3d 1267.

Motion for reargument of motion for leave to appeal denied [see 14 NY3d 858 (2010)].

In the Matter of the Estate of CAROLYN H. RENZI, Deceased. PHYLLIS CAMPANILE NICOLELLA, as Executor of CAROLYN H. RENZI, Deceased, Respondent; THOMAS F. CAMPANILE JR., Appellant.

Submitted June 14, 2010; decided August 31, 2010

Reported below, 67 AD3d 1078.

Motion for reargument of motion for leave to appeal denied [see 14 NY3d 708 (2010)]. Motion for poor person relief dismissed as academic.

DAVID B. SHARPE, Respondent, v JOANNE RAFFER, Appellant.

Submitted June 14, 2010; decided August 31, 2010

Reported below, 69 AD3d 1137.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the STATE OF NEW YORK, Appellant, v MUSTAFA RASHID, Respondent.

Submitted July 12, 2010; decided August 31, 2010

Reported below, 68 AD3d 615.

Motion to vacate stay denied. Motion for a preference granted.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(August 1, 2010 through August 31, 2010)

Collins, Matter of, v Bellnier	Sup Ct, Franklin County, Aug. 24, 2009	8/24/10
Walsh, Matter of, v Katz	2d Dept: 66 AD3d 1052	8/2/10

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2010 through August 31, 2010)

People v Abreu	1st Dept: 73 AD3d 412 (NY)	denied 8/3/10 (Pigott, J.)
People v Aguayo	2d Dept: 73 AD3d 938 (Queens)	denied 8/17/10 (Read, J.)
People v Ahmed	1st Dept: 72 AD3d 502 (NY)	denied 8/9/10 (Lippman, Ch. J.)
People v Alexander	1st Dept: 72 AD3d 559 (NY)	denied reconsideration 8/31/10 (Grafteo, J.)
People v Amen	2d Dept: 72 AD3d 991 (Kings)	denied 8/3/10 (Pigott, J.)
People v Anderson	4th Dept: 72 AD3d 1657 (Monroe)	denied 8/3/10 (Read, J.)
People v Andino	2d Dept: 73 AD3d 1195 (Queens)	denied 8/18/10 (Pigott, J.)
People v Arena	2d Dept: 70 AD3d 1044 (Kings)	denied 8/18/10 (Read, J.)

People v Auleta	App Div, 3d Dept: 2010 NY Slip Op 76065(U) (Albany)	dismissed 8/27/10 (Ciparick, J.)
People v Ayala	App Div, 1st Dept: 2010 NY Slip Op 73963(U) (NY)	denied 8/31/10 (Grafteo, J.)
People v Barnes	App Div, 3d Dept: 2010 NY Slip Op 74126(U) (Schenectady)	dismissed 8/10/10 (Pigott, J.)
People v Barnish	4th Dept: 72 AD3d 1551 (Onondaga)	denied 8/3/10 (Read, J.)
People v Beal	1st Dept: 72 AD3d 515 (NY)	denied 8/20/10 (Jones, J.)
People v Becoats	4th Dept: 71 AD3d 1578 (Monroe)	granted 8/20/10 (Jones, J.)
People v Bennett	1st Dept: 73 AD3d 412 (NY)	denied 8/4/10 (Lippman, Ch. J.)
People v Bens	2d Dept: 71 AD3d 1155 (Queens)	denied 8/20/10 (Jones, J.)
People v Beverly	3d Dept: 74 AD3d 1480 (Albany)	denied 8/27/10 (Pigott, J.)
People v Black	2d Dept: 73 AD3d 798 (Westchester)	denied 8/11/10 (Smith, J.)
People v Blair	App Div, 4th Dept, 5/28/10 (Wayne)	dismissed 8/9/10 (Pigott, J.)
People v Bolarinwa	App Div, 3d Dept: 2010 NY Slip Op 65353(U) (Albany)	denied reconsideration 8/4/10 (Lippman, Ch. J.)
People v Borrell	2d Dept: 73 AD3d 1197 (Queens)	denied 8/13/10 (Pigott, J.)
People v Bradley	2d Dept: 73 AD3d 1198 (Suffolk)	denied 8/9/10 (Smith, J.)
People v Bretti	4th Dept: 70 AD3d 1517 (Oneida)	denied reconsideration 8/4/10 (Pigott, J.)
People v Brown (Clarence)	4th Dept: 74 AD3d 1748 (Cayuga)	denied 8/5/10 (Ciparick, J.)
People v Brown (Edward)	App Div, 2d Dept: 2010 NY Slip Op 74765(U) (Kings)	dismissed 8/27/10 (Pigott, J.)
People v Brown (James)	4th Dept: 72 AD3d 1657 (Erie)	denied 8/3/10 (Read, J.)
People v Brown (Jazzmone)	4th Dept: 70 AD3d 1302 (Erie)	granted 8/12/10 (Lippman, Ch. J.)
People v Bryant (Kevin)	4th Dept: 74 AD3d 1794 (Monroe)	denied 8/31/10 (Smith, J.)
People v Bryant (Michael)	2d Dept: 74 AD3d 1221 (Kings)	denied 8/31/10 (Grafteo, J.)
People v Burgos	4th Dept: 74 AD3d 1878 (Monroe)	denied 8/18/10 (Pigott, J.)
People v Burroughs	4th Dept: 71 AD3d 1447 (Steuben)	denied 8/20/10 (Jones, J.)
People v Cameron	1st Dept: 71 AD3d 533 (NY)	denied 8/20/10 (Jones, J.)

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People v Carr	2d Dept: 74 AD3d 835 (Westchester)	denied 8/30/10 (Ciparick, J.)
People v Carrasquillo	4th Dept: 71 AD3d 1591 (Onondaga)	denied 8/20/10 (Jones, J.)
People v Castro	2d Dept: 73 AD3d 800 (Queens)	denied 8/18/10 (Read, J.)
People v Caswell	4th Dept: 71 AD3d 1547 (Cayuga)	denied 8/3/10 (Jones, J.)
People v Cesario	1st Dept: 71 AD3d 587 (Bronx)	denied 8/3/10 (Pigott, J.)
People v Charles	App Div, 2d Dept: 2010 NY Slip Op 69264(U) (Kings)	dismissed 8/17/10 (Read, J.)
People v Clement	4th Dept: 71 AD3d 1458 (Lewis)	denied 8/18/10 (Read, J.)
People v Cobb	4th Dept: 72 AD3d 1565 (Monroe)	denied 8/3/10 (Read, J.)
People v Colon-Velazquez (Frankie)	4th Dept: 74 AD3d 1790 (Ontario)	denied 8/5/10 (Ciparick, J.)
People v Colon-Velazquez (Frankie)	4th Dept: 74 AD3d 1792 (Ontario)	denied 8/5/10 (Ciparick, J.)
People v Contino	App Term, 1st Dept: 26 Misc 3d 141(A) (NY)	denied 8/18/10 (Read, J.)
People v Coons	3d Dept: 73 AD3d 1343 (Schenectady)	denied 8/4/10 (Lippman, Ch. J.)
People v Cooper	4th Dept: 72 AD3d 1552 (Erie)	denied 8/3/10 (Pigott, J.)
People v Credle	1st Dept: 66 AD3d 572 (NY)	granted upon reconsideration 8/20/10 (Jones, J.)
People v Crewe	2d Dept: 73 AD3d 943 (Westchester)	denied 8/30/10 (Ciparick, J.)
People v Cromwell	1st Dept: 71 AD3d 414 (NY)	denied 8/20/10 (Jones, J.)
People v Cross (Cornelius)	4th Dept: 74 AD3d 1782 (Niagara)	denied 8/4/10 (Lippman, Ch. J.)
People v Cross (Mark)	2d Dept: 72 AD3d 1108 (Kings)	denied 8/4/10 (Pigott, J.)
People v Cross (Quintin)	App Div, 3d Dept: 2010 NY Slip Op 72222(U) (Columbia)	dismissed 8/17/10 (Read, J.)
People v Cruz	3d Dept: 74 AD3d 1496 (Albany)	denied 8/27/10 (Pigott, J.)
People v Dale	4th Dept: 71 AD3d 1517 (Livingston)	denied reconsideration 8/23/10 (Grafteo, J.)
People v Davis (Curtis)	App Div, 1st Dept: 2010 NY Slip Op 72669(U) (Bronx)	dismissed 8/19/10 (Grafteo, J.)
People v Davis (Justin)	3d Dept: 72 AD3d 1206 (Washington)	denied 8/3/10 (Pigott, J.)

People v Davis (Tiquan)	2d Dept: 66 AD3d 796 (Kings)	denied reconsideration 8/10/10 (Pigott, J.)
People v Deacon	4th Dept: 74 AD3d 1816 (Monroe)	denied 8/31/10 (Grafteo, J.)
People v Desmond	2d Dept: 71 AD3d 914 (Suffolk)	denied 8/3/10 (Jones, J.)
People v Diaz	2d Dept: 71 AD3d 1158 (Queens)	denied 8/18/10 (Read, J.)
People v Douglas	2d Dept: 73 AD3d 30 (Kings)	denied 8/20/10 (Jones, J.)
People v Dozier	4th Dept: 74 AD3d 1808 (Erie)	denied 8/18/10 (Pigott, J.)
People v Dunbar	1st Dept: 72 AD3d 566 (NY)	denied 8/9/10 (Lippman, Ch. J.)
People v Elisa	2d Dept: 74 AD3d 1357 (Kings)	denied 8/30/10 (Smith, J.)
People v Empey	3d Dept: 73 AD3d 1387 (St. Lawrence)	denied 8/18/10 (Read, J.)
People v Espinal	App Div, 2d Dept: 2010 NY Slip Op 72085(U) (Queens)	dismissed 8/19/10 (Grafteo, J.)
People v Estela	App Div, 2d Dept: 2010 NY Slip Op 78227(U) (Kings)	dismissed 8/20/10 (Jones, J.)
People v Facen (Dorian)	4th Dept: 71 AD3d 1410 (Erie)	denied reconsideration 8/23/10 (Grafteo, J.)
People v Facen (Dorian)	4th Dept: 71 AD3d 1411 (Erie)	denied reconsideration 8/23/10 (Grafteo, J.)
People v Farrell	4th Dept: 71 AD3d 1507 (Erie)	denied 8/20/10 (Jones, J.)
People v Ferguson	2d Dept: 71 AD3d 1046 (Kings)	denied 8/4/10 (Lippman, Ch. J.)
People v Fernandez	1st Dept: 72 AD3d 555 (Bronx)	denied 8/9/10 (Smith, J.)
People v Flores	1st Dept: 73 AD3d 614 (NY)	denied 8/18/10 (Read, J.)
People v Fogel	2d Dept: 73 AD3d 803 (Queens)	denied 8/17/10 (Read, J.)
People v Fortune	App Div, 2d Dept: 2009 NY Slip Op 91122(U) (Kings)	denied reconsideration 8/18/10 (Read, J.)
People v Franov	2d Dept: 71 AD3d 914 (Queens)	granted 8/16/10 (Read, J.)
People v French	3d Dept: 72 AD3d 1397 (Warren)	denied 8/9/10 (Lippman, Ch. J.)
People v Galasso	County Ct, 4/27/10 (Erie)	denied 8/23/10 (Pigott, J.)

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People v Garabo	1st Dept: 72 AD3d 588 (Bronx)	denied 8/9/10 (Lippman, Ch. J.)
People v Garner	App Div, 4th Dept, 6/22/10 (Oneida)	dismissed 8/19/10 (Grafteo, J.)
People v George	1st Dept: 73 AD3d 401 (Bronx)	denied 8/4/10 (Pigott, J.)
People v Gilbert	4th Dept: 74 AD3d 1792 (Monroe)	denied 8/31/10 (Grafteo, J.)
People v Gillespie	App Div, 1st Dept: 2010 NY Slip Op 64555(U) (NY)	denied reconsideration 8/9/10 (Grafteo, J.)
People v Gilliam	4th Dept: 74 AD3d 1844 (Onondaga)	denied 8/23/10 (Grafteo, J.)
People v Glenn	4th Dept: 72 AD3d 1567 (Erie)	denied 8/4/10 (Pigott, J.)
People v Goodwine (Gregory)	2d Dept: 71 AD3d 1159 (Westchester)	denied reconsideration 8/23/10 (Grafteo, J.)
People v Goodwine (Gregory)	2d Dept: 74 AD3d 984 (Westchester)	denied 8/30/10 (Pigott, J.)
People v Grant	2d Dept: 73 AD3d 1079 (Kings)	denied 8/9/10 (Smith, J.)
People v Gregory	4th Dept: 72 AD3d 1522 (Monroe)	denied 8/17/10 (Read, J.)
People v Guinyard	4th Dept: 72 AD3d 1545 (Erie)	denied 8/17/10 (Read, J.)
People v Harley	2d Dept: 74 AD3d 1090 (Suffolk)	denied 8/27/10 (Pigott, J.)
People v Harris (Horace)	App Div, 1st Dept: 2010 NY Slip Op 69198(U) (NY)	dismissed 8/9/10 (Grafteo, J.)
People v Harris (Robert)	2d Dept: 74 AD3d 838 (Suffolk)	denied 8/18/10 (Pigott, J.)
People v Heier	3d Dept: 73 AD3d 1392 (Broome)	denied 8/30/10 (Pigott, J.)
People v Henriquez (Michael)	App Div, 1st Dept: 2010 NY Slip Op 69711(U) (Bronx)	denied 8/19/10 (Smith, J.)
People v Henriquez (Mike)	App Div, 1st Dept: 2010 NY Slip Op 69711(U) (Bronx)	denied 8/19/10 (Smith, J.)
People v Henry	1st Dept: 72 AD3d 594 (Bronx)	denied 8/18/10 (Pigott, J.)
People v Hernandez (Jose)	2d Dept: 74 AD3d 839 (Nassau)	denied 8/31/10 (Grafteo, J.)
People v Hernandez (Miguel)	2d Dept: 74 AD3d 839 (Nassau)	denied 8/31/10 (Grafteo, J.)
People v Hill (Gregory)	App Div, 4th Dept: 2010 NY Slip Op 77544(U) (Erie)	dismissed 8/18/10 (Lippman, Ch. J.)
People v Hill (Spencer)	4th Dept: 74 AD3d 1782 (Erie)	denied 8/19/10 (Smith, J.)
People v Hill (Tyrone)	2d Dept: 74 AD3d 1092 (Orange)	denied 8/30/10 (Smith, J.)

People v Howard	3d Dept: 72 AD3d 1199 (Tompkins)	denied 8/4/10 (Pigott, J.)
People v Huger-Love	App Term, 1st Dept: 27 Misc 3d 126(A) (NY)	denied 8/31/10 (Smith, J.)
People v Hunt	4th Dept: 74 AD3d 1741 (Ontario)	denied 8/18/10 (Read, J.)
People v Hunter	4th Dept: 71 AD3d 1479 (Erie)	denied 8/3/10 (Jones, J.)
People v Hyman	2d Dept: 73 AD3d 1211 (Queens)	denied 8/9/10 (Smith, J.)
People v Jackson (Edward)	4th Dept: 71 AD3d 1547 (Erie)	denied 8/3/10 (Pigott, J.)
People v Jackson (Samuel)	App Term, 2d Dept: 26 Misc 3d 133(A) (Kings)	denied 8/3/10 (Jones, J.)
People v Jenkins	2d Dept: 66 AD3d 800 (Nassau)	denied 8/10/10 (Smith, J.)
People v Johnson	4th Dept: 72 AD3d 1641 (Monroe)	denied 8/17/10 (Read, J.)
People v Jones	1st Dept: 72 AD3d 452 (NY)	denied 8/20/10 (Jones, J.)
People v Kalb	4th Dept: 72 AD3d 1615 (Chautauqua)	denied 8/4/10 (Pigott, J.)
People v Kennedy	4th Dept: 74 AD3d 1845 (Oswego)	denied 8/20/10 (Smith, J.)
People v Khaburzanian	App Term, 2d Dept: 2010 NY Slip Op 73686(U) (Queens)	dismissed 8/12/10 (Pigott, J.)
People v King	2d Dept: 73 AD3d 1083 (Queens)	denied 8/4/10 (Lippman, Ch. J.)
People v Kozody	4th Dept: 74 AD3d 1907 (Niagara)	denied 8/30/10 (Ciparick, J.)
People v Krasso	1st Dept: 72 AD3d 554 (NY)	denied 8/4/10 (Pigott, J.)
People v Lahoz	2d Dept: 72 AD3d 987 (Orange)	denied 8/17/10 (Read, J.)
People v Lassiter	2d Dept: 74 AD3d 1094 (Kings)	denied 8/20/10 (Smith, J.)
People v Lattimore	1st Dept: 74 AD3d 497 (NY)	denied 8/9/10 (Smith, J.)
People v Lawrence	App Div, 2d Dept: 2009 NY Slip Op 80042(U) (Nassau)	denied 8/18/10 (Read, J.)
People v Ledger	2d Dept: 74 AD3d 841 (Queens)	denied 8/12/10 (Pigott, J.)
People v Lee (Gregory)	2d Dept: 73 AD3d 1085 (Kings)	denied 8/16/10 (Grafteo, J.)
People v Lee (Melvin)	App Div, 4th Dept, 4/27/10 (Erie)	denied reconsideration 8/31/10 (Grafteo, J.)
People v Lent	App Term, 2d Dept: 29 Misc 3d 14 (Nassau)	denied 8/31/10 (Grafteo, J.)
People v Lewis (Kaid)	1st Dept: 73 AD3d 495 (NY)	denied 8/5/10 (Ciparick, J.)

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People v Lewis (Reuben)	3d Dept: 73 AD3d 1340 (Clinton)	denied 8/10/10 (Smith, J.)
People v Lopez	1st Dept: 72 AD3d 593 (NY)	denied 8/23/10 (Grafteo, J.)
People v Luckey	1st Dept: 73 AD3d 568 (NY)	denied 8/4/10 (Pigott, J.)
People v Manos	3d Dept: 73 AD3d 1333 (Tompkins)	denied 8/12/10 (Lippman, Ch. J.)
People v Markel	4th Dept: 74 AD3d 1815 (Niagara)	denied 8/12/10 (Pigott, J.)
People v Martinez	4th Dept: 73 AD3d 1432 (Erie)	denied 8/4/10 (Lippman, Ch. J.)
People v Maye	3d Dept: 69 AD3d 1115 (Albany)	denied 8/3/10 (Jones, J.)
People v McCants (Cedric)	2d Dept: 73 AD3d 1086 (Nassau)	denied 8/11/10 (Smith, J.)
People v McCants (Germaine)	2d Dept: 67 AD3d 821 (Nassau)	leave denied upon reconsideration 8/16/10 (Grafteo, J.)
People v McCrary	2d Dept: 71 AD3d 1049 (Nassau)	denied 8/20/10 (Jones, J.)
People v McIntosh	1st Dept: 73 AD3d 653 (NY)	granted 8/23/10 (Pigott, J.)
People v Meeks	2d Dept: 72 AD3d 847 (Queens)	denied 8/10/10 (Smith, J.)
People v Melendez	1st Dept: 74 AD3d 629 (NY)	denied 8/31/10 (Smith, J.)
People v Merritt	1st Dept: 74 AD3d 648 (Bronx)	denied 8/18/10 (Lippman, Ch. J.)
People v Miller	2d Dept: 74 AD3d 842 (Kings)	denied 8/23/10 (Grafteo, J.)
People v Mills	App Div, 4th Dept, 5/26/10 (Genesee)	dismissed 8/9/10 (Grafteo, J.)
People v Mitchell	2d Dept: 69 AD3d 883 (Queens)	denied 8/3/10 (Pigott, J.)
People v Molina	3d Dept: 73 AD3d 1292 (Albany)	denied 8/10/10 (Pigott, J.)
People v Morton	2d Dept: 73 AD3d 1214 (Suffolk)	denied 8/23/10 (Grafteo, J.)
People v Motyl	County Ct, 9/23/09 (Saratoga)	denied 8/17/10 (Read, J.)
People v Munroe	App Div, 3d Dept: 2010 NY Slip Op 72258(U) (Albany)	dismissed 8/4/10 (Lippman, Ch. J.)
People v Nash	App Div, 1st Dept: 2010 NY Slip Op 72337(U) (NY)	denied 8/12/10 (Lippman, Ch. J.)
People v Nazario	4th Dept: 74 AD3d 1809 (Erie)	denied 8/9/10 (Lippman, Ch. J.)
People v Nelson (Aaron)	2d Dept: 69 AD3d 762 (Kings)	denied 8/3/10 (Jones, J.)

People v Nelson (Aaron)	2d Dept: 69 AD3d 763 (Kings)	denied 8/3/10 (Jones, J.)
People v Nelson (Nakwan)	2d Dept: 73 AD3d 811 (Kings)	denied 8/4/10 (Pigott, J.)
People v Norman	2d Dept: 73 AD3d 812 (Kings)	denied 8/18/10 (Read, J.)
People v Nunez	4th Dept: 73 AD3d 1469 (Monroe)	denied 8/18/10 (Read, J.)
People v Oliver	App Div, 2d Dept: 2010 NY Slip Op 72542(U) (Nassau)	denied 8/11/10 (Smith, J.)
People v Ortega	1st Dept: 70 AD3d 416 (NY)	denied 8/20/10 (Jones, J.)
People v Pacquette	2d Dept: 73 AD3d 1088 (Kings)	granted 8/4/10 (Grafteo, J.)
People v Phem	2d Dept: 73 AD3d 1088 (Kings)	denied 8/10/10 (Smith, J.)
People v Pion	1st Dept: 74 AD3d 552 (NY)	denied 8/27/10 (Pigott, J.)
People v Pito	App Div, 1st Dept: 2010 NY Slip Op 73963(U) (NY)	denied 8/31/10 (Grafteo, J.)
People v Poles	4th Dept: 70 AD3d 1402 (Monroe)	denied 8/20/10 (Jones, J.)
People v Pookie	4th Dept: 71 AD3d 1547 (Cayuga)	denied 8/3/10 (Jones, J.)
People v Porter (Dallas)	4th Dept: 71 AD3d 1504 (Niagara)	denied 8/3/10 (Jones, J.)
People v Porter (Deshone)	2d Dept: 73 AD3d 953 (Nassau)	denied 8/17/10 (Read, J.)
People v Potter	4th Dept: 74 AD3d 1782 (Ontario)	denied 8/12/10 (Pigott, J.)
People v Prendergast	2d Dept: 71 AD3d 1055 (Queens)	granted 8/26/10 (Grafteo, J.)
People v Pujji (Jack)	2d Dept: 74 AD3d 1100 (Queens)	denied 8/11/10 (Smith, J.)
People v Pujji (Jagdeep)	2d Dept: 74 AD3d 1100 (Queens)	denied 8/11/10 (Smith, J.)
People v Quinones	1st Dept: 74 AD3d 494 (NY)	denied 8/20/10 (Smith, J.)
People v Raduns	4th Dept: 70 AD3d 1355 (Orleans)	denied reconsideration 8/17/10 (Read, J.)
People v Ramos	2d Dept: 74 AD3d 991 (Nassau)	denied 8/23/10 (Grafteo, J.)
People v Reid	1st Dept: 72 AD3d 550 (Bronx)	denied 8/5/10 (Ciparick, J.)
People v Relford	4th Dept: 73 AD3d 1437 (Monroe)	denied 8/4/10 (Pigott, J.)
People v Reyes (James)	2d Dept: 71 AD3d 1168 (Queens)	denied 8/3/10 (Jones, J.)
People v Reyes (Jose)	2d Dept: 74 AD3d 1101 (Suffolk)	denied 8/20/10 (Smith, J.)

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People v Reyes (Miguel)	1st Dept: 73 AD3d 623 (NY)	denied 8/11/10 (Smith, J.)
People v Richman	County Ct, 4/14/10 (Ontario)	denied reconsideration 8/13/10 (Grafteo, J.)
People v Rickard	4th Dept: 71 AD3d 1420 (Cattaraugus)	denied 8/20/10 (Jones, J.)
People v Rivers	4th Dept: 74 AD3d 1879 (Onondaga)	denied 8/23/10 (Grafteo, J.)
People v Roberson	2d Dept: 74 AD3d 1102 (Kings)	withdrawn 8/25/10 (Lippman, Ch. J.)
People v Robinson (Alphonso)	3d Dept: 72 AD3d 1277 (Albany)	denied 8/18/10 (Read, J.)
People v Robinson (Barry)	2d Dept: 74 AD3d 1103 (Dutchess)	denied 8/16/10 (Grafteo, J.)
People v Rodrigues	4th Dept: 74 AD3d 1818 (Jefferson)	denied 8/31/10 (Smith, J.)
People v Rodriguez (Eric)	1st Dept: 74 AD3d 494 (NY)	denied 8/20/10 (Smith, J.)
People v Rodriguez (Juan)	4th Dept: 74 AD3d 1858 (Onondaga)	denied 8/18/10 (Read, J.)
People v Rosario	1st Dept: 68 AD3d 600 (NY)	granted 8/27/10 (Read, J.)
People v Rushion	1st Dept: 72 AD3d 548 (NY)	denied 8/9/10 (Lippman, Ch. J.)
People v Sabin	3d Dept: 73 AD3d 1390 (Franklin)	denied 8/4/10 (Lippman, Ch. J.)
People v Sampson	2d Dept: 67 AD3d 1031 (Queens)	leave denied upon reconsideration 8/3/10 (Jones, J.)
People v Santana	1st Dept: 74 AD3d 475 (NY)	denied 8/10/10 (Pigott, J.)
People v Sarmiento	1st Dept: 72 AD3d 404 (NY)	denied 8/3/10 (Jones, J.)
People v Scott	2d Dept: 70 AD3d 978 (Queens)	denied 8/5/10 (Lippman, Ch. J.)
People v Shapard	4th Dept: 74 AD3d 1808 (Erie)	denied 8/16/10 (Grafteo, J.)
People v Shell	2d Dept: 73 AD3d 1095 (Dutchess)	denied 8/10/10 (Pigott, J.)
People v Shoman	2d Dept: 74 AD3d 843 (Kings)	denied 8/23/10 (Grafteo, J.)
People v Shujaat	1st Dept: 72 AD3d 568 (NY)	denied 8/10/10 (Smith, J.)
People v Singh	3d Dept: 73 AD3d 1384 (Schenectady)	denied 8/31/10 (Grafteo, J.)
People v Smalls	App Div, 2d Dept: 2010 NY Slip Op 72446(U) (Westchester)	dismissed 8/20/10 (Smith, J.)

People v Smiley	2d Dept: 73 AD3d 1096 (Suffolk)	denied 8/17/10 (Read, J.)
People v Smith	1st Dept: 74 AD3d 441 (Bronx)	denied 8/10/10 (Pigott, J.)
People v Sommers	4th Dept: 74 AD3d 1815 (Onondaga)	denied 8/10/10 (Smith, J.)
People v Steward	1st Dept: 72 AD3d 524 (NY)	granted 8/16/10 (Grafteo, J.)
People v Stoff	3d Dept: 74 AD3d 1640 (Washington)	denied 8/30/10 (Smith, J.)
People v Stroman (Steve)	4th Dept: 71 AD3d 1548 (Cayuga)	denied 8/30/10 (Smith, J.)
People v Stroman (Steve)	4th Dept: 74 AD3d 1878 (Cayuga)	dismissed 8/30/10 (Smith, J.)
People v Sturdevant	3d Dept: 74 AD3d 1491 (Chenango)	denied 8/19/10 (Smith, J.)
People v Suh	App Term, 2d Dept: 27 Misc 3d 143(A) (Orange)	dismissed 8/4/10 (Lippman, Ch. J.)
People v Sweeney	App Term, 2d Dept: 27 Misc 3d 134(A) (Nassau)	denied 8/17/10 (Read, J.)
People v Tavaréz	2d Dept: 74 AD3d 845 (Westchester)	denied 8/31/10 (Smith, J.)
People v Taylor (Ernest)	App Div, 2d Dept: 2009 NY Slip Op 69853(U) (Kings)	dismissed 8/11/10 (Pigott, J.)
People v Taylor (James)	2d Dept: 72 AD3d 991 (Kings)	denied 8/3/10 (Pigott, J.)
People v Taylor (Jessie)	3d Dept: 73 AD3d 1285 (Albany)	denied 8/5/10 (Ciparick, J.)
People v Thibeault	3d Dept: 73 AD3d 1237 (Cortland)	denied 8/18/10 (Read, J.)
People v Thompson	4th Dept: 70 AD3d 1319 (Erie)	denied reconsideration 8/3/10 (Pigott, J.)
People v Trojan	2d Dept: 73 AD3d 818 (Rockland)	denied 8/18/10 (Read, J.)
People v Tuszynski	4th Dept: 71 AD3d 1407 (Ontario)	denied 8/20/10 (Jones, J.)
People v Valverde	App Div, 2d Dept: 2010 NY Slip Op 69270(U) (Nassau)	dismissed 8/20/10 (Jones, J.)
People v Van Sertima	App Div, 2d Dept: 2010 NY Slip Op 64184(U) (Queens)	denied reconsideration 8/31/10 (Grafteo, J.)
People v Vega	2d Dept: 73 AD3d 1218 (Suffolk)	denied 8/31/10 (Grafteo, J.)
People v Velsor	2d Dept: 73 AD3d 819 (Queens)	denied 8/18/10 (Read, J.)
People v Vinson	1st Dept: 73 AD3d 590 (NY)	denied 8/19/10 (Smith, J.)
People v Washington	App Div, 4th Dept, 6/10/10 (Monroe)	dismissed 8/11/10 (Smith, J.)

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People v Welch	3d Dept: 71 AD3d 1329 (Tompkins)	denied 8/19/10 (Pigott, J.)
People v White	1st Dept: 72 AD3d 465 (NY)	denied 8/3/10 (Jones, J.)
People v Whitfield	4th Dept: 72 AD3d 1610 (Ontario)	denied 8/5/10 (Ciparick, J.)
People v Wiedmer	2d Dept: 71 AD3d 1067 (Nassau)	denied 8/3/10 (Pigott, J.)
People v Wilkins	1st Dept: 73 AD3d 467 (NY)	denied 8/17/10 (Read, J.)
People v Willette	App Div, 3d Dept: 2010 NY Slip Op 65996(U) (Clinton)	denied 8/4/10 (Lippman, Ch. J.)
People v William	4th Dept: 74 AD3d 1793 (Erie)	denied 8/23/10 (Grafteo, J.)
People v Williams (Albert)	App Div, 1st Dept: 2010 NY Slip Op 76753(U) (NY)	dismissed 8/20/10 (Jones, J.)
People v Williams (DeAndre)	App Div, 2d Dept: 2010 NY Slip Op 75682(U) (Westchester)	dismissed 8/30/10 (Smith, J.)
People v Williams (Willie)	App Div, 2d Dept: 2010 NY Slip Op 77627(U) (Dutchess)	dismissed 8/27/10 (Ciparick, J.)
People v Winters	3d Dept: 73 AD3d 1277 (St. Lawrence)	denied 8/18/10 (Read, J.)
People v Woods	4th Dept: 72 AD3d 1563 (Erie)	denied 8/4/10 (Pigott, J.)
People v Word	App Div, 1st Dept: 2010 NY Slip Op 68440(U) (NY)	denied 8/4/10 (Lippman, Ch. J.)
People v Wright	4th Dept: 63 AD3d 1700 (Monroe)	granted 8/20/10 (Jones, J.)
People v Wrotten	1st Dept: 73 AD3d 637 (Bronx)	denied 8/31/10 (Grafteo, J.)
People v Wynn	1st Dept: 67 AD3d 423 (NY)	leave denied upon reconsideration 8/3/10 (Jones, J.)
People v Young (Malcolm)	4th Dept: 74 AD3d 1864 (Erie)	denied 8/23/10 (Grafteo, J.)
People v Young (Timothy)	3d Dept: 74 AD3d 1471 (Otsego)	denied 8/23/10 (Grafteo, J.)
People v Zaragosa	4th Dept: 74 AD3d 1858 (Niagara)	denied 8/4/10 (Lippman, Ch. J.)
People v Zarro	2d Dept: 66 AD3d 1050 (Dutchess)	denied reconsideration 8/6/10 (Pigott, J.)

[934 NE2d 879, 908 NYS2d 146]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISHAM
MOORE, Appellant.

Decided September 2, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered October 6, 2009. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Alan D. Marrus, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree.

The defendant's conviction arose from an incident in which his girlfriend, the complainant, was injured due to the defendant's operation of her truck following a heated argument between them. According to the complainant, the defendant attempted to drive away in her truck after pushing her out of the vehicle. This prompted her to open the driver's door and hold on to the arm rest in an attempt to get back into the vehicle. The defendant then drove the truck for a significant distance with the complainant hanging on the outside, swerved in apparent attempts to throw her off, sideswiped a parked automobile, and ultimately jumped a curb and crashed into a tree and a fence. The defendant then fled the scene on foot. The complainant was thrown from the truck and suffered numerous injuries, including a fractured hip. According to the defendant's account of the incident, he and the complainant had been arguing and then they made a brief stop at a convenience store. When he left the store, he got in the driver's seat of the truck while the complainant was still outside. He claimed that another man then opened the front passenger door, brandished a gun, and robbed him. Insisting that he feared the robber would shoot him, the defendant testified that he ducked down, put the vehicle into drive, and stepped on the accelerator. He did not see the complainant. However, the truck did not move straight ahead, but instead swerved and almost immediately struck a parked car before colliding with a tree. The defendant realized that the complainant had reached in through the driver's window and had grabbed the steering wheel, thereby causing the accident. Following the trial court's submission, in the alternative, of the offense of intentional assault in the first degree and the lesser-included offense of reckless assault in the second degree, the jury convicted the defendant of the latter.

People v Moore, 66 AD3d 707, affirmed.

HEADNOTE**Crimes — Right to Counsel — Effective Representation**

Defendant failed to establish that his attorney provided ineffective assistance because of her failure to request a justification charge. There were

sound strategic reasons for counsel's decision not to request such a charge. And even if that were not the case, defendant could not show that he was entitled to a justification charge under any favorable interpretation of the testimony presented at trial.

APPEARANCES OF COUNSEL

Appellate Advocates, New York City (*De Nice Powell* and *Lynn W.L. Fahey* of counsel), for appellant.

Charles J. Hynes, *District Attorney*, Brooklyn (*Solomon Neubort* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Defendant Isham Moore failed to establish that his attorney provided ineffective assistance because of her failure to request a justification charge. There are sound strategic reasons for counsel's decision not to request such a charge. And even if this were not the case, defendant cannot show that he was entitled to a justification charge under any favorable interpretation of the testimony presented at trial.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[934 NE2d 879, 908 NYS2d 146]

In the Matter of ELIZABETH HESS, as Parent and Guardian of
JASON HESS, an Infant, Respondent, v WEST SENECA CENTRAL SCHOOL DISTRICT, Appellant, et al., Respondents.

Decided September 2, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 26, 2010. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Erie County (Joseph R. Glowonia, J.), which had granted that part of claimant's application for leave to serve a late notice of claim on respondent West Seneca Central School District.

Claimant sought to commence an action against respondent school district on the ground that the district breached its duty of care to her son when he was released into a potentially hazardous situation.

Matter of Hess v West Seneca Cent. School Dist., 71 AD3d 1568, reversed.

HEADNOTE

Schools — Notice of Claim — Late Notice

In a personal injury action, claimant's proposed negligence claim against respondent school district patently lacked merit because the district established that it did not create or have responsibility for the allegedly hazardous condition of the intersection where claimant's son was injured.

APPEARANCES OF COUNSEL

Baxter Smith & Shapiro, P.C., West Seneca (*Louis B. Dinkeldey, Jr.*, of counsel), for appellant.

Collins & Brown, LLC, Buffalo (*Charles H. Cobb* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and that part of claimant's application that sought to file a late notice of claim against West Seneca Central School District (WSCSD) denied. We agree with the Appellate Division dissenters that claimant's proposed negligence claim against WSCSD patently lacks merit because WSCSD established that it did not create or have responsibility for the allegedly hazardous condition of the intersection where claimant's son was injured (*see Pratt v Robinson*, 39 NY2d 554, 560 [1976]; *cf. Ernest v Red Cr. Cent. School Dist.*, 93 NY2d 664, 671 [1999]; *see also Matter of Catherine G. v County of Essex*, 3 NY3d 175, 179 [2004] ["(l)eave is not appropriate for a patently meritless claim"]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

ALAMIN HASSAN O., Appellant, v BENJAMIN BATES et al., Defendants. VERIZON, Nonparty Respondent.

Submitted June 14, 2010; decided September 2, 2010

Reported below, 2009 NY Slip Op 65280(U).

Motion, insofar as it seeks leave to appeal from the March 2009 Appellate Division order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the letter of the Clerk's Office of the Appellate Division, Second Department, dismissed upon the ground that the letter appealed from is neither a judgment nor an order from which a motion to the Court of Appeals may be made (*see* CPLR 5512 [a]; 5602). Motion for poor person relief dismissed as academic.

In the Matter of the Claim of SHANE BEGOR, Claimant, v MARK HOLMES, Doing Business as FOUR SEASONS LOGGING, et al., Respondents, and BRENNER & MCHUGH, INC., et al., Respondents, and AMERICAN ZURICH INSURANCE COMPANY, Appellant. WORKERS' COMPENSATION BOARD, Respondent.

Submitted June 21, 2010; decided September 2, 2010

Reported below, 71 AD3d 244.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of the Estate of ELSA K. BRYER, Deceased. ELLIOTT K. BRYER, Appellant; THE BANK OF NEW YORK et al., Respondents.

Submitted June 14, 2010; decided September 2, 2010

Reported below, 72 AD3d 532.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

PARVIZ NOGHREY, Appellant, v TOWN OF BROOKHAVEN et al., Respondents.

Submitted June 21, 2010; decided September 2, 2010

Reported below, 48 AD3d 529.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution. In addition, the May 2010 Supreme Court judgment provided by appellant is not an appealable paper pursuant to CPLR 5602 (a) (1) (ii) because it does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

PARVIZ NOGHREY, Appellant, v TOWN OF BROOKHAVEN et al.,
Respondents.

Submitted July 26, 2010; decided September 2, 2010

Reported below, 48 AD3d 529.

Motion by the National Association of Home Builders for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRES
AYALA, Appellant.

Submitted June 21, 2010; decided September 2, 2010

Reported below, 72 AD3d 1577.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question. Correction Law § 168-n (3) does not provide an independent predicate for an appeal as of right to the Court of Appeals. Motion for leave to appeal denied.

In the Matter of CLINT R. PETERSON, Appellant, v CARL F.
BECKER, as Judge of the County Court of Delaware County,
Respondent.

Submitted June 21, 2010; decided September 2, 2010

Reported below, 72 AD3d 1250.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion for poor person relief dismissed as academic.

MAURICA TALLARIDA, Appellant, v CITY OF CORNING et al., Respondents.

Submitted June 21, 2010; decided September 2, 2010

Reported below, 2010 NY Slip Op 63071(U).

Motion for reargument of motion for leave to appeal denied [see 14 NY3d 883 (2010)].

In the Matter of VILLAGE OF CHESTNUT RIDGE et al., Respondents, et al., Petitioners/Plaintiffs, v TOWN OF RAMAPO et al., Appellants, and SCENIC DEVELOPMENT, LLC, Respondent.

Submitted June 7, 2010; decided September 2, 2010

Reported below, 45 AD3d 74.

Motion for leave to appeal dismissed upon the ground that it does not lie, movants previously having moved for leave to appeal to the Court of Appeals from the August 2007 Appellate Division order from which leave to appeal is currently sought (12 NY3d 793 [2009]). Moreover, no motion for leave to appeal would lie to the Court of Appeals from the March 2010 Supreme Court judgment to bring up for review the August 2007 Appellate Division order as movants have appealed that judgment to the Appellate Division and simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

In the Matter of SEAN WILSON, Appellant, v CAROLINE KILKENNY, Respondent.

Submitted July 12, 2010; decided September 2, 2010

Reported below, 73 AD3d 796.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

YANKEE LAKE PRESERVATION ASSOCIATION, INC., Appellant, v JUDITH STEIN et al., Respondents, et al., Defendants.

Submitted June 28, 2010; decided September 2, 2010

Reported below, 68 AD3d 1603.

Motion by New York State Federation of Lake Associations, Inc. for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of ANONYMOUS, an Attorney and Counselor-at-Law, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted July 12, 2010; decided September 14, 2010

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Claim of JUAN BRAN, Respondent, v RALPH WIMBISH, Appellant, et al., Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted June 14, 2010; decided September 14, 2010

Reported below, 73 AD3d 1378.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of BATDORJ DAGVADORJ, Appellant, v LOIS DEFLEUR, as Administrator at the State University of New York at Binghamton, et al., Respondents.

Submitted July 12, 2010; decided September 14, 2010

Reported below, 70 AD3d 1275.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 14 NY3d 712 (2010)].

In the Matter of DEREK DeMEO, Appellant, v CITY OF ALBANY et al., Respondents, and PHILIP 'N SPILL, INC., Doing Business as THE BAYOU CAFÉ, Respondent.

Submitted June 28, 2010; decided September 14, 2010

Reported below, 73 AD3d 1316.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

EUJOY REALTY CORP., Respondent, v VAN WAGNER COMMUNICATIONS, LLC, Appellant.

Decided September 14, 2010

Reported below, 73 AD3d 546.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

FAMILY M. FOUNDATION LTD., Respondent, v NINOTCHKA MANUS, Appellant, et al., Defendant.

Submitted June 21, 2010; decided September 14, 2010

Reported below, 71 AD3d 598.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RONALD FIELDS, Appellant, v LUCILLE FIELDS, Respondent.

Submitted July 19, 2010; decided September 14, 2010

Reported below, 65 AD3d 297.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [see 15 NY3d 158 (2010)].

JOSEPH GERDVIL, Appellant, v VITO J. RIZZO et al., Respondents.

Submitted August 9, 2010; decided September 14, 2010

Reported below, 2010 NY Slip Op 73733(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARY GONZALEZ, Also Known as MARIANA RIVERA, Appellant, v
STATE OF NEW YORK, Respondent. (Claim No. 104279.)

Submitted July 6, 2010; decided September 14, 2010

Reported below, 60 AD3d 1193.

Motion for reargument of motion for leave to appeal denied
[see 13 NY3d 712 (2009)].

ROBERT HENRY, Appellant, v PEDRO L. PEGUERO et al., Respon-
dents.

Decided September 14, 2010

Reported below, 72 AD3d 600.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that the order appealed from does not
finally determine the action within the meaning of the Consti-
tution.

DONALD J. JONES et al., Appellants, v TOWN OF CARROLL et al.,
Respondents.

Submitted August 2, 2010; decided September 14, 2010

Reported below, 57 AD3d 1376.

Motion for reargument denied with \$100 costs and necessary
reproduction disbursements [see 15 NY3d 139 (2010)].

RUTH KASSOVER et al., Respondents, v PVP-GCC HOLDINGCO II,
LLC, et al., Appellants. PRISM VENTURE PARTNERS, LLC, et
al., Nonparty Appellants.

Submitted July 6, 2010; decided September 14, 2010

Reported below, 73 AD3d 626.

Motions for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN and Judge SMITH taking no part.

RUTH KASSOVER et al., Respondents, v PVP-GCC HOLDINGCO II, LLC, et al., Appellants, et al., Defendant. PRISM VENTURE PARTNERS, LLC, et al., Nonparty Appellants.

Submitted July 6, 2010; decided September 14, 2010

Reported below, 73 AD3d 626.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN and Judge SMITH taking no part.

LA SALLE BANK NATIONAL ASSOCIATION, Respondent, v KEISHA HENDERSON, Appellant, et al., Defendant.

Submitted August 2, 2010; decided September 14, 2010

Reported below, 69 AD3d 679.

Motion for reargument of motion for leave to appeal denied [see 14 NY3d 934 (2010)].

Judge JONES taking no part.

MARTA LOPEZ, Respondent, v FORDHAM UNIVERSITY, Appellant. (And Third-Party Actions.)

Submitted June 21, 2010; decided September 14, 2010

Reported below, 69 AD3d 532.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SUSAN MIDLER, Respondent, v RICHARD CRANE, M.D., Appellant.

Submitted June 28, 2010; decided September 14, 2010

Reported below, 67 AD3d 569.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 14 NY3d 877 (2010)].

In the Matter of ONTARIO COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent, v MARC WINKLER, Appellant, et al., Defendant.

Submitted July 6, 2010; decided September 14, 2010

Reported below, 2010 NY Slip Op 72033(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine an action or proceeding within the meaning of the Constitution.

In the Matter of RICHARD PADILLA, Appellant, v RAYMOND KELLY, as Police Commissioner of the City of New York, Respondent.

Submitted June 28, 2010; decided September 14, 2010

Reported below, 2010 NY Slip Op 66964(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GILBERT O. CAMERON, Appellant, v DORA B. SCHIRRO et al., Respondents.

Submitted June 28, 2010; decided September 14, 2010

Reported below, 2010 NY Slip Op 65024(U).

Motion, insofar as it seeks leave to appeal from the order of the Appellate Division, dismissed for nonfinality; motion, insofar as it seeks leave to appeal from the May 2010 order of Supreme Court, dismissed upon the ground that no motion for leave to appeal lies to the Court of Appeals directly from that order. Any appeal from such order, if available, would be to the Appellate Division.

ROMAN RABINOVICH, Plaintiff, and EDWARD L. SMITH, Appellant,
v JO ANN WOMACK et al., Defendants, and DUNOLLY OWN-
ERS' CORP., Respondent. (And a Third-Party Action.)

Submitted June 28, 2010; decided September 14, 2010

Reported below, 57 AD3d 866.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of SHERIL G., Respondent. ARNON D. SIEGEL,
Nonparty Appellant; BERWITZ & DiTATA, LLP, Nonparty
Respondent.

Submitted June 14, 2010; decided September 14, 2010

Motion for leave to appeal denied. Cross motion for the imposition of sanctions denied.

MARK PAUL SHNITKIN, Respondent, v HEALTHPLEX IPA, INC.,
Appellant.

Submitted August 9, 2010; decided September 14, 2010

Reported below, 71 AD3d 979.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 15 NY3d 702 (2010)].

In the Matter of FRANS SITAL, Appellant, v BRIAN FISCHER, as
Commissioner of Correctional Services, et al., Respondents.

Submitted July 6, 2010; decided September 14, 2010

Reported below, 72 AD3d 1306.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of CLAUDE NELSON STUART, a Suspended Attorney.

Submitted August 9, 2010; decided September 14, 2010

Reported below, 2010 NY Slip Op 66316(U).

Motion for reconsideration of this Court's June 24, 2010 dismissal order denied [*see* 15 NY3d 735 (2010)]. Motion for leave to appeal denied.

In the Matter of WILLIAM M. WINDSOR, Appellant, v STATE OF NEW YORK et al., Respondents.

Decided September 14, 2010

Reported below, 26 Misc 3d 1233(A).

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

[935 NE2d 791, 909 NYS2d 1]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTEO RAMIREZ, Appellant.

Decided September 16, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 26, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edwin Torres, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the first and third degrees, and criminally using drug paraphernalia in the second degree (three counts).

The Appellate Division found that the evidence supported the conclusion that defendant was a participant in a drug-selling operation and a joint possessor of the contraband at issue. Police executing a search warrant found throughout the premises indicia of a large-scale operation. Although nothing was in open view, it was the type of premises where a reasonable jury could conclude that only trusted members of the operation would be permitted to enter. Defendant and his codefendant were the only persons present, and when the police entered defendant at-

tempted to flee and tried to destroy his own cell phone, the records of which ultimately provided evidence of his connection to the codefendant. Moreover, defendant was carrying nearly one thousand dollars in cash and a pager.

The Appellate Division also rejected defendant's assertion that the trial court did not provide defense counsel with notice of a jury note and an opportunity to be heard regarding the court's response.

People v Ramirez, 60 AD3d 560, affirmed.

HEADNOTES

Crimes — Controlled Substances — Sufficiency of Evidence

1. In a drug prosecution arising out of the execution of a search warrant for an apartment in which defendant was found, the Appellate Division properly concluded that the verdict was supported by legally sufficient evidence. Viewing the evidence in the light most favorable to the prosecution, a reasonable jury could have inferred that defendant constructively possessed the drugs and drug paraphernalia located in the apartment.

Crimes — Appeal — Preservation of Issue for Review

2. In a drug prosecution, although the record was silent as to whether Supreme Court showed a jury note to counsel as required, defense counsel had notice of the contents of the note and the court's response, and failed to object at that time, when the error could have been cured. Accordingly, defendant's claim regarding the note was unpreserved for review.

APPEARANCES OF COUNSEL

Schlather, Stumbar, Parks & Salk, LLP, Ithaca (*Diane V. Bruns* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Grace Vee* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] Contrary to defendant's argument, the Appellate Division properly concluded that the verdict was supported by legally sufficient evidence. Viewing the evidence in the light most favorable to the prosecution, a reasonable jury could have inferred that defendant constructively possessed the drugs and drug paraphernalia located in an apartment in which defendant himself was found (*see generally People v Contes*, 60 NY2d 620, 621 [1983]).

[2] Moreover, although the record is silent as to whether Supreme Court showed the jury note to counsel as required in

People v O’Rama (78 NY2d 270 [1991]), defense counsel had notice of the contents of the note and the court’s response, and failed to object at that time, when the error could have been cured. Accordingly, defendant’s claim is unpreserved for review (see *People v Starling*, 85 NY2d 509, 516 [1995]; see also *People v Kadarko*, 14 NY3d 426, 429-430 [2010]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[935 NE2d 791, 909 NYS2d 1]

RONI LLC et al., Appellants, v RACHEL L. ARFA et al., Respondents.

Decided September 16, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 1, 2010. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Charles E. Ramos, J.), which, upon renewal and reargument, had adhered to a prior order of that court granting the motion of defendants Mintz Levin Cohn Ferris Glovsky & Popeo, P.C. and Jeffrey A. Moerdler, and the cross motion of Edward Lukashok, Aubrey Realty Co., Aubrey Realty, LLC, 42nd Street Realty, LLC, Tammaz Realty, LLC and Elul Acquisition, LLC to dismiss the claims of aiding and abetting breach of fiduciary duty as against Mintz Levin Cohn Ferris Glovsky & Popeo, P.C., Jeffrey A. Moerdler and Edward Lukashok.

Plaintiffs alleged that defendants Rachel L. Arfa, Alexander Shpigel and Gadi Zamir, the promoter defendants, schemed to inflate the purchase price of properties they promoted by receiving secret commissions. The Appellate Division held that plaintiffs’ conclusory allegations, and the documentary evidence submitted in support thereof, did not give rise to an inference that the attorney defendants, Mintz Levin Cohn Ferris Glovsky & Popeo, P.C., Jeffrey A. Moerdler and Edward Lukashok, had actual knowledge of, or knowingly induced or participated in, the alleged scheme. The Appellate Division concluded that, at most, the documentary evidence indicated that the attorney

defendants structured and organized entities that acted as the brokers on the property acquisitions and collected commissions—activities which were part of ordinary real estate lawyering.

Roni LLC v Arfa, 72 AD3d 413, affirmed.

HEADNOTE

Torts — Breach of Fiduciary Duty — Aiding and Abetting Breach of Fiduciary Duty

In an action arising out of an alleged scheme to solicit plaintiffs' investment in property, plaintiffs' conclusory pleadings did not give rise to an inference that the defendant attorneys knowingly participated in an alleged aiding and abetting of a breach of fiduciary duty by providing substantial assistance to the defendants who promoted the plan as part of a purported scheme to receive secret commissions.

APPEARANCES OF COUNSEL

Balber Pickard Maldonado & Van Der Tuin, PC, New York City (*John Van Der Tuin* of counsel), for appellants.

Schlam Stone & Dolan LLP, New York City (*David J. Katz* of counsel), for Rachel L. Arfa and others, respondents.

Simpson Thacher & Bartlett LLP, New York City (*Mark G. Cunha* and *Scott A. Sukenick* of counsel), for Mintz Levin Cohn Ferris Glovsky & Popeo, P.C. and another, respondents.

Bellin & Associates LLC, White Plains (*Aytan Y. Bellin* of counsel), for Edward Lukashok, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs. Plaintiffs' conclusory pleadings do not give rise to an inference that the attorney defendants knowingly participated in the alleged aiding and abetting of a breach of fiduciary duty by providing substantial assistance to the promoter defendants in their purported commission scheme (see *Kaufman v Cohen*, 307 AD2d 113, 126 [1st Dept 2003]; see generally *Eurycleia Partners, LP v Seward & Kissel, LLP*, 12 NY3d 553 [2009]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

In the Matter of BARBARA P., a Person Alleged to be Incapacitated, Appellant. ROBERT DOAR, Respondent.

Submitted July 19, 2010; decided September 16, 2010

Reported below, 72 AD3d 827.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of JOSH BROWN, Appellant, v BRIAN FISCHER et al., Respondents.

Submitted June 21, 2010; decided September 16, 2010

Reported below, 2009 NY Slip Op 77094(U).

Motion for reconsideration of this Court's May 4, 2010 dismissal order denied [*see* 14 NY3d 852 (2010)].

COMMODITY FUTURES TRADING COMMISSION, Respondent, v STEPHEN WALSH et al., Defendants, and JANET WALSH, Appellant.

SECURITIES AND EXCHANGE COMMISSION, Respondent, v WG TRADING INVESTORS, L.P., et al., Defendants, ROBIN GREENWOOD, Relief Defendant, and JANET WALSH, Appellant.

Decided September 16, 2010

See 618 F3d 218.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

GRIFFITH OIL COMPANY, INC., et al., Respondents, v NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA., Appellant, et al., Defendants.

Submitted September 13, 2010; decided September 16, 2010

Reported below, 68 AD3d 1622.

Motion by United Policyholders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

ALICE KRAMER, Respondent, v PHOENIX LIFE INSURANCE Co. et al., Defendants, and LIFEMARK S.A., Intervenor-Appellant.
(And Third-Party Actions.)

Submitted September 13, 2010; decided September 16, 2010

Motion by Institutional Life Markets Association for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

ALICE KRAMER, Respondent, v PHOENIX LIFE INSURANCE Co. et al., Defendants, and LIFEMARK S.A., Intervenor-Appellant.
(And Third-Party Actions.)

Submitted September 13, 2010; decided September 16, 2010

Motion by American Council of Life Insurers et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

ALICE KRAMER, Respondent, v PHOENIX LIFE INSURANCE Co. et al., Defendants, and LIFEMARK S.A., Intervenor-Appellant.
(And Third-Party Actions.)

Submitted September 13, 2010; decided September 16, 2010

Motion by Life Insurance Settlement Association for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

LEND-MOR MORTGAGE BANKERS CORP., Respondent, v EDWARD NICHOLAS et al., Defendants, and AMERIQUEST MORTGAGE COMPANY, Appellant.

Submitted July 17, 2010; decided September 16, 2010

Reported below, 69 AD3d 680.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LOUIS F. ORTIZ, Appellant, v VARSITY HOLDINGS, LLC, et al., Respondents.

Submitted September 13, 2010; decided September 16, 2010

Reported below, 75 AD3d 538.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DWIGHT ASHE, Respondent.

Submitted September 7, 2010; decided September 16, 2010

Reported below, 74 AD3d 503.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CALVIN BATTLES, Appellant.

Submitted September 7, 2010; decided September 16, 2010

Reported below, 65 AD3d 1161.

Motion to vacate this Court's August 16, 2010 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DRAGAN
BOSCIC, Respondent.

Submitted September 13, 2010; decided September 16, 2010

Reported below, 24 Misc 3d 1227(A).

Motion by New York State Defenders Association for leave to
file a brief amicus curiae on the appeal herein granted and the
proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
JAZZMONE BROWN, Appellant.

Submitted September 13, 2010; decided September 16, 2010

Reported below, 70 AD3d 1302.

Motion for assignment of counsel granted and David C.
Schopp, Esq., the Legal Aid Bureau of Buffalo, Inc., 237 Main
Street, Suite 1602, Buffalo, New York 14203 assigned as counsel
to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DIONIS
COLLADO, Respondent.

Submitted September 13, 2010; decided September 16, 2010

Reported below, 73 AD3d 608.

Motion for assignment of counsel granted and Robert S. Dean,
Esq., Center for Appellate Litigation, 74 Trinity Place, 11th
Floor, New York, NY 10006 assigned as counsel to the respon-
dent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONDI
CREDLE, Appellant.

Submitted September 7, 2010; decided September 16, 2010

Reported below, 66 AD3d 572.

Motion for assignment of counsel granted and Robert S. Dean,
Esq., Center for Appellate Litigation, 74 Trinity Place, 11th
Floor, New York, NY 10006 assigned as counsel to the appellant
on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ROBERT FRANOV, Respondent.

Submitted September 13, 2010; decided September 16, 2010

Reported below, 71 AD3d 914.

Motion for assignment of counsel granted and Judah Maltz, Esq., 125-10 Queens Boulevard, Suite 12, Kew Gardens, New York 11415 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHAWN HUNTER, Appellant.

Submitted September 13, 2010; decided September 16, 2010

Reported below, 70 AD3d 1343.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVE JOHNSON, Appellant.

Submitted August 30, 2010; decided September 16, 2010

Reported below, 74 AD3d 427.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ULYSSES McKNIGHT, Appellant.

Submitted August 30, 2010; decided September 16, 2010

Reported below, 72 AD3d 846.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDUARDO MIRANDA, Appellant.

Submitted August 2, 2010; decided September 16, 2010

Reported below, 67 AD3d 709.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OWEN STEWARD, Appellant.

Submitted September 7, 2010; decided September 16, 2010

Reported below, 72 AD3d 524.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

PORTFOLIO RECOVERY ASSOCIATES, LLC, Respondent, v JARED KING, Appellant.

Submitted June 21, 2010; decided September 16, 2010

Reported below, 55 AD3d 1074.

Motion for reargument denied [*see* 14 NY3d 410 (2010)].

In the Matter of the Claim of CINDY A. RENZ, Appellant, v HOME DEPOT USA, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted June 21, 2010; decided September 16, 2010

Reported below, 73 AD3d 1244.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JOSEPH B. SITTS, Appellant, v ALLISON L. SITTS, Respondent.

Submitted August 30, 2010; decided September 16, 2010

Reported below, 74 AD3d 1722.

Motion to dismiss appeal dismissed as academic upon the ground that the appeal has been withdrawn.

THE TRAVELERS INDEMNITY COMPANY, Respondent, v ORANGE AND ROCKLAND UTILITIES, INC., Appellant, et al., Defendants.

Submitted July 6, 2010; decided September 16, 2010

Reported below, 73 AD3d 576.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE TRAVELERS INDEMNITY COMPANY, Respondent, v ORANGE AND ROCKLAND UTILITIES, INC., Appellant, et al., Defendants.

Submitted September 7, 2010; decided September 16, 2010

Reported below, 73 AD3d 576.

Motion by Central Hudson Gas & Electric Corporation for leave to appear amicus curiae on the motion for leave to appeal herein granted.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v MICHAEL H. FINKLE et al., Appellants, et al., Defendant.

Submitted July 12, 2010; decided September 16, 2010

Reported below, 2010 NY Slip Op 70738(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ARTHUR J. WALSH et al., Respondents, v ANITA S. KATZ et al., Respondents, and DANIEL C. ROSS, Appellant. (And a Third-Party Action.)

Submitted August 23, 2010; decided September 16, 2010

Reported below, 66 AD3d 1052.

Motion to vacate this Court's August 2, 2010 dismissal order granted [*see* 15 NY3d 801 (2010)].

[935 NE2d 801, 909 NYS2d 9]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RONALD
MACK, Appellant.

Decided September 21, 2010

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 4, 2009. The Appellate Division denied defendant's application for a writ of error coram nobis to vacate, on the ground of ineffective assistance of appellate counsel, an order of that Court entered January 27, 1997 (235 AD2d 548 [1997]), which had affirmed three judgments of the Supreme Court, Queens County (Arthur J. Cooperman, J.), convicting defendant, upon a jury verdict, of robbery in the first degree (five counts), and an order of that Supreme Court denying defendant's motion to vacate the judgments.

People v Mack, 65 AD3d 558, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation

Defendant failed to establish that he was denied the effective assistance of appellate counsel.

APPEARANCES OF COUNSEL

Muldoon & Getz, Rochester (*Gary Muldoon* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (*Merri Turk Lasky* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. Defendant has failed to establish that he was denied the effective assistance of appellate counsel (*see People v Borrell*, 12 NY3d 365, 369 [2009]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

CARLOS ABREU, Appellant, v BETSY HUTCHINGS et al., Respondents.

Decided September 21, 2010

Reported below, 71 AD3d 1254.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CARLOS ABREU, Appellant, v NORMAN R. BEZIO, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Decided September 21, 2010

Reported below, 71 AD3d 1341.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, as untimely (*see* CPLR 5513 [a]).

In the Matter of CARLOS ABREU, Appellant, v MICHAEL F. HOGAN, as Commissioner of Mental Health, et al., Respondents.

Decided September 21, 2010

Reported below, 72 AD3d 1143.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

BESSEMER TRUST COMPANY, N.A., Respondent, v FRANCIS S. BRANIN, JR., Appellant.

Decided September 21, 2010

See 618 F3d 76.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

KELLY ANNE BREEN-BURNS, Appellant, v SCARSDALE WOODS
HOMEOWNERS' ASSOCIATION INC. et al., Respondents.

Submitted July 12, 2010; decided September 21, 2010

Reported below, 73 AD3d 661.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 14 NY3d 748 [2010]).

In the Matter of GEORGE HARRIS, Appellant, v ANDREA EVANS,
Chairwoman, New York State Division of Parole, Respondent.

Decided September 21, 2010

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

PAUL O. HYNARD, Appellant, v LOUIS GIANO et al., Respondents.

Submitted July 12, 2010; decided September 21, 2010

Reported below, 2010 NY Slip Op 73449(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

JACOB KATZ, Respondent, v BENEDETTO MARRA, Appellant.

Decided September 21, 2010

Reported below, 74 AD3d 888.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not

finally determine the action within the meaning of the Constitution.

In the Matter of LEON R. KOZIOL, Individually, as Natural Parent of CHILD A and Another, and on Behalf of Parents and Children Similarly Situated, Appellant, v MARTHA WALSH-HOOD, Acting Judge of State of New York, et al., Respondents.

Decided September 21, 2010

Reported below, 72 AD3d 1634.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

HENRIETTE LOUZOUN, Also Known as MALKA LOUZOUN, Appellant, v JOSEPH MONTALTO, Respondent.

Submitted July 19, 2010; decided September 21, 2010

Reported below, 70 AD3d 652.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Cross motion for the imposition of sanctions denied.

In the Matter of HECTOR J. MARTINEZ, Appellant, v MARIA C. MARTINEZ, Respondent.

Submitted July 26, 2010; decided September 21, 2010

Reported below, 2010 NY Slip Op 74445(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

FLORENCE E. NEWPORT, Appellant, v ROGOSIN INSTITUTE et al., Respondents.

Submitted July 26, 2010; decided September 21, 2010

Reported below, 71 AD3d 856.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

166 ARCHER AVE. CO., LLC, Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION, Respondent.

Submitted July 6, 2010; decided September 21, 2010

Reported below, 59 AD3d 357.

Motion for leave to appeal dismissed upon the ground that it does not lie from the Appellate Division order, appellant having previously moved in the Court of Appeals for leave to appeal (12 NY3d 848 [2009]) from the same Appellate Division order from which it currently seeks leave to appeal (*see Stoye v Schaub*, 93 NY2d 884 [1999]).

RALPH OYAGUE, Appellant, v INCORPORATED VILLAGE OF MALVERNE et al., Respondents.

Submitted July 26, 2010; decided September 21, 2010

Reported below, 2009 NY Slip Op 83358(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMEL BLACK, Appellant.

Submitted September 13, 2010; decided September 21, 2010

Reported below, 65 AD3d 1370.

Motion by New York Civil Liberties Union et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ERIC WADE CLARK, Appellant, v JAMES WALSH, as Superintendent of Sullivan Correctional Facility, Respondent.

Decided September 21, 2010

Reported below, 73 AD3d 1409.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CLIFFORD GRAHAM, Appellant, v KEVIN E. WALSH, Sheriff, County of Onondaga, Respondent.

Decided September 21, 2010

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOHN PEREZ, Appellant, v M. HOURIHANE, Respondent.

Decided September 21, 2010

Reported below, 2010 NY Slip Op 62375(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JUSTO RICHARDS, Appellant, v BRUCE YELICH, Respondent.

Submitted July 26, 2010; decided September 21, 2010

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (*see* NY

Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of EMANUEL A. TOWNS (Admitted as EMANUEL ALEXANDER TOWNS), an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Decided September 21, 2010

Reported below, 75 AD3d 93.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge JONES taking no part.

In the Matter of ROBERT WOOLEY, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONAL SERVICES, Respondent.

Submitted August 16, 2010; decided September 21, 2010

Reported below, 61 AD3d 1189.

Motion for reargument denied [*see* 15 NY3d 275 (2010)].

[935 NE2d 807, 909 NYS2d 15]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JESSE BRABHAM, Respondent.

Decided September 23, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 22, 2009. The Appellate Division modified, as a matter of discretion in the interest of justice, judgments of the Supreme Court, New York County (Laura A. Ward, J., at plea; Michael R. Ambrecht, J., at plea and sentence), which had convicted defendant, upon his pleas of guilty, of attempted criminal possession of a controlled substance in the third degree and bail jumping in the second degree, and sentenced him, as a second felony offender, to consecutive terms of imprisonment of 4 to 8 years and 1½ to

3 years. The modification consisted of directing that the sentences be served concurrently. The Appellate Division affirmed the judgments as modified.

The Appellate Division found that there were “mitigating circumstances” warranting a concurrent sentence for bail jumping, and that the imposition of a consecutive sentence was excessive.

People v Brabham, 66 AD3d 557, appeal dismissed.

HEADNOTE

Crimes — Appeal — Dismissal

An appeal from an order of the Appellate Division that modified judgments of the Supreme Court convicting defendant of attempted criminal possession of a controlled substance and bail jumping, by directing that the prison terms imposed for those crimes be served concurrently rather than consecutively, was dismissed. The modification was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification” (CPL 450.90 [2] [a]).

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (*Allen J. Vickey* of counsel), for appellant.

Legal Aid Society, New York City (*Adrienne M. Gantt* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed upon the ground that the modification at the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification” (CPL 450.90 [2] [a]). In view of the above, we have no occasion to comment on the dissent’s position that Penal Law § 70.25 (2-c) mandates that the Appellate Division delineate its reasons for modifying the sentence.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and JONES. Judge PIGOTT dissents in an opinion in which Judge SMITH concurs.

PIGOTT, J. (dissenting). We are dismissing the People’s appeal because, in the majority’s view, the modification by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal or modification” (CPL 450.90 [2] [a]). From that ruling, I respectfully dissent.

Defendant pleaded guilty to attempted criminal possession of a controlled substance in the third degree under a plea agreement in which sentencing was to be deferred while he participated in a drug treatment program. Before completing the program, defendant absconded from the jurisdiction, resulting in a bail jumping charge. When he was involuntarily returned to New York 2½ years later, defendant pleaded guilty to the bail jumping offense.

Supreme Court sentenced defendant, under Penal Law § 70.25 (2-c), to consecutive terms of 4 to 8 years on the drug offense and 1½ to 3 years on the bail jumping offense. On appeal, the Appellate Division reduced defendant's sentence, "as a matter of discretion in the interest of justice," by directing that the sentences be served concurrently rather than consecutively (66 AD3d 557 [2009]). The court simply stated that it found "mitigating circumstances" warranting a concurrent sentence for bail jumping, but failed to explain those factors on the record.

Under Penal Law § 70.25 (2-c), when a defendant is convicted of bail jumping, that sentence *shall* run consecutively with defendant's other sentence. The statute further provides, however, that the court may, "in the interest of justice," order a sentence to run concurrently if it finds mitigating circumstances that bear directly upon the manner in which the crime was committed (Penal Law § 70.25 [2-c]). If the court determines that consecutive sentences should not be ordered, it is required to make a "statement on the record of the facts and circumstances upon which such determination is based" (*id.*). Thus, under the clear language of the statute, the court's interest of justice jurisdiction in ordering concurrent sentences is limited to finding mitigating factors and making an explanatory statement of those factors on the record.*

In this case, the Appellate Division, although exercising its interest of justice jurisdiction, failed to comply with the clear mandate of the statute. In the absence of an explanation of the mitigating circumstances, the court was required to run the sentences consecutively. Because the Appellate Division made an erroneous determination on the law, in my view, we need not dismiss this appeal.

* In *People v Leopold* (13 NY3d 923 [2010]), we found, under somewhat similar circumstances, that the Appellate Division should be reversed because it failed to set forth the appropriate findings of fact and conclusions of law as required by Correction Law § 168-n (3).

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed, etc.

[935 NE2d 809, 909 NYS2d 17]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE RIVERA, Appellant.

Decided September 23, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 27, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Thomas A. Farber, J., at trial and sentence), which had convicted defendant, after a jury trial, of criminal possession of a weapon in the second degree.

Defendant was accused of shooting a man to death. He was acquitted of the homicide charges but convicted of criminal possession of a weapon in the second degree. Asserting that his acquittal of the homicide charges was the result of the jury accepting his justification defense, defendant argued that the trial court should have charged criminal possession of a weapon in the fourth degree as a lesser included offense of criminal possession of a weapon in the second degree, which required that the offender have the intent to use the weapon unlawfully. The Appellate Division concluded that no reasonable view of the evidence supported the lesser charge since there was no reasonable possibility that defendant could have been guilty of merely possessing the gun.

People v Rivera, 72 AD3d 576, reversed.

HEADNOTE

Crimes — Lesser Included Offense — Possession of Weapon

In a prosecution arising out of defendant shooting a man to death, the order of the Appellate Division, which affirmed defendant's conviction for criminal possession of a weapon in the second degree, was reversed and a new trial ordered. There was a reasonable basis in the evidence viewed in the light most favorable to defendant for finding defendant not guilty of criminal possession of a weapon in the second degree (Penal Law § 265.03 [1] [b] [possessing a "loaded firearm" "with intent to use the same unlawfully against another"]], and yet guilty of criminal possession of a weapon in the fourth degree (Penal

Law § 265.01 [1] [possessing any firearm]). Defendant's request for a lesser included offense charge should therefore have been granted.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Susan H. Salomon* and *Robert S. Dean* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Karen Swiger* and *Peter D. Coddington* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

There was a reasonable basis in the evidence viewed in the light most favorable to defendant for finding defendant not guilty of criminal possession of a weapon in the second degree (Penal Law § 265.03 [1] [b] [possessing a "loaded firearm" "with intent to use the same unlawfully against another"]), and yet guilty of criminal possession of a weapon in the fourth degree (Penal Law § 265.01 [1] [possessing any firearm]). (*See People v Discala*, 45 NY2d 38, 41-42 [1978].) Defendant's request for a lesser included offense charge should therefore have been granted.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

In the Matter of JOHNNY DOWNS, Appellant, v New York State
EXECUTIVE DEPARTMENT et al., Respondents.

Submitted August 9, 2010; decided September 23, 2010

Reported below, 2010 NY Slip Op 69819(U).

Motion for reargument of motion for leave to appeal denied
[see 15 NY3d 742 (2010)].

In the Matter of GENT UNIFORM RENTAL CORP., Appellant, v
COUNTY OF SUFFOLK DEPARTMENT OF LABOR, Respondent.
(Proceeding No. 1.)

In the Matter of GENT UNIFORM RENTAL CORP., Appellant, v
COUNTY OF SUFFOLK et al., Respondents. (Proceeding No.
2.)

Decided September 23, 2010

Reported below, 73 AD3d 771.

Appeal, insofar as taken from that part of the Appellate Division order that affirmed so much of Supreme Court's order and judgment as dismissed the proceeding in *Matter of Gent Uniform Rental Corp. v County of Suffolk*, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that, as to that part of the order, no substantial constitutional question is directly involved; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the remainder of the Appellate Division order does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of KATHLEEN K., a Child Alleged to be Permanently Neglected. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; STEVEN K., Appellant. (Proceeding No. 1.)

In the Matter of RACHEL K., a Child Alleged to be Permanently Neglected. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; STEVEN K., Appellant. (Proceeding No. 2.)

Submitted September 7, 2010; decided September 23, 2010

Reported below, 71 AD3d 1146.

Motion to enlarge record on appeal denied as unnecessary upon the ground that the material sought to be added is subject to judicial notice.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided September 23, 2010

Reported below, 2010 NY Slip Op 60748(U); 2009 NY Slip Op 89975(U); 2009 NY Slip Op 82760(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS SIRICO, Appellant.

Submitted August 2, 2010; decided September 23, 2010

Reported below, 66 AD3d 1047.

Motion to vacate this Court's July 15, 2010 dismissal order granted. Motion for assignment of counsel granted and Robert C. Mitchell, Esq., Legal Aid Society of Suffolk County, Inc., Arthur M. Cromarty Court Complex, 300 Center Drive, PO Box 1697, Riverhead, New York 11901 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOSEPH II., Respondent, v SUPERINTENDENT OF SOUTHPORT CORRECTIONAL FACILITY et al., Appellants.

In the Matter of STATE OF NEW YORK, Appellant, v HUMBERTO G., Respondent.

Submitted August 2, 2010; decided September 23, 2010

Reported below, *People ex rel. Joseph II. v Superintendent of Southport Correctional Facility*, 59 AD3d 921.

Reported below, *Matter of State of New York v Humberto G.*, 65 AD3d 690.

Motion for reargument denied [*see* 15 NY3d 126 (2010)].

In the Matter of PETER B., a Child Alleged to be Abused. DUTCHESS COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; PETER B., Sr., Appellant. JOHN GEORGES et al., Nonparty Respondents.

Submitted July 26, 2010; decided September 23, 2010

Reported below, 73 AD3d 764.

Motion, insofar as it seeks leave to appeal as against Dutchess County Department of Social Services, dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]; [f] [1]; *National Org. for*

Women v Metropolitan Life Ins. Co., 70 NY2d 939 [1988]); motion for leave to appeal otherwise denied.

RELIANCE CONSTRUCTION LTD., Doing Business as RCG GROUP, INC., Respondent, v JIM KENNELLY, Also Known as JAMES P. KENNELLY, et al., Appellants.

Submitted July 19, 2010; decided September 23, 2010

Reported below, 70 AD3d 418.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

In the Matter of the STATE OF NEW YORK, Respondent, v DANIEL FARNSWORTH, Appellant.

Decided September 23, 2010

Reported below, 75 AD3d 14.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(September 1, 2010 through September 30, 2010)

Calderon v Walgreen Co.	4th Dept: 72 AD3d 1532	9/15/10
Minton, Matter of, v Fischer	3d Dept: 73 AD3d 1347	9/1/10

APPEALS WITHDRAWN AND DISCONTINUED

(September 1, 2010 through September 30, 2010)

Oursler v Brennan	4th Dept: 67 AD3d 36	9/1/10
Sitts v Sitts	Sup Ct, Oneida County, July 22, 2010 (74 AD3d 1722)	9/16/10

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2010 through September 30, 2010)

People v Abraham	App Div, 2d Dept: 2010 NY Slip Op 78445(U) (Kings)	dismissed 9/27/10 (Jones, J.)
People v Acosta (Carmen)	1st Dept: 75 AD3d 437 (Bronx)	denied 9/7/10 (Ciparick, J.)
People v Acosta (Radames)	2d Dept: 74 AD3d 1213 (Queens)	denied 9/20/10 (Lippman, Ch. J.)
People v Ali	App Div, 2d Dept: 2010 NY Slip Op 76922(U) (Queens)	dismissed 9/23/10 (Grafteo, J.)
People v Allison	4th Dept: 72 AD3d 1577 (Erie)	denied 9/2/10 (Jones, J.)
People v Anthony	4th Dept: 74 AD3d 1795 (Ontario)	denied 9/17/10 (Read, J.)
People v Arnjas	1st Dept: 74 AD3d 564 (NY)	denied 9/1/10 (Ciparick, J.)
People v Ashley	3d Dept: 71 AD3d 1286 (St. Lawrence)	granted 9/2/10 (Jones, J.)
People v Baez	1st Dept: 74 AD3d 541 (NY)	denied 9/3/10 (Ciparick, J.)
People v Banks	2d Dept: 74 AD3d 1214 (Westchester)	denied 9/7/10 (Ciparick, J.)
People v Bartolillo	App Div, 3d Dept: 2010 NY Slip Op 78948(U) (Delaware)	dismissed 9/17/10 (Read, J.)
People v Battease	3d Dept: 74 AD3d 1571 (Washington)	denied 9/29/10 (Grafteo, J.)
People v Battle	2d Dept: 74 AD3d 982 (Queens)	denied 9/3/10 (Ciparick, J.)
People v Becoats	4th Dept: 71 AD3d 1578 (Monroe)	denied 9/2/10 (Jones, J.)
People v Bey	2d Dept: 71 AD3d 1156 (Queens)	denied 9/2/10 (Jones, J.)
People v Boghdadi	2d Dept: 73 AD3d 799 (Kings)	denied 9/2/10 (Jones, J.)
People v Bonner	2d Dept: 74 AD3d 1218 (Queens)	denied 9/29/10 (Grafteo, J.)
People v Booger	3d Dept: 74 AD3d 1637 (Albany)	denied 9/3/10 (Ciparick, J.)
People v Bracho	1st Dept: 74 AD3d 441 (NY)	denied 9/14/10 (Lippman, Ch. J.)
People v Bradford	App Div, 1st Dept: 2010 NY Slip Op 74954(U) (NY)	denied 9/17/10 (Read, J.)
People v Braithwaite	1st Dept: 73 AD3d 656 (NY)	denied 9/2/10 (Jones, J.)
People v Brand	4th Dept: 74 AD3d 1790 (Oswego)	denied 9/3/10 (Ciparick, J.)
People v Brewer	2d Dept: 73 AD3d 1199 (Westchester)	denied 9/17/10 (Read, J.)
People v Bridgers	App Term, 2d Dept: 28 Misc 3d 129(A) (Nassau)	denied 9/30/10 (Grafteo, J.)

People v Brightley	App Div, 1st Dept: 2010 NY Slip Op 76247(U) (NY)	denied 9/28/10 (Smith, J.)
People v Brown (Nadirah)	4th Dept: 72 AD3d 1558 (Erie)	granted 9/10/10 (Pigott, J.)
People v Brown (Willie)	3d Dept: 74 AD3d 1637 (Albany)	denied 9/3/10 (Ciparick, J.)
People v Bryant	4th Dept: 73 AD3d 1442 (Monroe)	denied 9/20/10 (Lippman, Ch. J.)
People v Cerone	3d Dept: 75 AD3d 835 (Clinton)	denied 9/8/10 (Smith, J.)
People v Clergeot	App Term, 2d Dept: 28 Misc 3d 87 (Nassau)	denied 9/10/10 (Pigott, J.)
People v Cobb	2d Dept: 74 AD3d 1355 (Kings)	denied 9/1/10 (Pigott, J.)
People v Coleman (Dawson)	App Term, 2d Dept: 28 Misc 3d 24 (Kings)	denied 9/30/10 (Jones, J.)
People v Coleman (Shawn)	2d Dept: 74 AD3d 1225 (Nassau)	denied 9/17/10 (Read, J.)
People v Collado	1st Dept: 72 AD3d 614 (NY)	denied 9/2/10 (Jones, J.)
People v Colon	1st Dept: 72 AD3d 558 (Bronx)	denied 9/2/10 (Jones, J.)
People v Conlon	1st Dept: 72 AD3d 558 (Bronx)	denied 9/2/10 (Jones, J.)
People v Corse (Eric)	2d Dept: 73 AD3d 1208 (Nassau)	denied 9/2/10 (Ciparick, J.)
People v Corse (Erik)	2d Dept: 73 AD3d 1208 (Nassau)	denied 9/2/10 (Ciparick, J.)
People v Cosman	App Div, 2d Dept: 2010 NY Slip Op 78873(U) (Queens)	dismissed 9/10/10 (Lippman, Ch. J.)
People v Cosme	App Div, 2d Dept: 2010 NY Slip Op 78873(U) (Queens)	dismissed 9/10/10 (Lippman, Ch. J.)
People v Cruddy	3d Dept: 74 AD3d 1490 (Schenectady)	denied 9/1/10 (Pigott, J.)
People v Cruz (Eric)	2d Dept: 73 AD3d 1209 (Westchester)	denied 9/17/10 (Read, J.)
People v Cruz (Jose)	3d Dept: 74 AD3d 1637 (Albany)	denied 9/21/10 (Smith, J.)
People v Curenton	App Div, 2d Dept: 2010 NY Slip Op 76176(U) (Suffolk)	dismissed 9/30/10 (Pigott, J.)
People v D'Alessandro (Giuseppe)	App Div, 1st Dept: 2010 NY Slip Op 75591(U) (NY)	denied 9/29/10 (Grafteo, J.)
People v D'Alessandro (Guisepe)	App Div, 1st Dept: 2010 NY Slip Op 75591(U) (NY)	denied 9/29/10 (Grafteo, J.)
People v Davis (Emanuel)	County Ct, 5/24/10 (Onondaga)	denied 9/20/10 (Lippman, Ch. J.)
People v Davis (Shamel)	3d Dept: 74 AD3d 1490 (Schenectady)	denied 9/1/10 (Pigott, J.)
People v DeRosario	2d Dept: 74 AD3d 1356 (Westchester)	denied 9/8/10 (Smith, J.)

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People v Diggs	2d Dept: 73 AD3d 1210 (Nassau)	denied 9/13/10 (Lippman, Ch. J.)
People v Dunbar	2d Dept: 74 AD3d 1227 (Kings)	denied 9/8/10 (Smith, J.)
People v Dwyer	4th Dept: 73 AD3d 1467 (Onondaga)	denied 9/2/10 (Jones, J.)
People v Ellis (Michael)	4th Dept: 73 AD3d 1433 (Livingston)	denied 9/30/10 (Jones, J.)
People v Ellis (Michael)	4th Dept: 73 AD3d 1434 (Livingston)	denied 9/30/10 (Jones, J.)
People v El Machiah	2d Dept: 71 AD3d 914 (Orange)	denied 9/10/10 (Lippman, Ch. J.)
People v Essler	4th Dept: 74 AD3d 1832 (Monroe)	denied 9/17/10 (Grafteo, J.)
People v Evans	App Div, 2d Dept: 2010 NY Slip Op 76177(U) (Kings)	dismissed 9/2/10 (Jones, J.)
People v Fernandez	App Term, 1st Dept: 27 Misc 3d 136(A) (NY)	denied 9/30/10 (Jones, J.)
People v Finley	2d Dept: 70 AD3d 850 (Westchester)	denied reconsideration 9/30/10 (Jones, J.)
People v Flowers	2d Dept: 72 AD3d 838 (Queens)	denied 9/2/10 (Jones, J.)
People v Fominas	App Div, 2d Dept: 2010 NY Slip Op 76832(U) (Kings)	dismissed 9/23/10 (Grafteo, J.)
People v Forbes	2d Dept: 75 AD3d 608 (Nassau)	denied 9/28/10 (Lippman, Ch. J.)
People v Freeman (John)	2d Dept: 74 AD3d 836 (Queens)	granted 9/2/10 (Ciparick, J.)
People v Freeman (Rodney)	1st Dept: 74 AD3d 557 (NY)	denied 9/23/10 (Grafteo, J.)
People v Fusco	3d Dept: 74 AD3d 1583 (Washington)	denied 9/10/10 (Pigott, J.)
People v Galvez	2d Dept: 72 AD3d 838 (Rockland)	denied 9/2/10 (Jones, J.)
People v Garcia	2d Dept: 72 AD3d 986 (Kings)	denied 9/2/10 (Jones, J.)
People v Gardner	App Div, 2d Dept: 2010 NY Slip Op 75330(U) (Kings)	dismissed 9/21/10 (Smith, J.)
People v Garzone	4th Dept: 72 AD3d 1590 (Monroe)	denied 9/10/10 (Lippman, Ch. J.)
People v Gayle (Anthony)	4th Dept: 72 AD3d 1590 (Genesee)	denied 9/2/10 (Jones, J.)
People v Gayle (Junior)	4th Dept: 72 AD3d 1590 (Genesee)	denied 9/2/10 (Jones, J.)
People v Gega	2d Dept: 74 AD3d 1229 (Westchester)	denied 9/1/10 (Smith, J.)
People v Gentile	2d Dept: 73 AD3d 944 (Queens)	denied 9/28/10 (Smith, J.)

People v Gillespie (Anthony)	App Div, 1st Dept: 2010 NY Slip Op 81072(U) (NY)	dismissed 9/30/10 (Jones, J.)
People v Gillespie (Anthony)	App Div, 1st Dept: 2010 NY Slip Op 81586(U) (NY)	dismissed 9/30/10 (Jones, J.)
People v Gordon	2d Dept: 74 AD3d 1090 (Kings)	denied 9/17/10 (Read, J.)
People v Green	4th Dept: 74 AD3d 1899 (Ontario)	denied 9/1/10 (Ciparick, J.)
People v Grueiro	2d Dept: 74 AD3d 1232 (Kings)	denied 9/24/10 (Pigott, J.)
People v Gruiero	2d Dept: 74 AD3d 1232 (Kings)	denied 9/24/10 (Pigott, J.)
People v Gruyair	1st Dept: 75 AD3d 401 (NY)	denied 9/30/10 (Grafteo, J.)
People v Guitierrez	4th Dept: 74 AD3d 1834 (Monroe)	denied 9/17/10 (Grafteo, J.)
People v Hall	2d Dept: 74 AD3d 837 (Queens)	granted 9/2/10 (Ciparick, J.)
People v Hamilton	2d Dept: 74 AD3d 1359 (Kings)	denied 9/8/10 (Smith, J.)
People v Hawkins	4th Dept: 73 AD3d 1458 (Monroe)	denied 9/2/10 (Jones, J.)
People v Hay	2d Dept: 73 AD3d 1081 (Kings)	denied 9/14/10 (Lippman, Ch. J.)
People v Hayes (Earl)	App Div, 3d Dept: 2010 NY Slip Op 72773(U) (Sullivan)	dismissed 9/3/10 (Ciparick, J.)
People v Hayes (Earl)	3d Dept: 71 AD3d 1187 (Sullivan)	denied 9/3/10 (Ciparick, J.)
People v Heaney	3d Dept: 75 AD3d 836 (Clinton)	denied 9/22/10 (Pigott, J.)
People v Heard	4th Dept: 72 AD3d 1630 (Monroe)	denied 9/2/10 (Jones, J.)
People v Henry	4th Dept: 74 AD3d 1860 (Cayuga)	denied 9/20/10 (Lippman, Ch. J.)
People v Herndon	4th Dept: 75 AD3d 1083 (Onondaga)	denied 9/1/10 (Smith, J.)
People v Hey	3d Dept: 74 AD3d 1582 (Ulster)	denied 9/20/10 (Lippman, Ch. J.)
People v Hitchcock	4th Dept: 75 AD3d 1104 (Erie)	denied 9/10/10 (Pigott, J.)
People v Hope	1st Dept: 74 AD3d 685 (NY)	denied 9/2/10 (Ciparick, J.)
People v Hudson	2d Dept: 71 AD3d 1046 (Nassau)	denied 9/2/10 (Jones, J.)
People v Irizarry	1st Dept: 75 AD3d 437 (Bronx)	denied 9/22/10 (Pigott, J.)
People v Jean-Louis	2d Dept: 74 AD3d 1093 (Kings)	denied 9/17/10 (Read, J.)
People v Johnson	4th Dept: 75 AD3d 1117 (Ontario)	denied 9/22/10 (Pigott, J.)

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People v Jones	1st Dept: 75 AD3d 415 (NY)	denied 9/1/10 (Pigott, J.)
People v Joseph (David)	1st Dept: 72 AD3d 534 (NY)	denied 9/2/10 (Jones, J.)
People v Joseph (Nicholas)	4th Dept: 75 AD3d 1080 (Monroe)	denied 9/24/10 (Pigott, J.)
People v Joseph (Shawn)	2d Dept: 74 AD3d 840 (Kings)	denied 9/20/10 (Lippman, Ch. J.)
People v Judware	3d Dept: 75 AD3d 841 (St. Lawrence)	denied 9/21/10 (Smith, J.)
People v Jurlina	1st Dept: 74 AD3d 438 (NY)	denied 9/28/10 (Smith, J.)
People v Kadarko	1st Dept: 73 AD3d 639 (Bronx)	denied 9/1/10 (Ciparick, J.)
People v Kelly	2d Dept: 69 AD3d 881 (Orange)	denied reconsideration 9/10/10 (Lippman, Ch. J.)
People v Kennedy	3d Dept: 75 AD3d 766 (Broome)	denied 9/28/10 (Smith, J.)
People v Kuar	2d Dept: 73 AD3d 1084 (Suffolk)	denied 9/8/10 (Smith, J.)
People v Letman	4th Dept: 74 AD3d 1854 (Monroe)	denied 9/1/10 (Smith, J.)
People v Lewis	2d Dept: 73 AD3d 1212 (Nassau)	denied 9/17/10 (Grafteo, J.)
People v Lowman	4th Dept: 74 AD3d 1878 (Ontario)	denied 9/23/10 (Pigott, J.)
People v "Luck"	4th Dept: 71 AD3d 1574 (Erie)	denied reconsideration 9/1/10 (Ciparick, J.)
People v "Luck"	4th Dept: 74 AD3d 1855 (Erie)	denied 9/3/10 (Ciparick, J.)
People v Mack	County Ct, 4/8/10 (Erie)	denied 9/1/10 (Ciparick, J.)
People v Mancuso	4th Dept: 74 AD3d 1846 (Monroe)	denied 9/1/10 (Smith, J.)
People v Mao-Sheng Lin	App Div, 3d Dept: 2010 NY Slip Op 61527(U) (Tompkins)	denied reconsideration 9/30/10 (Jones, J.)
People v Matthew W.B.	4th Dept: 73 AD3d 1467 (Erie)	denied 9/10/10 (Pigott, J.)
People v McGeachy	2d Dept: 74 AD3d 989 (Kings)	denied 9/7/10 (Ciparick, J.)
People v McGriff	2d Dept: 73 AD3d 810 (Queens)	denied 9/2/10 (Jones, J.)
People v Mele	2d Dept: 74 AD3d 1095 (Orange)	withdrawn 9/15/10 (Pigott, J.)

People v Mendez	2d Dept: 73 AD3d 951 (Queens)	denied ¹ 9/29/10 (Grafteo, J.)
People v Mercado	2d Dept: 74 AD3d 990 (Westchester)	denied 9/10/10 (Pigott, J.)
People v Merritt	3d Dept: 73 AD3d 1332 (Chemung)	denied 9/1/10 (Pigott, J.)
People v Meza	App Div, 2d Dept: 2010 NY Slip Op 76949(U) (Queens)	dismissed 9/30/10 (Pigott, J.)
People v Miller	2d Dept: 74 AD3d 1097 (Suffolk)	denied 9/1/10 (Ciparick, J.)
People v Mohammed	2d Dept: 74 AD3d 1098 (Richmond)	denied 9/29/10 (Grafteo, J.)
People v Mooney	1st Dept: 74 AD3d 617 (NY)	denied 9/17/10 (Read, J.)
People v Moore	4th Dept: 75 AD3d 1104 (Niagara)	denied 9/3/10 (Ciparick, J.)
People v Morgan	4th Dept: 72 AD3d 1482 (Monroe)	denied 9/10/10 (Lippman, Ch. J.)
People v Morrison	2d Dept: 74 AD3d 991 (Kings)	denied 9/20/10 (Lippman, Ch. J.)
People v Moss	2d Dept: 67 AD3d 1027 (Nassau)	denied reconsideration 9/1/10 (Smith, J.)
People v Murrell	1st Dept: 73 AD3d 598 (NY)	granted 9/1/10 (Ciparick, J.)
People v Nadal (John)	2d Dept: 72 AD3d 707 (Westchester)	denied 9/2/10 (Jones, J.)
People v Nadal (Juan)	2d Dept: 72 AD3d 707 (Westchester)	denied 9/2/10 (Jones, J.)
People v Olavarrueth	2d Dept: 74 AD3d 1361 (Westchester)	denied 9/17/10 (Grafteo, J.)
People v Olomonsa	4th Dept: 71 AD3d 1491 (Wayne)	denied 9/17/10 (Grafteo, J.)
People v Parker	2d Dept: 74 AD3d 1365 (Kings)	denied 9/17/10 (Grafteo, J.)
People v Parris	4th Dept: 74 AD3d 1862 (Monroe)	denied 9/10/10 (Pigott, J.)
People v Patel	2d Dept: 74 AD3d 1098 (Nassau)	denied 9/29/10 (Grafteo, J.)
People v Paulin	1st Dept: 74 AD3d 685 (Bronx)	granted 9/22/10 (Pigott, J.)
People v Picon	1st Dept: 73 AD3d 572 (NY)	denied 9/30/10 (Jones, J.)
People v Ponder	4th Dept: 75 AD3d 1104 (Monroe)	denied 9/17/10 (Read, J.)
People v Porco	2d Dept: 71 AD3d 791 (Albany)	granted 9/21/10 (Smith, J.)

1. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

MEMORANDA

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People v Prince	2d Dept: 74 AD3d 1366 (Queens)	denied 9/17/10 (Grafteo, J.)
People v Pringle	4th Dept: 72 AD3d 1629 (Oswego)	denied 9/2/10 (Jones, J.)
People v Pruchnicki	4th Dept: 74 AD3d 1820 (Erie)	denied 9/13/10 (Lippman, Ch. J.)
People v Pruitt	2d Dept: 74 AD3d 1366 (Nassau)	denied ² 9/30/10 (Grafteo, J.)
People v Quintero	2d Dept: 72 AD3d 847 (Dutchess)	denied 9/2/10 (Jones, J.)
People v Rahman	App Div, 2d Dept: 2010 NY Slip Op 72443(U) (Rockland)	dismissed 9/3/10 (Ciparick, J.)
People v Reid	2d Dept: 74 AD3d 1367 (Suffolk)	denied 9/9/10 (Smith, J.)
People v Rivera (A.J.)	3d Dept: 70 AD3d 1177 (Rensselaer)	denied 9/2/10 (Jones, J.)
People v Rivera (Alberto)	3d Dept: 70 AD3d 1177 (Rensselaer)	denied 9/2/10 (Jones, J.)
People v Rivers	2d Dept: 74 AD3d 995 (Kings)	granted 9/1/10 (Ciparick, J.)
People v Rodriguez	1st Dept: 73 AD3d 541 (NY)	granted 9/30/10 (Grafteo, J.)
People v Rojas	2d Dept: 74 AD3d 1369 (Dutchess)	denied 9/2/10 (Smith, J.)
People v Rondon	1st Dept: 72 AD3d 488 (NY)	denied 9/2/10 (Jones, J.)
People v Rooplall	2d Dept: 74 AD3d 996 (Queens)	denied 9/2/10 (Ciparick, J.)
People v Rosa	App Div, 1st Dept: 2010 NY Slip Op 77374(U) (Bronx)	dismissed 9/21/10 (Pigott, J.)
People v Roundtree	4th Dept: 75 AD3d 1136 (Monroe)	denied 9/22/10 (Smith, J.)
People v Sanchez	1st Dept: 76 AD3d 122 (Bronx)	denied 9/2/10 (Smith, J.)
People v Sanders	4th Dept: 75 AD3d 1106 (Cayuga)	denied 9/17/10 (Read, J.)
People v Schrock	4th Dept: 73 AD3d 1429 (Cattaraugus)	denied 9/2/10 (Ciparick, J.)
People v Seay	App Div, 4th Dept, 7/8/10 (Erie)	dismissed 9/20/10 (Lippman, Ch. J.)
People v Seeler	4th Dept: 74 AD3d 1878 (Monroe)	denied 9/17/10 (Read, J.)
People v Sewpersaud	2d Dept: 76 AD3d 534 (Queens)	denied 9/22/10 (Smith, J.)
People v Simmons	2d Dept: 74 AD3d 1247 (Kings)	denied 9/3/10 (Ciparick, J.)

2. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

People v Simon (Stephen)	4th Dept: 71 AD3d 1574 (Erie)	denied reconsideration 9/1/10 (Ciparick, J.)
People v Simon (Stephen)	4th Dept: 74 AD3d 1855 (Erie)	denied 9/3/10 (Ciparick, J.)
People v Smith (Gary)	2d Dept: 74 AD3d 1249 (Suffolk)	denied 9/10/10 (Lippman, Ch. J.)
People v Smith (John)	4th Dept: 74 AD3d 1865 (Cayuga)	denied 9/2/10 (Smith, J.)
People v Solomon	4th Dept: 71 AD3d 1491 (Wayne)	denied 9/17/10 (Grafteo, J.)
People v Sraman	App Term, 1st Dept: 27 Misc 3d 144(A) (NY)	denied 9/28/10 (Smith, J.)
People v Stauffer	4th Dept: 75 AD3d 1111 (Niagara)	denied 9/10/10 (Pigott, J.)
People v Sumahit	2d Dept: 72 AD3d 991 (Dutchess)	denied 9/13/10 (Lippman, Ch. J.)
People v Tillman	2d Dept: 74 AD3d 1251 (Westchester)	denied ³ 9/29/10 (Grafteo, J.)
People v Toussaint	2d Dept: 74 AD3d 846 (Suffolk)	denied 9/17/10 (Read, J.)
People v Travis	2d Dept: 67 AD3d 1034 (Orange)	denied ⁴ 9/7/10 (Jones, J.)
People v Traylor	2d Dept: 74 AD3d 1251 (Dutchess)	denied 9/29/10 (Grafteo, J.)
People v Trotter	2d Dept: 74 AD3d 1107 (Queens)	denied 9/7/10 (Ciparick, J.)
People v Vega	4th Dept: 74 AD3d 1833 (Erie)	denied 9/10/10 (Pigott, J.)
People v Vo	4th Dept: 73 AD3d 1460 (Niagara)	denied 9/2/10 (Jones, J.)
People v Walker	App Div, 1st Dept: 2010 NY Slip Op 72347(U) (NY)	denied 9/17/10 (Read, J.)
People v Wallace	4th Dept: 74 AD3d 1843 (Niagara)	denied 9/30/10 (Jones, J.)
People v Washington (Dexter)	App Div, 1st Dept: 2010 NY Slip Op 78642(U) (Bronx)	dismissed 9/10/10 (Ciparick, J.)
People v Washington (Dexter)	App Div, 1st Dept: 2010 NY Slip Op 77370(U) (NY)	dismissed 9/10/10 (Ciparick, J.)
People v Watson (Sedrick)	2d Dept: 73 AD3d 1199 (Westchester)	denied 9/17/10 (Read, J.)
People v Watson (Stanley)	2d Dept: 73 AD3d 1199 (Westchester)	denied 9/17/10 (Read, J.)
People v Whaley	3d Dept: 74 AD3d 1641 (Madison)	denied 9/20/10 (Lippman, Ch. J.)

3. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lingle* (66 AD3d 582 [2009], *lv granted* 14 NY3d 802 [2010]), *People v Murrell* (73 AD3d 598 [2010], *lv granted* 15 NY3d 854 [2010]), *People v Parisi* (72 AD3d 989 [2010], *lv granted* 15 NY3d 776 [2010]) and *People v Prendergast* (71 AD3d 1055 [2010], *lv granted* 15 NY3d 808 [2010]).

4. Denied reconsideration with leave to renew within 30 days after the U.S. Court of Appeals for the Second Circuit renders its en banc decision in *Besser v Walsh* (see 601 F3d 163 [2010]).

People v White	2d Dept: 74 AD3d 1374 (Kings)	denied 9/17/10 (Read, J.)
People v Wicks	3d Dept: 73 AD3d 1233 (Warren)	denied 9/2/10 (Jones, J.)
People v Wilkins	3d Dept: 75 AD3d 847 (Albany)	denied 9/22/10 (Smith, J.)
People v Williams (Donald)	4th Dept: 75 AD3d 1113 (Erie)	denied 9/2/10 (Ciparick, J.)
People v Williams (Dontae)	4th Dept: 71 AD3d 1546 (Oneida)	denied 9/2/10 (Jones, J.)
People v Williams (Kevin)	App Div, 2d Dept: 2010 NY Slip Op 76965(U) (Queens)	dismissed 9/9/10 (Smith, J.)
People v Williams (Robert)	4th Dept: 74 AD3d 1834 (Genesee)	denied 9/1/10 (Ciparick, J.)
People v Wilson	4th Dept: 72 AD3d 1559 (Monroe)	denied 9/13/10 (Lippman, Ch. J.)
People v Wright	4th Dept: 68 AD3d 1823 (Monroe)	denied 9/10/10 (Lippman, Ch. J.)
People v Yelder	4th Dept: 74 AD3d 1844 (Monroe)	denied 9/17/10 (Read, J.)
People v Zhen Di Li	App Div, 1st Dept: 2010 NY Slip Op 76228(U) (NY)	denied 9/17/10 (Grafteo, J.)

CHRISTOPHER COLEMAN, Respondent, v PUTNAM HOSPITAL CENTER et al., Defendants, and MARCEL GOLDBERGER, M.D., et al., Appellants.

Submitted August 2, 2010; decided October 14, 2010

Reported below, 74 AD3d 1009.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JUNIOR COLLINS, Appellant, v J.F. BELLNIER, Respondent.

Submitted September 20, 2010; decided October 14, 2010

Motion to vacate this Court's August 24, 2010 dismissal order granted [*see* 15 NY3d 801 (2010)]. On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of

a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

In the Matter of EDDIE GOMEZ, Appellant, et al., Petitioner, v
BRIAN FISCHER, as Commissioner of Correctional Services,
et al., Respondents.

Submitted August 9, 2010; decided October 14, 2010

Reported below, 74 AD3d 1399.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of HATTIE G. MARTIN, Deceased. MILADIN DOBRIC,
Appellant; DAVID J. BARON, Respondent.

Submitted June 28, 2010; decided October 14, 2010

Reported below, 2010 NY Slip Op 68809(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it. Motion for poor person relief dismissed as academic.

In the Matter of ROBERT P. MEEGAN, JR., Individually and as
President of Buffalo Police Benevolent Association, et al.,
Respondents, v BYRON W. BROWN, Mayor of City of Buffalo,
et al., Appellants. (Proceeding No. 1.)

In the Matter of JOSEPH E. FOLEY, Individually and as Presi-
dent of Buffalo Professional Firefighters Association, Inc.,
Local 282, IAFF, AFL-CIO-CLC, et al., Respondents, v BY-
RON W. BROWN, Mayor of City of Buffalo, et al., Appellants.
(Proceeding No. 2.)

BUFFALO TEACHERS FEDERATION, INC., NYSUT, et al., Respon-
dents, v BUFFALO BOARD OF EDUCATION FOR CITY SCHOOL
DISTRICT OF CITY OF BUFFALO et al., Appellants. (Action No.
1.)

Submitted September 20, 2010; decided October 14, 2010

Reported below, 63 AD3d 1673.

Motion by Buffalo Niagara Partnership for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

NML CAPITAL, Respondent-Appellant, and MONTREUX PARTNERS et al., Respondents, v REPUBLIC OF ARGENTINA, Appellant-Respondent.

Decided October 14, 2010

Reported below, 621 F3d 230.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BENITO ACEVEDO, Respondent.

Submitted September 20, 2010; decided October 14, 2010

Reported below, 75 AD3d 255.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PATRICK R. ASHLEY, Appellant.

Submitted October 4, 2010; decided October 14, 2010

Reported below, 71 AD3d 1286.

Motion for assignment of counsel granted and John A. Cirando, Esq., care of D.J. & J.A. Cirando, Esqs., 101 South Salina Street, Suite 1010, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

Judge PIGOTT taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY
E. BECOATS, Appellant.

Submitted September 27, 2010; decided October 14, 2010

Reported below, 71 AD3d 1578.

Motion for assignment of counsel granted only to the extent that Donald M. Thompson, Esq., care of Easton Thompson Kasperk Shiffrin LLP, 16 West Main Street, Suite 243, Rochester, New York 14614 is assigned without fee to represent appellant on the appeal herein. Counsel may, however, apply for reimbursement of necessary disbursements incurred in connection with the assignment.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NA-
DIRAH BROWN, Appellant.

Submitted September 27, 2010; decided October 14, 2010

Reported below, 72 AD3d 1558.

Motion for assignment of counsel granted and David C. Schopp, Esq., the Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v JOHN FREEMAN, Respondent-Appellant.

Submitted September 27, 2010; decided October 14, 2010

Reported below, 74 AD3d 836.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v MICHAEL HALL, Respondent-Appellant.

Submitted October 12, 2010; decided October 14, 2010

Reported below, 74 AD3d 837.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDY R. MATTISON, Appellant.

Submitted October 4, 2010; decided October 14, 2010

Reported below, 74 AD3d 1495.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v FAYOLA McINTOSH, Respondent.

Submitted September 27, 2010; decided October 14, 2010

Reported below, 73 AD3d 653.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DOMINIQUE MURRELL, Appellant.

Submitted October 4, 2010; decided October 14, 2010

Reported below, 73 AD3d 598.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN PRENDERGAST, Appellant.

Submitted September 27, 2010; decided October 14, 2010

Reported below, 71 AD3d 1055.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHERMAN RIVERS, Appellant.

Submitted September 27, 2010; decided October 14, 2010

Reported below, 74 AD3d 995.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR WASHINGTON, Appellant.

Submitted October 4, 2010; decided October 14, 2010

Reported below, 71 AD3d 1064.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

EDWIN POPE et al., Appellants, v SAFETY AND QUALITY PLUS, INC., et al., Respondents. (And a Third-Party Action.)

Submitted August 2, 2010; decided October 14, 2010

Reported below, 74 AD3d 1040.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SANDRA G., Respondent, v VICTOR P., Appellant.

Submitted August 2, 2010; decided October 14, 2010

Reported below, 71 AD3d 588.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

YOUNI GEMS CORP. et al., Respondents, v BASSCO CREATIONS INCORPORATED, Defendant, and EFRAIM BASALEL et al., Appellants.

Submitted August 2, 2010; decided October 14, 2010

Reported below, 70 AD3d 454.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[936 NE2d 912, 910 NYS2d 31]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CARLOS REYES, Respondent.

Decided October 19, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 28, 2010. The Appellate Division (1) reversed, on the law and the facts, a judgment of the Supreme Court, New York County (Gregory Carro, J.), which had convicted defendant, upon his plea of guilty, of attempted robbery in the third degree, (2) granted defendant's motion to suppress physical evidence and statements, (3) vacated the plea, and (4) remanded the matter for further proceedings.

At a pretrial hearing on defendant's motion to suppress, the arresting police officer testified that he and his partner received a radio dispatch in their patrol car that a 911 call had been received "about a dispute with a knife" at a certain location in Manhattan. The officers had no description of the alleged perpetrator and were not told the identity of the 911 caller. When the officers arrived at the location, one of them observed two men standing in front of a store; they pointed at defendant, who was walking away from them down the middle of the street,

and said, "That's him, that's him." Without first speaking to the men, the officers approached defendant and attempted to apprehend him, but he resisted and fled into a nearby apartment building. After a chase, the officers found defendant hiding in the basement whereupon they arrested and searched him, finding a gravity knife and an imitation revolver that they had not observed before. Later that evening, the officer spoke to the men he had seen standing in front of the store, who turned out to be its owners. They told him that defendant had stolen lottery tickets from the store, and then returned with winning tickets which they refused to honor. When defendant displayed what they thought was a revolver, they called the police. Before trial, defendant moved for an order suppressing the gravity knife and the imitation revolver that the officers seized, as well as statements that defendant made to the police after his arrest, on the ground that they lacked probable cause to stop, arrest and search him. The court denied the suppression motion, finding that the officers' knowledge of the 911 call about a knife dispute, when coupled with the store owners' pointing to defendant when the officers arrived at the scene, gave them reasonable suspicion that defendant was involved in the dispute, which escalated when defendant took flight. The Appellate Division concluded that the motion to suppress should have been granted because the officers lacked valid grounds to forcibly detain defendant on the street and then pursue him when he fled, and that the store owners' direction of the officers' attention to the suspect without relating it to any specific event did not provide a basis for the officers' reasonable suspicion.

People v Reyes, 69 AD3d 523, appeal dismissed.

HEADNOTE

Crimes — Appeal — Dismissal

An appeal from an order of the Appellate Division, which reversed a judgment convicting defendant of attempted robbery in the third degree and granted a motion to suppress physical evidence and statements, was dismissed upon the ground that the reversal was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (*Susan Axelrod* and *Alan Gadlin* of counsel), for appellant.

Office of the Appellate Defender, New York City (*Richard M. Greenberg*, *Heather L. Holloway* and *Rosemary Herbert* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed upon the ground that the reversal by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]; *see People v Howard*, 74 NY2d 943 [1989]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of ANONYMOUS, an Applicant for Admission to the Bar of the State of New York, Appellant.

Decided October 19, 2010

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of BARBARA J. BRACCI, Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS, Respondent.

Submitted August 2, 2010; decided October 19, 2010

Reported below, 62 AD3d 1146.

On the Court’s own motion, appeal dismissed, without costs, as untimely (*see* CPLR 5513 [a]). Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for ancillary relief dismissed as academic.

In the Matter of CENTRAL HUDSON GAS & ELECTRIC CORPORATION, Appellant, v ASSESSOR OF TOWN OF NEWBURGH et al., Respondents.

Submitted August 2, 2010; decided October 19, 2010

Reported below, 73 AD3d 1046.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

JENNIFER M. DOHERTY and Another, as Assignees of Thomas S. Fitzpatrick, Appellants, v MERCHANTS MUTUAL INSURANCE COMPANY, Respondent.

Submitted August 23, 2010; decided October 19, 2010

Reported below, 74 AD3d 1870.

Motion to dismiss appeal denied.

JEMROCK REALTY CO. LLC, Respondent, v JAY KRUGMAN, Appellant.

Submitted August 2, 2010; decided October 19, 2010

Reported below, 64 AD3d 290.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602).

In the Matter of JEFFREY A. JONES, Respondent, v DIETTE D. JONES, Also Known as DIETTE D. JONES-WEBMAN, Appellant.

Submitted August 16, 2010; decided October 19, 2010

Reported below, 75 AD3d 786.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of INGE L. MADER, Respondent, v KENNY JOHNSON, Appellant.

Submitted August 23, 2010; decided October 19, 2010

Reported below, 74 AD3d 1342.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of PEGGY MAGIDSON, Appellant, v
STRATEGIC TELEMARKETING, INC., et al., Respondents. WORK-
ERS' COMPENSATION BOARD, Respondent.

Submitted August 9, 2010; decided October 19, 2010

Reported below, 70 AD3d 1217.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of FRANCESCO NICOLETTA, Appellant, v NEW YORK
STATE DIVISION OF PAROLE, Respondent.

Submitted August 9, 2010; decided October 19, 2010

Reported below, 74 AD3d 1609.

Motion for leave to appeal dismissed upon the ground that
the issues presented have become moot.

NATALIA COKINOS OAKES, Individually and as Successor Trustee
of the HERBERT C. OAKES LIVING TRUST, as Assignee of Her-
bert C. Oakes, Jr. and Another, and as Guardian of LEOPOLD
V. OAKES, an Infant, Respondent, v BETTY O. MUKA, Appel-
lant.

Decided October 19, 2010

Reported below, 2010 NY Slip Op 74045(U); 69 AD3d 1139.

Appeal, insofar as taken from the June 2010 Appellate Divi-
sion order, dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that it does not finally determine
the action within the meaning of the Constitution; appeal,
insofar as taken from the January 2010 Appellate Division or-
der, dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional ques-
tion is directly involved.

In the Matter of ANDREW OPHARDT, Appellant, v JULIO VASQUEZ,
Commissioner, Community Development of City of Roches-
ter, et al., Respondents.

Submitted July 26, 2010; decided October 19, 2010

Reported below, 74 AD3d 1742, 1745.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHEILA B., Appellant.

In the Matter of SHEILA B., Appellant.

Submitted August 2, 2010; decided October 19, 2010

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CLIFFORD BRATHWAITE, Also Known as ERIC SMITH, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, et al., Respondents.

Decided October 19, 2010

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ARCHIE SHANNON, Appellant, v SIBATU KHAHAIFA, Superintendent, Orleans Correctional Facility, et al., Respondents.

Submitted July 12, 2010; decided October 19, 2010

Reported below, 74 AD3d 1867.

Motion for leave to appeal dismissed upon the ground that appellant has been released from custody and, therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]).

Judge PIGOTT taking no part.

In the Matter of ANTHONY J. SEGRETO et al., Appellants, v ALEXANDER B. GRANNIS, Commissioner of the New York State Department of Environmental Conservation, Respondent.

Submitted August 2, 2010; decided October 19, 2010

Reported below, 70 AD3d 704.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

[937 NE2d 79, 910 NYS2d 415]

WANDERLEI GASQUES et al., Appellants, v STATE OF NEW YORK, Respondent.

Argued September 15, 2010; decided October 21, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered February 24, 2009. The Appellate Division order, insofar as appealed from, affirmed so much of an order of the Court of Claims (Alton R. Waldon, Jr., J.) as had granted a motion by defendant for summary judgment dismissing claimants' Labor Law § 240 (1) and § 241 (6) claims. The following question was certified by the Appellate Division: "Was the decision and order of this court dated February 24, 2009, properly made?"

Gasques v State of New York, 59 AD3d 666, affirmed.

HEADNOTES

Labor — Safe Place to Work

1. In a personal injury action in which claimant's hand was injured when it became caught between a movable scaffold as it was ascending and a bridge he was repainting, claimant's Labor Law § 240 (1) claim was properly dismissed because his injury was not the direct consequence of the application of the force of gravity to an object or person. The hand was crushed because the scaffold continued to move, under the impetus of one of its motors, trapping the hand between an external motor control on the scaffold and the steel of the bridge.

Labor — Safe Place to Work

2. In a personal injury action in which claimant's hand was injured when it became caught between a movable scaffold as it was ascending and the bridge he was repainting, claimant's Labor Law § 241 (6) cause of action was properly dismissed because it was based solely on 12 NYCRR 23-1.5 (c) (1), which requires that machinery or equipment used by employees be "in good repair and in safe working condition." In a Labor Law § 241 (6) claim, the rule or

regulation alleged to have been breached must be a specific, positive command. 12 NYCRR 23-1.5 (c) (1) does not set forth a specific standard of conduct and therefore cannot serve as a predicate for a Labor Law § 241 (6) claim.

APPEARANCES OF COUNSEL

Breakstone Law Firm, P.C., Bellmore (*Jay L.T. Breakstone* of counsel), and *Herbert William Fischman, P.C.*, New York City (*Herbert William Fischman* of counsel), for appellants.

Cartafalsa, Slattery, Turpin & Lenoff, New York City (*Michael J. Lenoff* and *B. Jennifer Jaffee* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed, with costs, and the certified question answered in the affirmative.

Claimant Wanderlei Gasques was injured while repainting the inside of a leg of the Kosciuszko Bridge, using a “spider scaffold.” His hand was injured when it became caught between the scaffold and the leg of the bridge, while the scaffold was ascending.

[1] With respect to claimants’ Labor Law § 240 (1) cause of action, the parties agree that Gasques’ hand was crushed because the scaffold continued to move, under the impetus of one of its motors, while his hand was trapped between an external motor control on the scaffold and the steel of the bridge. This injury was not the direct consequence of the application of the force of gravity to an object or person (*see Runner v New York Stock Exch., Inc.*, 13 NY3d 599, 604 [2009]; *Ross v Curtis-Palmer Hydro-Elec. Co.*, 81 NY2d 494, 500-501 [1993]). Therefore claimants’ Labor Law § 240 (1) claim was properly dismissed.

[2] Claimants’ Labor Law § 241 (6) cause of action was also properly dismissed because it is based solely on 12 NYCRR 23-1.5 (c) (1), which requires that machinery or equipment used by employees be “in good repair and in safe working condition.” It is well established that, in a Labor Law § 241 (6) claim, the rule or regulation alleged to have been breached must be a “specific, positive command” (*Rizzuto v L.A. Wenger Contr. Co.*, 91 NY2d 343, 349 [1998], quoting *Ross*, 81 NY2d at 504). 12 NYCRR 23-1.5 (c) (1) does not set forth a specific standard of conduct and therefore cannot serve as a predicate for a Labor Law § 241 (6) claim.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order, insofar as appealed from, affirmed, etc.

[939 NE2d 137, 913 NYS2d 120]

JUSTIN M. SHUBBUCK, Respondent, v SEAN M. CONNERS et al.,
Appellants.

Decided October 21, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 30, 2010. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, Erie County (Paula L. Feroletto, J.), entered upon a jury verdict, which had awarded plaintiff damages in a personal injury action.

Plaintiff commenced this action seeking damages for injuries he sustained when the taxicab he was driving collided with a vehicle owned and operated by defendants. After granting that part of plaintiff's pretrial motion for partial summary judgment on the issue of whether plaintiff sustained a "serious injury," the case proceeded to trial, whereupon the jury rendered a verdict in favor of plaintiff, awarding him damages for past and future medical expenses, lost wages, and pain and suffering. The Appellate Division concluded that the evidence was legally sufficient to support the award with respect to future lost wages where plaintiff presented uncontroverted testimony that the construction company where he was employed as a supervisor paid him \$4.50 less per hour than other supervisors because of his physical limitations, which limitations the medical proof established were the direct result of his injuries.

Shubbuck v Connors, 72 AD3d 1554, modified.

HEADNOTE

Damages — Lost Earnings

In a personal injury action in which plaintiff was awarded damages for, among other things, lost future wages, plaintiff's own testimony, without more, was insufficient to establish by a reasonable certainty his loss of future wages as a result of the accident. The W-2 forms and tax returns that plaintiff introduced demonstrated his yearly income post-accident, but they were not probative of a reduction in future wages as a result of the accident because

they did not compare his pre- and post-accident income nor compare his post-accident income with the income of similarly situated employees in plaintiff's company. Accordingly, there was no valid line of reasoning and permissible inferences which could possibly lead rational people to the conclusion reached by the jury on the basis of the evidence presented at trial.

APPEARANCES OF COUNSEL

Rivkin Radler, LLP, Uniondale (*Merril Biscone* and *Melissa M. Murphy* of counsel), for appellants.

Law Offices of Wayne C. Felle, P.C., Williamsville (*Wayne C. Felle* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, with costs to defendants, by remitting the matter to Supreme Court for further proceedings in accordance with this memorandum and, as so modified, affirmed.

Plaintiff's own testimony, without more, was insufficient to establish by a reasonable certainty his loss of future wages as a result of the accident. In this case, the W-2 forms and tax returns that plaintiff introduced demonstrated his yearly income post-accident but they were not probative of a reduction in future wages as a result of the accident because they did not compare his pre- and post-accident income nor compare his post-accident income with the income of similarly situated employees in plaintiff's company. Accordingly, there is "no valid line of reasoning and permissible inferences which could possibly lead rational [people] to the conclusion reached by the jury on the basis of the evidence presented at trial" (*Cohen v Hallmark Cards*, 45 NY2d 493, 499 [1978]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, etc.

In the Matter of MICHAEL HOFFLER, Appellant, v ROBERT M. JACON, as Judge of the County Court of Rensselaer County, et al., Respondents.

Submitted August 16, 2010; decided October 21, 2010

Reported below, 72 AD3d 1183.

Motion for reconsideration of this Court's July 1, 2010 dismissal order denied [*see* 15 NY3d 768 (2010)]. Motion for leave to appeal denied.

MAHIN DOKHT KAROON, Plaintiff, v MAJID KAROON, Defendant.
COX PADMORE SKOLNIK & SHAKARCHY, LLP, Nonparty Respondent; KAYVAN KAROON et al., Nonparty Appellants.

Submitted August 2, 2010; decided October 21, 2010

Reported below, 74 AD3d 612.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID LANCE PAULIN, Appellant.

Submitted October 18, 2010; decided October 21, 2010

Reported below, 74 AD3d 685.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent, v MANUEL RODRIGUEZ, Respondent-Appellant.

Submitted October 18, 2010; decided October 21, 2010

Reported below, 73 AD3d 541.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWIN SANTIAGO, Appellant.

Submitted October 18, 2010; decided October 21, 2010

Reported below, 75 AD3d 163.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

TSAIYUN ISHIN PHILLIPS, Appellant, v ROBERT MARTIN HARALICK, Respondent.

Submitted August 16, 2010; decided October 21, 2010

Reported below, 70 AD3d 663.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PLEASANT HILL DEVELOPERS, INC., Respondent, v FOXWOOD ENTERPRISES, LLC, et al., Appellants.

Submitted August 23, 2010; decided October 21, 2010

Reported below, 65 AD3d 1203.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

VALERIE SUTTON, Respondent, v SCOTT BURDICK, as Executor of WESLEY BURDICK, Deceased, et al., Defendants, and RAYMOND HARVEY, Appellant.

Submitted September 7, 2010; decided October 21, 2010

Reported below, 75 AD3d 884.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

YOUNG CHEN, Respondent, v RUIHUA LI, Appellant.

Submitted August 16, 2010; decided October 21, 2010

Reported below, 67 AD3d 905.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[938 NE2d 965, 912 NYS2d 532]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAY-
MOND BRUN, Appellant.

Decided October 26, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 7, 2009. The Appellate Division denied defendant's application for a writ of error coram nobis to vacate an order of that Court entered January 27, 2009 (58 AD3d 862), which had modified, on the law and the facts, an order of the Nassau County Court (John L. Kase, J.), granting a motion by defendant to set aside a jury verdict convicting him of robbery in the first degree (three counts) under counts one, two, and three of the indictment, robbery in the second degree (three counts) under counts seven, eight, and nine, criminal use of a firearm in the first degree (two counts) under counts 10 and 11, and criminal facilitation in the fourth degree under count 12. The modification consisted of deleting the provisions of the order that had granted those branches of the defendant's application which were to set aside the jury verdict convicting him of robbery in the first degree under counts one, two, and three, robbery in the second degree under counts seven, eight, and nine, criminal use of a firearm under count 10, and criminal facilitation in the fourth degree under count 12, substituting therefor a provision denying those branches of the application, reinstating the subject counts of the indictment and the verdict of guilt thereon, and remitting the matter to Nassau County Court. The Appellate Division affirmed the judgment as modified.

People v Brun, 58 AD3d 862, vacated.

People v Brun, 64 AD3d 611, reversed.

HEADNOTE

**Crimes — Right to Counsel — Deprivation of Appellate Counsel —
Coram Nobis**

Defendant's application for a writ of error coram nobis should have been granted because he was deprived of appellate counsel to which he was entitled

where his assigned counsel at the trial court failed to represent defendant on a People's appeal to the Appellate Division, Second Department, in violation of the terms of 22 NYCRR 671.3 (f). Although a writ of error coram nobis generally raises the claim that defendant received ineffective assistance of appellate counsel, the writ is also a proper vehicle for addressing the complete deprivation of appellate counsel.

APPEARANCES OF COUNSEL

Norman Trabulus, New York City, for appellant.

Kathleen M. Rice, District Attorney, Mineola (*Andrea M. DiGregorio* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, defendant's application for a writ of error coram nobis granted, the Appellate Division's January 2009 order of modification (58 AD3d 862 [2d Dept 2009]) vacated, and the matter remitted to the Appellate Division for a de novo determination of the People's appeal.

Pursuant to the Rules of the Appellate Division, Second Department, on a People's appeal to that court, if a defendant was represented by assigned counsel at the trial court,

“such assignment shall remain in effect and counsel shall continue to represent the defendant as the respondent on the appeal until entry of the order determining the appeal and until counsel shall have performed any additional applicable duties imposed upon him by these rules, or until counsel shall have been otherwise relieved of his assignment” (22 NYCRR 671.3 [f]).

Here, although he informed defendant of the People's appeal, defendant's assigned trial counsel failed to represent defendant on that appeal. The Appellate Division, apparently unaware that defendant had been represented by assigned trial counsel, determined the People's appeal, noting no appearances by defendant (58 AD3d 862 [2009]).

Defendant thereafter applied for a writ of error coram nobis, alleging that he had been deprived of counsel on the People's appeal in violation of section 671.3 (f). The Appellate Division denied the writ, stating that defendant “failed to establish that he was denied the effective assistance of appellate counsel” (64 AD3d 611, 612 [2d Dept 2009]).

Because defendant's trial counsel failed to comply with the terms of 22 NYCRR 671.3 (f), defendant was deprived of

appellate counsel to which he was entitled. Accordingly, the Appellate Division should have granted defendant's application for a writ of error coram nobis. Although a writ of error coram nobis generally raises the claim that defendant received ineffective assistance of appellate counsel, the writ is also a proper vehicle for addressing the complete deprivation of appellate counsel that occurred here.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[939 NE2d 138, 913 NYS2d 121]

JULIETTE DEJOIE CADICHON et al., Appellants, v THOMAS FACELLE, M.D., et al., Respondents.

Submitted August 6, 2010; decided October 26, 2010

SUMMARY

MOTION for leave to appeal to the Court of Appeals, from (1) an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 18, 2010, and (2) an amended judgment of Supreme Court, Bronx County (Alison Y. Tuitt, J.), entered May 7, 2010. The Appellate Division order (71 AD3d 520), with two Justices dissenting, affirmed an order of the Supreme Court, Bronx County (Alison Y. Tuitt, J.), which had denied plaintiffs' motion to vacate the dismissal of the action, affirmed an order of that court to the extent it had denied plaintiffs' motion to renew, and dismissed, as taken from a nonappealable order, plaintiffs' appeal from so much of the same order as had denied plaintiffs' motion to reargue. The Supreme Court judgment granted defendants' cross motion to dismiss the complaint and dismissed the complaint. The Court of Appeals dismissed a prior appeal by plaintiffs on the ground of nonfinality.

Cadichon v Facelle, 15 NY3d 767, reconsideration granted.

HEADNOTE

Appeal — Appealable Paper — Finality

In an action in which a Supreme Court order was ambiguous as to whether it mandated a dismissal for want of prosecution pursuant to CPLR 3216

without further court order, an Appellate Division order denying a motion to vacate the dismissal was deemed the final appealable paper for purposes of the jurisdiction of the Court of Appeals. As the Appellate Division order had a two-Justice dissent on a question of law, an appeal as of right pursuant to CPLR 5601 (a) properly lay.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & De Cicco, New York City (*Brian J. Isaac* of counsel), for appellants.

Martin Clearwater & Bell LLP, New York City (*Stewart G. Milch* of counsel), for Thomas Facelle, M.D., respondent.

Steinberg, Symer & Platt, LLP, Poughkeepsie (*Ellen Fischer Bopp* of counsel), for Good Samaritan Hospital, respondent.

McAloon & Friedman, P.C., New York City (*Gina Bernardi DiFolco* of counsel), for Montefiore Medical Center, respondent.

Clausen Miller P.C., New York City (*Edwin M. Tobin* of counsel), for Louis May, respondent.

OPINION OF THE COURT

MEMORANDUM.

The motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order (71 AD3d 520 [2010]) that affirmed the August 26, 2008 Supreme Court order, treated as a motion for reconsideration of so much of this Court's July 1, 2010 order (15 NY3d 767 [2010]) as dismissed plaintiffs' appeal as of right from that portion of the Appellate Division order, should be granted, and, upon reconsideration, jurisdiction of so much of the appeal should be retained. The motion, insofar as it seeks leave to appeal from the above-recited part of the Appellate Division order should be dismissed as unnecessary. The motion, insofar as it seeks leave to appeal from the remainder of the Appellate Division order should be dismissed upon the ground that it does not finally determine the action within the meaning of the Constitution. The motion, insofar as it seeks leave to appeal from the amended judgment of Supreme Court pursuant to CPLR 5602 (a) (1) (ii), should be dismissed upon the ground that the portion of the Appellate Division order that affirmed the August 26, 2008 Supreme Court order is a final appealable paper from which an appeal was properly taken (*see* CPLR 5611). The appeal from the amended judgment should be dismissed, without costs, by the Court, on its own motion, upon the ground that the portion of the Appellate Division order that affirmed the August 26, 2008 Supreme Court order is a final

appealable paper from which an appeal was properly taken (*see* CPLR 5611).

In considering the finality limitation on its jurisdiction, this Court has consistently treated the automatic dismissal of an action pursuant to CPLR 3404, or pursuant to other statutes or court rules, as a final determination and it has treated any subsequent order denying a motion to vacate the dismissal as a nonfinal determination (*see e.g. Paglia v Agrawal*, 124 AD2d 793 [1986], *lv dismissed* 69 NY2d 946 [1987]). Accordingly, reading Supreme Court's order pursuant to CPLR 3216 in this case as providing that the complaint would be dismissed automatically upon plaintiffs' failure to file a note of issue by the date specified in the order, the Court dismissed for nonfinality the part of the appeal taken from the order affirming the denial of the motion to vacate (15 NY3d 767 [2010]). Upon reconsideration, it is recognized that Supreme Court's order is ambiguous as to whether it mandated a dismissal without further court order. Where, as here, it is not clear that the action was automatically dismissed by operation of statute, rule or court order, the order denying the motion to vacate shall be deemed the final appealable paper for purposes of this Court's jurisdiction. As the Appellate Division order denying the motion to vacate had a two-Justice dissent on a question of law, an appeal as of right pursuant to CPLR 5601 (a) properly lies.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

[938 NE2d 996, 912 NYS2d 563]

CORIEY REYNOLDS et al., Appellants, v MILLARD J. KNIBBS et al.,
Respondents.

Decided October 26, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered May 7, 2010. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Ontario County (Frederick G. Reed, J.), which had denied a motion by defendants for summary judgment dismissing the complaint, (2) granted the motion, and (3) dismissed the complaint.

Plaintiffs commenced this action seeking damages for injuries sustained by plaintiff Coriey Reynolds when he fell while descending the stairs in a residence that they rented from defendants. According to plaintiffs, the stairs detached from the wall and collapsed. With respect to actual notice, defendants presented evidence that they inspected the stairs prior to plaintiff's accident and believed that they were adequately secured. Defendants also submitted evidence that no one previously had a problem with the stairs or complained about them prior to plaintiff's accident. With respect to constructive notice, the Appellate Division noted that plaintiffs submitted an affidavit of an expert who averred that the stairs were improperly secured to the concrete wall and the defect "would have been clearly obvious to anyone with construction experience." The Appellate Division also noted that one defendant had over 30 years of experience as a contractor. The Court concluded, however, that plaintiffs did not raise a triable issue of fact with respect to actual or constructive notice because the expert's opinion was both speculative and conclusory.

Reynolds v Knibbs, 73 AD3d 1456, reversed.

HEADNOTE

Negligence — Maintenance of Premises — Constructive Notice of Alleged Defective Condition

Defendant property owners' motion for summary judgment dismissing the complaint in a personal injury action seeking damages for injuries sustained by plaintiff when he fell while descending allegedly defective stairs in his rented residence was denied since plaintiffs raised a triable issue of fact as to whether defendants had constructive notice of the alleged defect in the stairs.

APPEARANCES OF COUNSEL

Cellino & Barnes, P.C., Rochester (*Robert L. Voltz* of counsel), for appellants.

Bouvier Partnership, LLP, Buffalo (*Norman E.S. Greene* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and defendants' motion for summary judgment denied. Plaintiffs raised a triable issue of fact as to whether defendants had constructive notice of the alleged defect in the stairs (*see Gordon v American Museum of Natural History*, 67 NY2d 836, 837 [1986]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[938 NE2d 997, 912 NYS2d 563]

PEDRO ACOSTA, Appellant, v CITY OF NEW YORK et al., Respondents.

Decided October 26, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 6, 2010. The Appellate Division (1) dismissed an appeal from an order of the Supreme Court, Kings County (James G. Starkey, J.; op 21 Misc 3d 1147[A], 2008 NY Slip Op 52527[U]), which had denied defendants' motion to set aside a jury verdict in favor of plaintiff and for judgment as a matter of law, or, alternatively, to set aside the verdict as against the weight of the evidence and for a new trial, and had granted their separate motion to set aside the verdict on the issue of damages only to the extent of ordering a new trial unless plaintiff stipulated to reduce the damage award for future pain and suffering, (2) reversed, on the law, a judgment of that court, entered upon the order and upon the plaintiff's stipulation, which was in favor of plaintiff awarding him the reduced damages, (3) granted that branch of defendants' motion to set aside the verdict and for judgment as a matter of law, and (4) denied, as academic, defendants' motion to set aside the verdict on the issue of damages.

The Appellate Division concluded that, viewing the facts in the light most favorable to plaintiff, there was no valid line of reasoning and permissible inferences which could possibly have led rational individuals to conclude, based upon the evidence presented, that the defendants were liable. The Appellate Division found plaintiff's version of the events was manifestly untrue, physically impossible, or contrary to common experience, and such testimony should be disregarded as being without evidentiary value. In addition, the Appellate Division noted that the record was replete with instances where the testimony and

other evidence adduced by the plaintiff were manifestly untrue and tailored to avoid the consequences of previous statements made by him to disinterested nonparty witnesses.

Acosta v City of New York, 72 AD3d 624, reversed.

HEADNOTE

Trial — Verdict — Setting Verdict Aside

The Appellate Division erred in setting aside a jury verdict in plaintiff's favor as a matter of law since a valid line of reasoning existed based on the record evidence to support the jury verdict finding defendants liable for battery and false arrest.

APPEARANCES OF COUNSEL

Alexander J. Wulwick, New York City, for appellant.

Michael A. Cardozo, Corporation Counsel, New York City (*Drake A. Colley* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the case remitted to that court for consideration of issues raised but not determined on the appeal to that court. A valid line of reasoning exists based on the record evidence to support the jury verdict finding defendants liable for battery and false arrest (*see generally Cohen v Hallmark Cards*, 45 NY2d 493, 499 [1978]). Thus, it was erroneous to set aside the verdict as a matter of law. On remittal, the Appellate Division must determine whether the jury's verdict is in accord with the weight of the evidence and, if so, whether the amount of damages awarded by the jury was excessive (*see id.* at 500 and n 4).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES concur in memorandum; Judge SMITH dissents and votes to affirm for the reasons stated in the memorandum at the Appellate Division (72 AD3d 624 [2010]).

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[938 NE2d 966, 912 NYS2d 533]

In the Matter of DANIEL H., a Person Alleged to be a Juvenile
Delinquent, Appellant. PRESENTMENT AGENCY, Respondent.

Argued September 15, 2010; decided October 26, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 17, 2009. The Appellate Division, with two Justices dissenting, affirmed an order of disposition of the Family Court, Bronx County (Monica Drinane, J.), which had adjudicated appellant a juvenile delinquent upon a fact-finding determination that appellant had committed acts which, if committed by an adult, would have constituted the crimes of burglary in the third degree, grand larceny in the fourth degree (two counts), and identity theft in the third degree.

Matter of Daniel H., 67 AD3d 527, appeal dismissed.

HEADNOTE

Appeal — Dismissal — Dissent Not on Question of Law

An appeal from an order of the Appellate Division, affirming Family Court's juvenile delinquency adjudication, was dismissed by the Court of Appeals on the ground that the two-Justice dissent at the Appellate Division, which sought to remit the action to Family Court for a new fact-finding hearing on the issue of whether appellant's written inculpatory statement was sufficiently attenuated from his prior oral inculpatory statement, was not on a question of law (CPLR 5601 [a]). The issue of whether a defendant's inculpatory statement was attenuated from his prior un-Mirandized statement presented a mixed question of law and fact. As the two-Justice dissent was not on a question of law, the Court of Appeals was without jurisdiction to decide the appeal.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Raymond E. Rogers*, *Tamara A. Steckler* and *Steven Banks*), for appellant.

Michael A. Cardozo, *Corporation Counsel*, New York City (*Victoria Scalzo*, *Stephen J. McGrath* and *Leah Schmelzer* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The appeal should be dismissed, without costs, on the ground that the two-Justice dissent at the Appellate Division was not on a question of law (*see* CPLR 5601 [a]).

Police arrested appellant Daniel H. at his school for the theft of credit cards after he had made an inculpatory statement without being advised of his *Miranda* rights. Appellant was transported to a precinct, left alone in an adult holding cell, and was again questioned by the same detectives in a sergeant's office rather than a designated juvenile room. A written inculpatory statement was made by appellant after he and his mother were advised of appellant's *Miranda* rights.

Following a hearing conducted on October 31, 2007, the Family Court precluded appellant's inculpatory oral statement and denied the suppression of his subsequent, inculpatory written statement. The court determined that the written statement was sufficiently attenuated from the earlier oral statement.* Appellant was adjudicated a juvenile delinquent for committing acts, which, if committed by an adult, would constitute the crimes of burglary in the third degree, grand larceny in the fourth degree, and identity theft in the third degree.

By a 3-2 decision, the Appellate Division affirmed the Family Court order, finding that the written statement was sufficiently attenuated from the earlier un-Mirandized statement (67 AD3d 527 [1st Dept 2009]). The two-Justice dissent sought to remit the action to Family Court for a new fact-finding hearing. Appellant appeals to this Court pursuant to CPLR 5601 (a).

Jurisdiction for an appeal to this Court predicated upon CPLR 5601 (a) requires that, at the Appellate Division, there be a "dissent by at least two justices on a question of law in favor of the party taking such appeal." The issue of whether a defendant's inculpatory statement is attenuated from his prior un-Mirandized statement presents a mixed question of law and fact (see *People v Paulman*, 5 NY3d at 129; *People v Ryan*, 12 NY3d 28 [2009]; *People v Conyers*, 68 NY2d 982 [1986]). As the two-Justice dissent was not on a question of law, this Court is without jurisdiction to decide the appeal (see CPLR 5601 [a]; *Merrill v Albany Med. Ctr. Hosp.*, 71 NY2d 990 [1988]; *Guaspari v Gorsky*, 29 NY2d 891 [1972]).

CIPARICK, J. (dissenting). Because I believe that the two-Justice dissent in the Appellate Division was on a question of

* The purpose of the doctrine of attenuation is to determine whether there was a sufficiently "definite, pronounced break in the interrogation that the defendant may be said to have returned, in effect, to the status of one who is not under the influence of questioning" and is no longer influenced by the taint of the earlier *Miranda* violation (*People v Chapple*, 38 NY2d 112, 115 [1975]; see *People v Paulman*, 5 NY3d 122 [2005]).

law, and therefore CPLR 5601 (a) permits our review as a matter of right, I would reach the question presented on this appeal, conclude that an incorrect legal standard was applied in this juvenile delinquency proceeding, and remit to Family Court for further consideration.

Whether the courts below applied the correct standard in determining that Daniel's statement was attenuated is a legal question firmly within our jurisdiction (*see People v Borges*, 69 NY2d 1031, 1033 [1987] ["While questions of attenuation generally present mixed questions of law and fact, where . . . the lower courts have applied an incorrect legal standard, an issue of law reviewable by this court is presented" (citations omitted)]). The Appellate Division dissent below explicitly took issue with the legal standard applied by the majority, not the application of that standard. In affirming Family Court's finding of attenuation, the Appellate Division majority held that "the issue of attenuation is not appreciably different for juveniles than for adults," and proceeded to conduct the attenuation analysis just as it would for an adult defendant (*Matter of Daniel H.*, 67 AD3d 527, 529 [2009]). The dissent disagreed about whether Daniel's age should inform the analysis, noting that although the facts here "may constitute a pronounced break in the case of an adult accused[, they] have different bearing on the determination with regard to a juvenile" (*id.* at 535 [Moskowitz, J., dissenting] [citations omitted]). This is a straightforward disagreement regarding the legal standard—whether or not attenuation should be assessed differently in cases where the suspect is a juvenile—and so presents a question of law we can, and should, address.

Turning to the merits, I agree with the dissent below that Daniel's age should be a factor in considering whether his Mirandized statement was sufficiently attenuated from his prior, unwarned statement. *Miranda* warnings "'must precede the subjection of a [suspect] to questioning . . . unless there is such a definite, pronounced break in the interrogation that the [suspect] may be said to have returned, in effect, to the status of one who is not under the influence of questioning'" (*People v White*, 10 NY3d 286, 291 [2008], quoting *People v Chapple*, 38 NY2d 112, 115 [1975]). In other words, we aim to ensure that the two interrogations are not part of a "single continuous chain of events" (*Chapple*, 38 NY2d at 114).

In *People v Paulman* (5 NY3d 122 [2005]), we enumerated several considerations for determining whether an involuntary statement tainted a subsequent, Mirandized statement:

“New York courts have considered a number of factors, including the time differential between the *Miranda* violation and the subsequent admission; whether the same police personnel were present and involved in eliciting each statement; whether there was a change in the location or nature of the interrogation; the circumstances surrounding the *Miranda* violation, such as the extent of the improper questioning; and whether, prior to the *Miranda* violation, defendant had indicated a willingness to speak to police” (*id.* at 130-131).

Although it is an objective inquiry, these factors are meant to illuminate whether the suspect experienced the unwarned and later warned questioning as part of a continuous interrogation (*see id.* at 131; *Chapple*, 38 NY2d at 115).

Ultimately, the purpose of requiring a pronounced break is to ensure that the *Miranda* warnings effectively communicate a suspect’s right to remain silent and refrain from self-incrimination (*see Chapple*, 38 NY2d at 115). One under “continuous and custodial interrogation may well be put in such a state of mind that the warnings which would ordinarily suffice will no longer be enough to protect his rights” (*id.*). As a plurality of the United States Supreme Court recently observed, “[u]pon hearing warnings only in the aftermath of interrogation and just after making a confession, a suspect would hardly think he had a genuine right to remain silent, let alone persist in so believing once the police began to lead him over the same ground again” (*Missouri v Seibert*, 542 US 600, 613 [2004]).

The risk that *Miranda* warnings might be ineffective is heightened where, as here, the suspect is a juvenile. Indeed, this case is illustrative. The police interrogated Daniel at his school in a custodial setting outside the presence of a parent or advocate, elicited a confession, and then, after reading *Miranda* warnings in the presence of his mother, repeated the interrogation at the police precinct approximately one hour later, in a space other than a designated juvenile room. That Daniel was 15 years old certainly impacts whether he “perceived a distinction” between the two interrogations sufficient to render his *Miranda* warnings effective (*Paulman*, 5 NY3d at 132).

Daniel’s experience of these events is inseparable from his juvenile status for several reasons. Some of the *Paulman* factors, such as the circumstances surrounding the initial *Miranda* violation, require consideration of his youth. For example,

although the unwarned interrogation at his school was brief, the violation is more egregious because the suspect was an isolated, unaccompanied juvenile. Other factors, such as a suspect's initial willingness to talk to the police, inevitably mean something different when the suspect is a minor, and may be entirely inapplicable. Additionally, a child is less likely than an adult to perceive any given period spent in constant police custody as a "break," and is more likely to feel compelled to continue answering questions posed by the same officers who conducted the unwarned interrogation. Relatedly, a juvenile suspect is less likely to comprehend the meaning of *Miranda* warnings read shortly following a confession and understand that he can remain silent. It is also important to note that by not holding and interrogating Daniel in a designated juvenile room, as required by the Family Court Act, the police may have acted improperly (Family Ct Act § 305.2 [4] [b]; § 344.2 [2]).

In conclusion, Daniel's juvenile status exacerbated the severity of the police misconduct during the unwarned interrogation, decreased the likelihood that he understood his subsequent *Miranda* warnings, and impacted the validity of his Mirandized statement in a variety of other ways. Whether, on balance, there was a sufficient break in the interrogation is indeed a factual question, but age is clearly a relevant factor that should have been taken into account here.

Therefore, I would reverse and remit to Family Court for consideration of whether, in light of Daniel's youth, his two inculpatory statements were part of a "single continuous chain of events" resulting in "inadequate assurance that the *Miranda* warnings were effective" (*Paulman*, 5 NY3d at 130).

Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Judge CIPARICK dissents and votes to reverse in an opinion in which Chief Judge LIPPMAN concurs.

Appeal dismissed, without costs, in a memorandum.

In the Matter of JOSHUA BERNSTEIN, a Disbarred Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Petitioner.

Decided October 26, 2010

Reported below, 2010 NY Slip Op 73087(U).

Appeal dismissed, without costs, by the Court of Appeals, sua

sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

CABRINI TERRACE JOINT VENTURE, Respondent, v CHARLES O'BRIEN, Appellant.

Submitted August 23, 2010; decided October 26, 2010

Reported below, 71 AD3d 486.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of MERCEDES CASADO et al., Respondents, v MARVIN MARKUS, as Chair of the New York City Rent Guidelines Board, et al., Appellants.

Submitted August 2, 2010; decided October 26, 2010

Reported below, 74 AD3d 632.

Motion by the Rent Stabilization Association of NYC, Inc., et al. for leave to appear as amici curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed, and for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

DEVELOPMENT STRATEGIES COMPANY, LLC, PROFIT SHARING PLAN, Respondent, v ASTORIA EQUITIES, INC., et al., Appellants, et al., Defendants.

Submitted August 2, 2010; decided October 26, 2010

Reported below, 71 AD3d 628.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Supreme Court's November 2008 order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

DAVID B. JACOBS, Appellant, v MICHAEL MOSTOW et al., Defendants, and ARTHUR RIEGEL et al., Respondents.

Decided October 26, 2010

Reported below, 2010 NY Slip Op 71529(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

DAVID B. JACOBS, Appellant, v MICHAEL MOSTOW et al., Respondents, et al., Defendants.

Decided October 26, 2010

Reported below, 2010 NY Slip Op 73073(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of L&M BUS CORP. et al., Respondents, v NEW YORK CITY DEPARTMENT OF EDUCATION et al., Appellants, and LOCAL 1181 OF THE AMALGAMATED TRANSIT UNION, Intervenor-Appellant.

Submitted July 26, 2010; decided October 26, 2010

Reported below, 71 AD3d 127.

Motion by the New York City Department of Education, et al. for leave to appeal granted. Motion by Local 1181 of the Amalgamated Transit Union, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Supreme Court's determination denying discovery and the application to complete the record, dismissed upon the ground that such part of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise granted.

SANTO LOMBARDO et al., Appellants, v MASTEC NORTH AMERICA, INC., et al., Defendants, and QUEENS NETWORK CABLE, Respondent. (And a Third-Party Action.)

Decided October 26, 2010

Reported below, 2010 NY Slip Op 69290(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Appellate Division order appealed from, which denied reargument, does not finally determine the action within the meaning of the Constitution.

JENNIFER D. MARTINO, Respondent, v MICHAEL A. STOLZMAN, Respondent, and MICHAEL OLIVER et al., Appellants. (Action No. 1.)

JUDITH A. ROST, Respondent, v MICHAEL A. STOLZMAN et al., Respondents, and MICHAEL OLIVER et al., Appellants. (Action No. 2.)

Decided October 26, 2010

Reported below, 74 AD3d 1764.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the actions within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. TIMOTHY FAIR, Appellant, v DAVID ROCK, as Superintendent of Great Meadow Correctional Facility, Respondent.

Decided October 26, 2010

Reported below, 74 AD3d 1586.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANTHONY MUNFORD, Appellant, v WILLIAM J. CONNELLY, Respondent.

Submitted September 20, 2010; decided October 26, 2010

Reported below, 2009 NY Slip Op 87343(U).

Motion for reargument of motion for leave to appeal denied [see 14 NY3d 702 (2010)].

In the Matter of the Claim of RANDY RAYNOR, Claimant, v
LANDMARK CHRYSLER et al., Appellants, et al., Respondent.
WORKERS' COMPENSATION BOARD, Respondent.

Decided October 26, 2010

Reported below, 75 AD3d 697.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal granted.

In the Matter of DANIEL WILLIAMS, Appellant, v BRIAN FISCHER,
as Commissioner of Correctional Services, Respondent.

Submitted August 16, 2010; decided October 26, 2010

Reported below, 75 AD3d 706.

Motion for leave to appeal granted. Motion for poor person
relief granted.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(October 1, 2010 through October 31, 2010)

Glacial Aggregates LLC v Town of Yorkshire	4th Dept: 72 AD3d 1644	10/22/10
People v Grant	2d Dept: 70 AD3d 711	10/28/10
Shabazz, Matter of, v Artus	3d Dept: 2010 NY Slip Op 77784(U)	10/13/10

APPEALS WITHDRAWN AND DISCONTINUED

(October 1, 2010 through October 31, 2010)

Martin, Matter of, v Tucker	4th Dept: 75 AD3d 1095	10/20/10
Tucker, Matter of, v Martin	4th Dept: 75 AD3d 1087	10/20/10

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2010 through October 31, 2010)

People v Abbott	2d Dept: 72 AD3d 984 (Dutchess)	denied 10/27/10 (Jones, J.)
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People v Abdul	2d Dept: 76 AD3d 563 (Suffolk)	denied 10/29/10 (Grafteo, J.)
People v Agina	2d Dept: 74 AD3d 831 (Queens)	granted 10/1/10 (Smith, J.)
People v Alexander	2d Dept: 56 AD3d 793 (Nassau)	denied 10/29/10 (Pigott, J.)
People v Barnes (Thomas)	App Term, 1st Dept, 4/15/10 (NY)	denied reconsideration 10/25/10 (Lippman, Ch. J.)
People v Barnes (Tommy)	App Term, 1st Dept, 4/15/10 (NY)	denied reconsideration 10/25/10 (Lippman, Ch. J.)
People v Bernardez	2d Dept: 73 AD3d 1196 (Westchester)	denied 10/28/10 (Jones, J.)
People v Blair	App Div, 4th Dept, 5/28/10 (Wayne)	denied reconsideration 10/29/10 (Pigott, J.)
People v Bosa	App Div, 1st Dept: 2010 NY Slip Op 76246(U) (Bronx)	denied 10/6/10 (Smith, J.)
People v Brown	App Div, 4th Dept, 6/23/10 (Monroe)	denied 10/27/10 (Smith, J.)
People v Burnett	2d Dept: 74 AD3d 1222 (Queens)	denied 10/28/10 (Jones, J.)
People v Cameron	2d Dept: 74 AD3d 1223 (Kings)	denied 10/25/10 (Lippman, Ch. J.)
People v Castro	1st Dept: 76 AD3d 421 (Bronx)	denied 10/29/10 (Grafteo, J.)
People v Centofanti	2d Dept: 75 AD3d 607 (Orange)	denied 10/25/10 (Lippman, Ch. J.)
People v Charleston	App Div, 1st Dept: 2010 NY Slip Op 81577(U) (NY)	dismissed 10/27/10 (Smith, J.)
People v Cooper	4th Dept: 72 AD3d 1552 (Erie)	denied reconsideration 10/26/10 (Pigott, J.)
People v Correa	1st Dept: 75 AD3d 478 (Bronx)	denied 10/4/10 (Pigott, J.)
People v Crews	2d Dept: 74 AD3d 983 (Suffolk)	denied 10/25/10 (Lippman, Ch. J.)
People v Cruz	1st Dept: 74 AD3d 676 (NY)	denied 10/28/10 (Jones, J.)
People v Curto	County Ct, 4/15/10 (Erie)	dismissed 10/21/10 (Read, J.)
People v Daniels	4th Dept: 75 AD3d 1169 (Seneca)	denied 10/21/10 (Read, J.)
People v Dash	4th Dept: 74 AD3d 1859 (Orleans)	denied 10/21/10 (Read, J.)

MEMORANDA

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People v Davis (Donald)	App Div, 2d Dept: 2010 NY Slip Op 77473(U) (Westchester)	dismissed 10/21/10 (Read, J.)
People v Davis (Gregory)	App Div, 2d Dept: 2010 NY Slip Op 79928(U) (Kings)	dismissed 10/27/10 (Jones, J.)
People v Davis (Sharrowl)	App Div, 4th Dept, 8/24/10 (Monroe)	dismissed 10/8/10 (Ciparick, J.)
People v Dushain	App Div, 1st Dept: 2010 NY Slip Op 72663(U) (NY)	denied 10/28/10 (Jones, J.)
People v Fella	3d Dept: 75 AD3d 760 (Schenectady)	denied 10/21/10 (Read, J.)
People v Figgins	4th Dept: 72 AD3d 1599 (Genesee)	denied 10/27/10 (Jones, J.)
People v Fleming	2d Dept: 76 AD3d 582 (Queens)	denied 10/29/10 (Grafteo, J.)
People v Fortunato	2d Dept: 75 AD3d 557 (Kings)	denied 10/29/10 (Grafteo, J.)
People v Foster	4th Dept: 75 AD3d 1114 (Monroe)	denied 10/25/10 (Smith, J.)
People v Gallo	2d Dept: 73 AD3d 804 (Dutchess)	denied 10/1/10 (Pigott, J.)
People v Genyard	App Div, 2d Dept: 2010 NY Slip Op 81497(U) (Queens)	dismissed 10/18/10 (Ciparick, J.)
People v Gilmore	1st Dept: 74 AD3d 566 (NY)	denied 10/25/10 (Lippman, Ch. J.)
People v Graham	1st Dept: 74 AD3d 613 (NY)	denied 10/21/10 (Read, J.)
People v Hammon	2d Dept: 73 AD3d 807 (Kings)	denied 10/25/10 (Lippman, Ch. J.)
People v Hammond	2d Dept: 73 AD3d 807 (Kings)	denied 10/25/10 (Lippman, Ch. J.)
People v Harris	4th Dept: 74 AD3d 1844 (Erie)	denied 10/21/10 (Read, J.)
People v Hart	App Div, 3d Dept: 2010 NY Slip Op 73373(U) (Albany)	denied 10/28/10 (Jones, J.)
People v Hernandez	4th Dept: 74 AD3d 1854 (Erie)	denied 10/25/10 (Lippman, Ch. J.)
People v Houston	2d Dept: 73 AD3d 1081 (Nassau)	denied 10/26/10 (Pigott, J.)
People v Johnson (Robert)	1st Dept: 73 AD3d 578 (NY)	denied 10/21/10 (Read, J.)
People v Johnson (Wellington)	App Div, 3d Dept: 2010 NY Slip Op 79430(U) (Madison)	dismissed 10/19/10 (Grafteo, J.)
People v Jorge	1st Dept: 71 AD3d 604 (NY)	denied 10/27/10 (Jones, J.)
People v Kane	1st Dept: 73 AD3d 657 (Bronx)	denied 10/21/10 (Read, J.)
People v KD	3d Dept: 73 AD3d 1219 (Broome)	denied 10/26/10 (Pigott, J.)

People v King	App Term, 2d Dept: 28 Misc 3d 138(A) (Suffolk)	denied 10/29/10 (Pigott, J.)
People v Kravitz	3d Dept: 75 AD3d 915 (Greene)	denied 10/26/10 (Smith, J.)
People v Lane	4th Dept: 71 AD3d 1484 (Erie)	denied reconsideration 10/21/10 (Read, J.)
People v Lasher	3d Dept: 74 AD3d 1474 (Schenectady)	denied 10/25/10 (Lippman, Ch. J.)
People v Lewis	App Div, 3d Dept: 2010 NY Slip Op 68586(U) (Broome)	denied reconsideration 10/21/10 (Read, J.)
People v Maduro	App Term, 2d Dept: 27 Misc 3d 127(A) (Queens)	denied 10/26/10 (Pigott, J.)
People v McCall	3d Dept: 75 AD3d 999 (Albany)	denied 10/4/10 (Pigott, J.)
People v McIver	4th Dept: 76 AD3d 782 (Wyoming)	denied 10/29/10 (Grafteo, J.)
People v Mike	3d Dept: 73 AD3d 1219 (Broome)	denied 10/26/10 (Pigott, J.)
People v Miller	App Div, 1st Dept: 2010 NY Slip Op 79714(U) (NY)	dismissed 10/26/10 (Smith, J.)
People v Money	3d Dept: 75 AD3d 760 (Schenectady)	denied 10/21/10 (Read, J.)
People v Morgan	4th Dept: 75 AD3d 1050 (Erie)	denied 10/21/10 (Read, J.)
People v Moss	2d Dept: 74 AD3d 1360 (Dutchess)	denied 10/6/10 (Smith, J.)
People v Natt	1st Dept: 73 AD3d 578 (NY)	denied 10/21/10 (Read, J.)
People v Orr	1st Dept: 73 AD3d 596 (NY)	denied 10/25/10 (Lippman, Ch. J.)
People v Ortiz	1st Dept: 74 AD3d 672 (Bronx)	denied 10/28/10 (Jones, J.)
People v Ovalles	2d Dept: 74 AD3d 1368 (Orange)	denied 10/29/10 (Pigott, J.)
People v Overocker	3d Dept: 72 AD3d 1353 (Saratoga)	dismissed ¹ 10/6/10 (Pigott, J.)
People v Peele	3d Dept: 73 AD3d 1219 (Broome)	denied 10/26/10 (Pigott, J.)
People v Phillips	2d Dept: 68 AD3d 1137 (Queens)	denied 10/20/10 (Jones, J.)
People v Poole	App Div, 4th Dept, 8/18/10 (Monroe)	dismissed 10/26/10 (Smith, J.)

1. Dismissed upon the ground that the Appellate Division's decision and order dated April 22, 2010 granted counsel's motion to withdraw. This dismissal is without prejudice to renewal by defendant pro se or by new counsel.

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People v Pratt	1st Dept: 74 AD3d 536 (Bronx)	granted 10/1/10 (Jones, J.)
People v Reid	2d Dept: 73 AD3d 1090 (Queens)	denied 10/27/10 (Jones, J.)
People v Rice	3d Dept: 69 AD3d 1058 (Saratoga)	dismissed ² 10/7/10 (Jones, J.)
People v Rivera	2d Dept: 74 AD3d 993 (Suffolk)	denied 10/27/10 (Jones, J.)
People v Roberts	2d Dept: 75 AD3d 564 (Kings)	denied 10/4/10 (Pigott, J.)
People v Rodriguez (Daniel)	2d Dept: 74 AD3d 1368 (Orange)	denied 10/29/10 (Pigott, J.)
People v Rodriguez (Louis)	1st Dept: 74 AD3d 488 (NY)	denied 10/21/10 (Read, J.)
People v Rodriguez-Ovalles	2d Dept: 74 AD3d 1368 (Orange)	denied 10/29/10 (Pigott, J.)
People v Rouse	4th Dept: 74 AD3d 1817 (Monroe)	denied 10/21/10 (Read, J.)
People v Ruple	3d Dept: 74 AD3d 1487 (Otsego)	denied 10/25/10 (Lippman, Ch. J.)
People v Saintilus	2d Dept: 74 AD3d 996 (Queens)	denied 10/25/10 (Lippman, Ch. J.)
People v Salton	2d Dept: 74 AD3d 997 (Kings)	denied 10/26/10 (Pigott, J.)
People v Sanabria	App Div, 2d Dept: 2010 NY Slip Op 81855(U) (Dutchess)	dismissed 10/18/10 (Ciparick, J.)
People v Sanchez	3d Dept: 75 AD3d 911 (Broome)	denied 10/26/10 (Pigott, J.)
People v Scott	4th Dept: 75 AD3d 1114 (Ontario)	denied 10/21/10 (Read, J.)
People v Self	3d Dept: 75 AD3d 924 (Montgomery)	denied 10/6/10 (Smith, J.)
People v Serrano	2d Dept: 74 AD3d 1104 (Suffolk)	denied 10/28/10 (Jones, J.)
People v Smith (Howard)	App Term, 2d Dept: 27 Misc 3d 135(A) (Rockland)	granted 10/27/10 (Pigott, J.)
People v Smith (Robert)	1st Dept: 73 AD3d 631 (NY)	denied 10/25/10 (Lippman, Ch. J.)
People v Stokes	App Div, 4th Dept, 8/9/10 (Erie)	dismissed 10/12/10 (Lippman, Ch. J.)
People v Strawbridge	3d Dept: 76 AD3d 115 (Albany)	denied 10/27/10 (Smith, J.)
People v Stroman	4th Dept: 71 AD3d 1548 (Cayuga)	denied reconsideration 10/27/10 (Smith, J.)

2. Dismissed upon the ground that the Appellate Division's decision and order dated January 14, 2010 granted counsel's motion to withdraw. This dismissal is without prejudice to renewal by defendant pro se or by new counsel.

People v Suh	App Term, 2d Dept: 27 Misc 3d 143(A) (Orange)	denied 10/25/10 (Lippman, Ch. J.)
People v Tavaréz	2d Dept: 74 AD3d 845 (Westchester)	denied reconsideration 10/27/10 (Smith, J.)
People v Tellier	2d Dept: 76 AD3d 684 (Nassau)	denied 10/29/10 (Grafteo, J.)
People v Thompson	3d Dept: 75 AD3d 760 (Schenectady)	denied 10/21/10 (Read, J.)
People v Turner	3d Dept: 73 AD3d 1282 (Chemung)	denied 10/21/10 (Read, J.)
People v Vaillant	1st Dept: 74 AD3d 409 (NY)	denied 10/28/10 (Jones, J.)
People v Vazquez	App Term, 1st Dept: 28 Misc 3d 132(A) (NY)	denied 10/29/10 (Grafteo, J.)
People v Ward	4th Dept: 76 AD3d 800 (Erie)	denied 10/26/10 (Smith, J.)
People v Warren	App Div, 1st Dept: 2010 NY Slip Op 76744(U) (Bronx)	denied 10/29/10 (Grafteo, J.)
People v Wearing	App Div, 1st Dept: 2010 NY Slip Op 76255(U) (NY)	denied 10/6/10 (Smith, J.)
People v Weinberg	2d Dept: 75 AD3d 612 (Kings)	denied 10/4/10 (Pigott, J.)
People v White	App Div, 4th Dept, 8/18/10 (Erie)	dismissed 10/19/10 (Grafteo, J.)
People v Williams	App Div, 4th Dept, 9/30/09 (Onondaga)	dismissed 10/12/10 (Lippman, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices¹

(October 1, 2010 through October 31, 2010)

People v Bradshaw	2d Dept: 76 AD3d 566 (Kings)	granted 10/14/10 (Fisher, J.)
People v Cornell ²	4th Dept: 75 AD3d 1157 (Chautauqua)	granted 9/28/10 (Smith, J.)

[938 NE2d 987, 912 NYS2d 554]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TASHIEM BAYARD, Appellant.

Argued October 21, 2010; decided November 17, 2010

1. Includes only applications that were granted.
2. Omitted from September 2010 list.

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 9, 2009. The Appellate Division affirmed (1) a judgment of the Supreme Court, New York County (Robert Straus, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and robbery in the second degree, and (2) a judgment of that Supreme Court, which had convicted defendant, upon his plea of guilty, of robbery in the first degree and robbery in the second degree.

People v Bayard, 63 AD3d 481, affirmed.

HEADNOTE

Crimes — Disclosure — Failure to Disclose Exculpatory Material

In a robbery prosecution, the People's failure to disclose the identity of the police officer who compiled a complaint report that included descriptive information relating to the crime and the perpetrators, and that was turned over to the defense before trial, did not amount to a *Brady* violation warranting reversal of defendant's conviction. Assuming that the omitted name had exculpatory or impeachment value, there was no reasonable possibility that, if the officer's identity had been discovered, the outcome of the proceedings would have been different. The trial court allowed the defense to make significant use of the unsigned report during cross-examination of the complainant and lead detective and, as an ameliorative measure, permitted the defense to challenge the complainant's identification by admitting a description provided by a nontestifying eyewitness.

APPEARANCES OF COUNSEL

Office of the Appellate Defender, New York City (*Anastasia B. Heeger*, *Richard M. Greenberg* and *Rosemary Herbert* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Karen Schlossberg* and *Sheryl Feldman* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Prior to trial in this robbery prosecution, the People turned over a police omniform system complaint report that included descriptive information relating to the crime and the perpetrators but did not contain the name of the officer that compiled that information. Defendant contends that the People's failure to disclose the officer's identity amounts to a *Brady* violation warranting reversal of his conviction. We disagree. Assuming

that the omitted name had exculpatory or impeachment value, there is no reasonable possibility that, if the officer's identity had been discovered, the outcome of the proceedings would have been different (*see People v Vilardi*, 76 NY2d 67 [1990]). The trial court allowed the defense to make significant use of the unsigned report during cross-examination of the complainant and lead detective and, as an ameliorative measure, permitted the defense to challenge the complainant's identification by admitting a description provided by a nontestifying eyewitness.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[938 NE2d 1002, 912 NYS2d 568]

STATE OF NEW YORK et al., Plaintiffs, v PHILIP MORRIS INCORPORATED et al., Respondents, and DOSAL TOBACCO CORPORATION et al., Appellants, et al., Defendants.

Argued October 19, 2010; decided November 17, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 23, 2009. The Appellate Division dismissed an appeal from so much of an order of the Supreme Court, New York County (Charles E. Ramos, J.), as had granted motions to compel arbitration of a dispute.

In 1998, New York, along with many other jurisdictions, signed a master settlement agreement (MSA) with the largest tobacco manufacturers in the United States settling claims brought against those manufacturers alleging wrongful marketing and advertising of cigarettes and other tobacco products. In exchange for a release of liability, the tobacco manufacturers agreed to make annual payments to be allocated among the settling states. They also agreed to extensive marketing and advertising restrictions. Not all American tobacco manufacturers joined the MSA. In order to neutralize cost disadvantages suffered by the participating manufacturers (PMs) relative to nonparticipating manufacturers (NPMs), the MSA provided the settling states with a strong incentive to enact statutes requiring NPMs to make annual payments toward the costs of treating smoking-related illnesses equivalent to those made by the

PMs. The MSA set out a model statute, which, if appropriately enacted, “shall constitute a Qualifying Statute.” If a settling state failed to enact, or did not diligently enforce, a qualifying statute, PMs’ payments to that state may be subject to the NPM adjustment, which may be applied to reduce PMs’ payments to a settling state under certain circumstances. New York enacted a qualifying statute (Public Health Law art 13-G) which based the amount of money NPMs must deposit in escrow on the number of “units sold,” which in turn was calculated on the amount of excise tax collected. The PMs complained that New York’s failure to collect taxes from tobacco sales on Native American tribal lands amounted to the State not diligently enforcing its qualifying statute, thereby triggering the NPM adjustment. The State commenced the present action seeking a declaration that “units sold” excluded cigarette sales on which excise taxes had not been collected as a matter of public policy. Certain PMs then moved to compel arbitration, citing language in the MSA that required disputes over diligent enforcement of qualifying statutes to be resolved by arbitration. The State opposed the motion as did certain NPMs.

Supreme Court granted the motion to compel arbitration and stayed the action. The only entities who appealed Supreme Court’s order were NPMs. The Appellate Division concluded that the NPMs were not aggrieved by the order and dismissed their appeal.

State of New York v Philip Morris Inc., 61 AD3d 575, appeal dismissed.

HEADNOTE

Appeal — Parties Aggrieved

An appeal in a declaratory judgment action arising out of the settlement of litigation against certain tobacco manufacturers was dismissed where the appellants, who opposed motions to compel arbitration of an issue that had arisen under the settlement agreement, were not parties to the agreement. As the nonparticipating tobacco manufacturers were not required by Supreme Court’s order to arbitrate and would not be bound by the arbitration, they were not aggrieved.

APPEARANCES OF COUNSEL

Troutman Sanders LLP (William H. Hurd, of the Virginia bar, admitted pro hac vice, and Ashley L. Taylor, Jr., of the Virginia bar, admitted pro hac vice, of counsel), *Law Offices of Lisa M. Solomon*, New York City (Lisa M. Solomon of counsel), *Fredricks Peebles & Morgan, LLP* (Joseph V. Messineo, of the

Arizona and Nebraska bars, admitted pro hac vice, of counsel), and *Jones Garneau LLP*, Scarsdale (*Michael K. Stanton, Jr.*, of counsel), for appellants.

Kirkland & Ellis LLP (*Stephen R. Patton*, of the Illinois bar, admitted pro hac vice, and *Douglas G. Smith*, of the Illinois bar, admitted pro hac vice, of counsel), *Winston & Strawn LLP*, New York City (*Alexander Shaknes* of counsel), *Kirkland & Ellis LLP* (*Peter A. Bellacosa* and *Mark A. Rasmussen* of counsel), *Howrey LLP* (*Robert J. Brookhiser*, of the District of Columbia bar, admitted pro hac vice, and *Elizabeth B. McCallum* of counsel), *Leader & Berkon LLP*, New York City (*Joshua K. Leader* of counsel), *Greenberg Traurig, LLP* (*Irving Scher* and *Jeffrey B. Sklaroff* of counsel), and *Paul B. Garland*, New York City, for respondents.

OPINION OF THE COURT

Appeal dismissed, without costs. As the nonparticipating tobacco manufacturers are not required by Supreme Court's order to arbitrate and will not be bound by the arbitration, they are not aggrieved.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

JOHN CALDERON, JR., Respondent, v WALGREEN CO. et al., Appellants.

Submitted October 18, 2010; decided November 17, 2010

Reported below, 72 AD3d 1532.

Motion to vacate this Court's September 15, 2010 dismissal order granted [*see* 15 NY3d 848 (2010)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that the Appellate Division order does not finally determine the action within the meaning of the Constitution.

ROBERT V. CATTANI, M.D., Appellant, v RICHARD A. MARFUGGI, M.D., Respondent. RICHARD PAUL STONE, ESQ., Nonparty Appellant.

Submitted August 9, 2010; decided November 17, 2010

Reported below, 74 AD3d 553.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of H.M., Respondent, v E.T., Appellant.

Submitted September 20, 2010; decided November 17, 2010

Reported below, 65 AD3d 119; 76 AD3d 528.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from, affirming only Family Court's September 2007 order and leaving the matter pending for further judicial action, does not finally determine the proceeding within the meaning of the Constitution.

ALICE KRAMER, Respondent, v PHOENIX LIFE INSURANCE Co. et al., Defendants, and LIFEMARK S.A., Intervenor-Appellant. (And Third-Party Actions.)

Submitted August 30, 2010; decided November 17, 2010

Motion by intervenor-appellant Lifemark S.A. to strike portions of the brief of defendants Phoenix Life Insurance Co. and Lincoln Life & Annuity Co. of New York denied.

ALICE KRAMER, Respondent, v PHOENIX LIFE INSURANCE Co. et al., Defendants, and LIFEMARK S.A., Intervenor-Appellant. (And Third-Party Actions.)

Submitted September 7, 2010; decided November 17, 2010

Motion by respondent Alice Kramer to strike portions of the brief of defendants Phoenix Life Insurance Co. and Lincoln Life & Annuity Co. of New York denied.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALAA AGINA, Respondent.

Submitted November 1, 2010; decided November 17, 2010

Reported below, 74 AD3d 831.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New

York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAY JO-MAR BRADSHAW, Respondent.

Submitted November 1, 2010; decided November 17, 2010

Reported below, 76 AD3d 566.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BARAK CORNELL, Respondent.

Submitted October 25, 2010; decided November 17, 2010

Reported below, 75 AD3d 1157.

Motion for assignment of counsel granted and Timothy P. Murphy, Esq., care of Lipsitz Green Scime Cambria, LLP, 42 Delaware Avenue, Suite 120, Buffalo, New York 14202 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES McRAE, Appellant.

Submitted August 16, 2010; decided November 17, 2010

Reported below, 65 AD3d 1382.

Motion for reargument denied [*see* 15 NY3d 761 (2010)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS PARADA, Appellant.

Submitted November 8, 2010; decided November 17, 2010

Reported below, 67 AD3d 581.

Motion for assignment of counsel granted only to the extent that Glenn A. Garber, Esq., 350 Broadway, Suite 1207, New York, NY 10013 is assigned without fee to represent appellant

on the appeal herein. Counsel may, however, apply for reimbursement of necessary disbursements incurred in connection with the assignment.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JESUS PRATTS, Appellant.

Submitted October 25, 2010; decided November 17, 2010

Reported below, 74 AD3d 536.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

In the Matter of SASHA B., a Child Alleged to be Neglected. ERICA B., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted November 15, 2010; decided November 17, 2010

Reported below, 73 AD3d 587.

Motion for poor person relief granted.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v LISA ANN PIA et al., Appellants. (And a Third-Party Action.)

Submitted September 7, 2010; decided November 17, 2010

Reported below, 73 AD3d 752.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[938 NE2d 1006, 912 NYS2d 571]

MICHAEL AQUINO, Appellant, v MICHAEL HIGGINS, Defendant, and JOHN HIGGINS et al., Respondents.

Argued October 12, 2010; decided November 18, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered

December 30, 2009. The Appellate Division order, insofar as appealed from, with two Justices dissenting in part, modified, on the law, an order and judgment (one paper) of the Supreme Court, Erie County (Christopher J. Burns, J.), to the extent that it had denied that portion of a motion by defendants-respondents for summary judgment dismissing plaintiff's fourth cause of action alleging negligent supervision. The modification consisted of granting defendants-respondents' motion in its entirety and dismissing the complaint as against them.

Plaintiff commenced an action seeking damages for injuries he sustained while he was a passenger in a vehicle that was driven by then 19-year-old defendant and owned by his parents. The record established that defendant parents permitted their daughter to host a party at their residence and that she was expressly told that no alcohol was to be served. Although the parents observed the guests arrive, they did not observe anyone take alcohol into the basement where the party was held. The parents were not aware that there was alcohol present at the party until defendant mother entered the basement at the end of the party and observed approximately 12 beer cans. Defendant father suspected that his son had been drinking, and he escorted his son to the son's bedroom and instructed him to go to bed. The parents had each observed the guests after discovering the alcohol, and they each testified at their depositions that none of the guests appeared to be intoxicated. Plaintiff, however, presented deposition testimony of other guests who testified that plaintiff appeared to be intoxicated. The parents were unaware that their son had left the house to drive plaintiff and another person home until they were notified of the accident that was the subject of this action.

Aquino v Higgins, 68 AD3d 1650, reversed.

HEADNOTE

Negligence — Duty — Duty to Supervise

In an action to recover for injuries plaintiff sustained while he was a passenger in a vehicle operated by the 19-year-old defendant, there was an issue of fact whether defendant parents provided adequate supervision for minor guests who became intoxicated at their home and, in particular, whether they properly supervised their guests' departure from the premises. Since the basis of any liability on defendants' part, assuming proximate cause, rested on the duty to supervise, rather than their duty as landowners, it was not dispositive that the injury occurred off premises. As a result, summary judgment should not have been granted dismissing plaintiff's cause of action for negligent supervision.

APPEARANCES OF COUNSEL

Brown Chiari LLP, Lancaster (*Samuel J. Capizzi* of counsel),
for appellant.

Dennis J. Bischof, LLC, Williamsville (*Dennis J. Bischof* of
counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, and the fourth cause of action against John and Heather Higgins reinstated.

There is an issue of fact as to whether defendants provided adequate supervision for minor guests who became intoxicated at their home and, in particular, whether defendants properly supervised their departure from the premises (*compare Rudden v Bernstein*, 61 AD3d 736, 738 [2d Dept 2009]). Since the basis of any liability on defendants' part, assuming proximate cause, rests on the duty to supervise (*see Appell v Mandel*, 296 AD2d 514 [2d Dept 2002]), rather than their duty as landowners, it is not dispositive that the injury occurred off premises. As a result, summary judgment should not have been granted in defendants' favor and the cause of action for negligent supervision should be reinstated.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order, insofar as appealed from, reversed, etc.

GREGORY A. BEROZA, Appellant, v MICHELE A. HENDLER, Respondent.

Submitted September 20, 2010; decided November 18, 2010

Reported below, 71 AD3d 615.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NINA DAKIN, Respondent, v JAMES DAKIN, JR., Appellant.

Submitted September 20, 2010; decided November 18, 2010

Reported below, 75 AD3d 639.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

PAULINE GUNTLOW, Respondent, v MARC BARBERA et al., Defendants, and ANTHONY RYAN et al., Appellants.

Decided November 18, 2010

Reported below, 76 AD3d 760.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of DAVID W. HOWARD, Respondent, v STATURE ELECTRIC, INC., et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Submitted September 13, 2010; decided November 18, 2010

Reported below, 72 AD3d 1167.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

NEW YORK COMMUNITY BANK, Respondent, v JAY VERMONTY, Formerly Known as JESUS VERMONTY, et al., Defendants, and DAVE SHELDON, Also Known as DAVID SHELDON, et al., Appellants.

Submitted October 4, 2010; decided November 18, 2010

Reported below, 68 AD3d 1074.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of TOWN OF WATERFORD, Appellant, v NEW YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVATION, Respondent.

Decided November 18, 2010

Reported below, 77 AD3d 224.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DOUGLAS B. WORTH, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent.

Submitted September 13, 2010; decided November 18, 2010

Reported below, 2010 NY Slip Op 78111(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[940 NE2d 555, 914 NYS2d 729]

JOAN ORPHAN, Appellant, v SAMUEL PILNIK, M.D., et al., Respondents, et al., Defendants.

Argued October 20, 2010; decided November 23, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 20, 2009. The Appellate Division, with two Justices dissenting in part, affirmed so much of an order of the Supreme Court, Bronx County (Patricia Anne Williams, J.), as had granted a motion by defendants for summary judgment dismissing the cause of action alleging lack of informed consent as against Samuel Pilnik, M.D. and Lenox Hill Hospital.

Orphan v Pilnik, 66 AD3d 543, affirmed.

HEADNOTE

Physicians and Surgeons — Lack of Informed Consent

In a medical malpractice action alleging lack of informed consent to a procedure that left a scar on plaintiff's breast, plaintiff's opposition to defendant's motion for summary judgment failed to demonstrate the existence of a triable issue of fact. To succeed in a lack of informed consent cause of action, a plaintiff must demonstrate that (1) the practitioner failed to disclose the risks, benefits and alternatives to the procedure or treatment that a reasonable practitioner would have disclosed and (2) a reasonable person in the plaintiff's

position, fully informed, would have elected not to undergo the procedure or treatment. Expert medical testimony is required to prove the insufficiency of the information disclosed to the plaintiff. Here the affirmation of plaintiff's expert was tentative and vague, and did not state with certainty that the information plaintiff allegedly received prior to the procedure was a departure from what a reasonable practitioner would have disclosed. Moreover, the evidence proffered by plaintiff did not establish that a fully informed reasonable person would have declined the procedure. Indeed, plaintiff herself alleged only that, if fully informed, she would have sought a second opinion.

APPEARANCES OF COUNSEL

Law Office of Stephen H. Weiner, New York City (*Stephen H. Weiner* of counsel), for appellant.

Martin Clearwater & Bell LLP, New York City (*Ellen B. Fishman*, *John L.A. Lyddane* and *Michael E. Gallay* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

To succeed in a medical malpractice cause of action premised on lack of informed consent, a plaintiff must demonstrate that (1) the practitioner failed to disclose the risks, benefits and alternatives to the procedure or treatment that a reasonable practitioner would have disclosed and (2) a reasonable person in the plaintiff's position, fully informed, would have elected not to undergo the procedure or treatment (*see* Public Health Law § 2805-d [1], [3]). Expert medical testimony is required to prove the insufficiency of the information disclosed to the plaintiff (CPLR 4401-a).

On this appeal, the sole remaining cause of action alleges that plaintiff did not give informed consent to a procedure to remove a suspicious mass from her breast, because she was not made aware that the procedure would leave a 6.5 centimeter scar. The remaining defendant—the doctor who performed the procedure—moved for summary judgment dismissing the complaint. Because plaintiff does not dispute that defendant established his *prima facie* entitlement to judgment as a matter of law, the only issue remaining is whether plaintiff, in opposition to the motion, demonstrated the existence of triable issues of fact (*see Ferluckaj v Goldman Sachs & Co.*, 12 NY3d 316, 320 [2009]).

In opposition to the motion for summary judgment, plaintiff submitted her own affidavit and the affirmation of her medical

expert. The expert's affirmation was tentative and vague, and would not state with certainty that the information plaintiff allegedly received prior to the procedure was a departure from what a reasonable practitioner would have disclosed. Moreover, the evidence proffered by plaintiff did not establish that a fully informed reasonable person would have declined the procedure. Indeed, plaintiff herself alleged only that, if fully informed, she would have sought a second opinion. Accordingly, plaintiff's opposition to defendant's motion for summary judgment failed to demonstrate the existence of a triable issue of fact.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

[939 NE2d 140, 913 NYS2d 123]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DWIGHT ASHE, Respondent.

Decided November 23, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 10, 2010. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Charles H. Solomon, J.), which had convicted defendant, upon his plea of guilty, of grand larceny in the first degree, (2) vacated the plea, (3) dismissed the superior court information, and (4) remanded the matter for further proceedings on the felony complaint.

An initial felony complaint charged defendant with grand larceny in the second degree. After it came to light that the total amount defendant embezzled from his employer exceeded \$1 million, defendant agreed to waive prosecution by indictment and pleaded guilty to one count of grand larceny in the first degree. The Appellate Division concluded that because the only offense contained in the superior court information was not an offense for which defendant was held for grand jury action, the superior court information was jurisdictionally defective, citing *People v Zanghi* (79 NY2d 815 [1991]).

People v Ashe, 74 AD3d 503, affirmed.

HEADNOTE**Crimes — Information**

An order of the Appellate Division which reversed a judgment convicting defendant, upon his plea of guilty, of grand larceny in the first degree, vacated the plea, dismissed the superior court information, and remanded the matter for further proceedings on the felony complaint, was affirmed.

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (David M. Cohn of counsel), for appellant.

Legal Aid Society, Criminal Appeals Bureau, New York City (Jonathan Garelick and Steven Banks of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed (*see People v Zanghi*, 79 NY2d 815 [1991]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of the Claim of SHANE BEGOR, Claimant, v MARK HOLMES, Doing Business as FOUR SEASONS LOGGING, et al., Respondents, and BRENNER & MCHUGH, INC., et al., Respondents, and AMERICAN ZURICH INSURANCE COMPANY, Appellant. WORKERS' COMPENSATION BOARD, Respondent.

Submitted October 12, 2010; decided November 23, 2010

Reported below, 71 AD3d 244.

Motion for reargument of motion for leave to appeal denied [*see* 15 NY3d 815 (2010)].

In the Matter of VICTOR ALTHEUS DePONCEAU, Appellant, v STATE OF NEW YORK, Respondent.

Decided November 23, 2010

Reported below, 2010 NY Slip Op 77789(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct

involvement of a substantial constitutional question (*see* CPLR 5601).

SALLY DINERMAN, Appellant, v NYS LOTTERY, Respondent.

Submitted October 4, 2010; decided November 23, 2010

Reported below, 69 AD3d 1145, 2010 NY Slip Op 68591(U), 2010 NY Slip Op 80065(U).

Motion, insofar as it seeks leave to appeal from the January 2010 Appellate Division order of affirmance, dismissed as untimely (*see* CPLR 5513 [b]). The prior motion for leave to appeal made at the Appellate Division was untimely (*see* Karger, Powers of the New York Court of Appeals § 12:3, at 436-437 [3d ed rev]). Motion, insofar as it seeks leave to appeal from the April 2010 and August 2010 Appellate Division orders, dismissed upon the ground that such orders do not finally determine the action within the meaning of the Constitution.

SKIP FUNT, Appellant, v HUMAN RESOURCES ADMINISTRATION OF THE CITY OF NEW YORK, Respondent.

Submitted September 13, 2010; decided November 23, 2010

Reported below, 68 AD3d 490.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DAVID HARRIS, Respondent, v 170 EAST END AVENUE, LLC, et al., Appellants, et al., Defendant.

Submitted September 27, 2010; decided November 23, 2010

Reported below, 71 AD3d 408.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

EDWARD J. LEN, as Administrator of the Estate of MICHAEL E. LEN, Deceased, Appellant, v STATE OF NEW YORK et al., Respondents.

Submitted August 16, 2010; decided November 23, 2010

Reported below, 74 AD3d 1597.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed that portion of the Court of Claims order that denied appellant's motion to amend the claim, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

TRACY MASSOP et al., Appellants, v INVENTORS HELPLINE/PATENT AND TRADEMARK INSTITUTE, Respondent.

Submitted October 4, 2010; decided November 23, 2010

Reported below, 2010 NY Slip Op 81028(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY E. BECOATS, Appellant.

Submitted November 1, 2010; decided November 23, 2010

Reported below, 71 AD3d 1578.

Motion for reargument of motion for leave to appeal granted and, upon reargument, Kristin F. Splain, Esq., Monroe County Conflict Defender, 80 West Main Street, Suite 300, Rochester, New York 14614 is assigned in the place and stead of Donald M. Thompson, Esq., care of Easton Thompson Kasperek Shiffrin LLP, as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DENNIS STEINKE, Appellant.

Submitted September 27, 2010; decided November 23, 2010

Reported below, 2010 NY Slip Op 81798(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in District Court, County of Nassau (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS VENTURA, Appellant.

Submitted October 18, 2010; decided November 23, 2010

Reported below, 2009 NY Slip Op 82726(U).

Motion to enlarge the record denied.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* JOHN PEREZ, Appellant, v ROBERT ERCOLE, Superintendent of Green Haven Correctional Facility, Respondent.

Submitted September 20, 2010; decided November 23, 2010

Reported below, 2010 NY Slip Op 66437(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

RANDY RATAJCZAK, as Administrator of the Estate of MARY RATAJCZAK, Deceased, Respondent, v MAHMOOD YOONESSI, M.D., et al., Appellants. (And a Third-Party Action.)

Decided November 23, 2010

Appeal dismissed, without costs, by the Court of Appeals, *sua sponte*, upon the ground that it does not lie (*see* CPLR 5601).

In the Matter of JOMO WILLIAMS, Appellant, v W.C. THOMPSON, JR., et al., Respondents.

Submitted September 13, 2010; decided November 23, 2010

Reported below, 2010 NY Slip Op 72339(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine

the proceeding within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

[939 NE2d 805, 913 NYS2d 639]

FRANCESCO STRANGIO, Appellant, v SEVENSON ENVIRONMENTAL SERVICES, INC., et al., Defendants and Third-Party Plaintiffs-Respondents. THOMAS JOHNSON, INC., Third-Party Defendant-Respondent.

Decided November 30, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 18, 2010. The Appellate Division, with two Justices dissenting in part, affirmed so much of an order of the Supreme Court, Niagara County (Ralph A. Boniello, III, J.), as had granted those parts of the motions of defendants and third-party plaintiffs and third-party defendant for summary judgment dismissing the Labor Law § 240 (1) claim and the Labor Law § 241 (6) claim insofar as it is based on the alleged violation of 12 NYCRR 23-6.1 (j).

Plaintiff commenced a Labor Law and common-law negligence action seeking damages for injuries he sustained when he was struck in the face by the handle of a hand-operated hoisting mechanism while he was raising a scaffold. With respect to plaintiff's Labor Law § 240 (1) claim, the Appellate Division majority held that defendants established their entitlement to judgment as a matter of law, and plaintiff failed to raise a triable issue of fact. The majority concluded that the protective device, i.e., the scaffold, adequately shielded plaintiff and his coworkers on a platform from falling to the ground or sustaining other injuries as a result of the unchecked descent of the scaffold.

Strangio v Severson Envtl. Servs., Inc., 74 AD3d 1892, modified.

HEADNOTE

Labor — Safe Place to Work

In a personal injury action in which plaintiff sought damages for injuries he sustained when he was struck in the face by the handle of a hand-operated

hoisting mechanism while he was raising a scaffold, triable issues of fact existed as to whether the defendants provided proper protection under Labor Law § 240 (1).

APPEARANCES OF COUNSEL

Lipsitz Green Scime Cambria LLP, Buffalo (*John A. Collins* of counsel), for appellant.

Phillips Lytle LLP, Buffalo (*William D. Christ* and *Donna M. Lanham* of counsel), for Severson Environmental Services, Inc. and another, respondents.

Sliwa & Lane, Buffalo (*Michael T. Coutu* of counsel), for Thomas Johnson, Inc., respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by denying the motions of defendants and the third-party defendant for summary judgment insofar as they seek dismissal of plaintiff's Labor Law § 240 (1) claim and, as so modified, affirmed.

Triable issues of fact exist as to whether the defendants provided proper protection under Labor Law § 240 (1). Plaintiff's remaining contentions lack merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, etc.

In the Matter of RADISLAW BLAZIC, Appellant, v ROBERT DENNISON, as Chair of the New York State Division of Parole, Respondent.

Submitted October 4, 2010; decided November 30, 2010

Reported below, 56 AD3d 824.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of ALIREZA DILMAGHANI, an Attorney, Appellant.
DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted November 15, 2010; decided November 30, 2010

Reported below, 78 AD3d 39.

Motion for a stay dismissed as academic.

In the Matter of TYRONE HOUSTON, Appellant, v PATRICIA DIMANGO, a Justice of the Supreme Court, et al., Respondents.

Decided November 30, 2010

Reported below, 76 AD3d 710.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the issues presented have become moot.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ECHO WESTLEY DIXON, Appellant, v D. ROCK, as Superintendent of Upstate Correctional Facility, Respondent.

Submitted October 12, 2010; decided November 30, 2010

Reported below, 2010 NY Slip Op 80772(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. LIONEL RICHARDSON, Appellant, v ANTHONY BOUCAUD, as Superintendent of Altona Correctional Facility, Respondent.

Decided November 30, 2010

Reported below, 75 AD3d 878.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that petitioner has been released on parole, and therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]).

AURA QUINONES, Appellant, v NEIGHBORHOOD YOUTH AND FAMILY SERVICES, INC., et al., Respondents.

Submitted September 13, 2010; decided November 30, 2010

Reported below, 71 AD3d 1106.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of KEVIN WEEMS, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent.

Decided November 30, 2010

Reported below, 75 AD3d 681.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

In the Matter of DEREK WILLIAMS, Appellant, v SUSAN CONNELL, Superintendent, Oneida Correctional Facility, et al., Respondents.

Submitted October 12, 2010; decided November 30, 2010

Reported below, 71 AD3d 1476; 2010 NY Slip Op 75860(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of SEAN WILSON, Appellant, v CAROLINE KILKENNY, Respondent.

Submitted October 18, 2010; decided November 30, 2010

Reported below, 73 AD3d 796.

Motion for reargument of motion for leave to appeal denied [*see* 15 NY3d 817 (2010)].
